

State vs Shiv Murat Dwivedi Anr (McoCa) on 26 December, 2025

IN THE COURT OF SHRI RAVINDRA KUMAR PANDEY,
ADDITIONAL SESSIONS JUDGE-03, SOUTH DISTRICT
SAKET COURTS, NEW DELHI

SC 7058/2016 (43/15/2015)
CNR No. DLST01-000209-2010
STATE Vs. SHIV MURAT DIWEDI ANR
FIR No. 54/2010
PS Saket
Under Section 3(1) & 3 (2) MCOC Act, 1999

ID No.	: SC 7058/2016 (43/15/2015)
CNR No.	DLST01-000209-2010
Date of commission of offence	: Between the year 1997 to the year 2010
Date of institution of the case	: 17.08.2010
Name of the complainant	: Sh. Pankaj Singh, the then SHO of PS Saket
Name of accused persons and address of the accused persons	: 1. Shiv Murat Dwivedi @ Shiva @ Ichhadhari Sant Swami Bhimanand Maharaj Chitrakoot Wale @ Karan @ Rajeev S/o Sh. Bachha Lal Dwivedi, R/o Village Chamroah, PO & PS Manikpur, Distri Chitrakoot, Uttar Pradesh. 2. Parveen Kumar @ Ankit, S/o Sh. Ram Narayan, R/o 147-A, Gautam Nagar, Delhi & Parmanent Address:- Village Kheri Khumar, Jhajjar, Haryana.
Offence complained of against the accused persons	: Section 3 (1) & (2) of the MCOC Act, 1999
Offence for which accused	Accused Shiv Murat Dwivedi was charged for

SC 7058/2016 (43/15/2015)
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JUDGMENT

1. The case of the prosecution in brief is that from the year 1997 i.e., the date from the registration of the FIR No. 705/1997, PS Lajpat Nagar, New Delhi under Section 3/4/5/8 of the ITP Act, 1956 till the registration of the FIR No. 47/2010, PS Saket under Section 3/4/5/6/8 of ITP Act, 1956, the accused Shiv Murat Dwivedi @ Shiva @ Rajeev @ Swamiji was found involved in the commission of organised crime while indulging himself in continuous unlawful activities of various nature like offences punishable under Section Immoral Trafficking Prevention Act, 1956, the Gangster Act and offences punishable under the various provisions of Indian Penal Code.

1.1. It is further allegation that the criminal background of the accused Shiv Murat Dwivedi was checked thoroughly after registration of the FIR No. 47/2010, PS Saket and it was found that various FIRs bearing no. 705/1997, PS Lajpat Nagar, New Delhi, FIR No. 183/1998, PS S.N. Puri, FIR No. 303/1998, PS SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 2 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:15:45 +0530 Badarpur, FIR no. 167/2003, PS Sector 24, NOIDA under Section 2/3 of the Gangster Act, FIR No. 341/2003, re- registered as FIR No. 160/2003 PS Sector 24, NOIDA under Section 3/4/5/6/7 of the ITP Act were found already registered against the accused Shiv Murat Dwivedi.

1.2. It is alleged that the allegations in the above mentioned FIRs were found disclosing cognizable offences punishable with imprisonment of three years or more in respect of which more than one charge sheet had already been filed before the competent court in the preceding period of ten years and the such court had already taken the cognizance for such offences.

1.3. It is further allegation against the accused Praveen Kumar that accused Praveen Kumar being a close associate of accused Shiv Murat Dwivedi had conspired or attempted to commit or had advocated, abated and knowingly facilitated the commission of organised crime and other acts preparatory to the organised crime as committed by the co-accused Shiv Murat Dwivedi.

2. On the basis of the approval of the competent authority sought by the investigating officer for invoking MCOC Act against the accused persons, the competent authority had granted the sanction to invoke the MCOC Act against the accused persons and the case under Section 3 of the MCOC Act,1999 was registered against the accused Shiv Murat Dwivedi and Parveen Kumar.

2.1. After the completion of investigation, the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 3 of 186 RAVINDRA by

RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:15:52 +0530 charge-sheet was filed before the Court.

3. After hearing arguments on the point of charge, vide order dated 10.08.2011, the accused Shiv Murat Dwivedi @ Shiva @ Rajeev @ Swamiji was charged for the offence punishable under Section 3 (1) of the MCOC Act, 1999 and accused Parveen Kumar was separately charged for commission of offence punishable under Section 3 (2) of the MCOC Act, 1999. Both the accused persons had pleaded not guilty and claimed for the trial.

4. In support of its case, the prosecution has examined sixty seven witnesses i.e., PW 1 Abhay Dua, PW 2 S.B. Mehto, PW 3 Ramesh Kumar, PW 4 Smt. Shalini Arora, PW 5 Sh. Devendra Kumar Vimal, PW 6 Sh. Vinay Singh, PW 7 Sh. Amit Wadhwa, PW 8 Sh. Inder Raj Sirohiwal, PW 9 Inspector Ram Kumar, PW 10 ASI Dayanand, PW 11 Sh. Kamal Manchanda, PW 12 Sh. Sandeep Julka, PW 13 Sh. Rahul, PW 14 Sh. Chandan Singh, PW 15 Ms. Divya Pahuja, PW 16 Sh. Devender Singh, PW 17 Sh. B.P. Singh, PW 18 Ms. Sudha Mishra, PW 19 Sh. Lal Shyam Mishra, PW 20 Sh. Sunder Lal Singh, PW 21 Sh. K.C. Mistry, PW 22 Sh. Inderbir Singh Gujral, PW 23 Sh. Mukesh Kumar, PW 24 Sh. M.N. Vijayan, PW 25 SI Sanjay Sharma, PW 26 Sh. Rajesh Jain, PW 27 Sh. Manoj Aggarwal, PW 28 Sh. Devender Bansal, PW 29 Sh. Gurmeet Singh Kocchar, PW 30 Sh. Dushyant, PW 31 Sh. Amulya K. Patnaik, PW 32 Ms. Abha, PW 33 Vivek Khurana, PW 34 Sh. Gopal Dass, PW 35 SI Parveen Kumar, PW 36 Sh. Ram Kishore, PW 37 Sh. Ramesh Chander Gupta, PW 38 Sh. Samrat SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 4 of 186 RAVINDRA Digitally signed by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:15:58 +0530 Singh, PW 39 Sh. Rajesh @ Shyam, PW 40 Sh. Alok Jaiswal, PW 41 Sh. Vijay Kumar, PW 42 Sh. Navjot Singh, PW 43 Sh. Rajiv Gupta, PW 44 Sh. Darshan Lal Sachdeva, PW 45 Sh. Ashok Kumar Gandhi, PW 46 Sh. S.K. Khanna, PW 47 Sh. Liyakat Ali, PW 48 Sh. Manoj Methew, PW 49 Inspector Dalip Kumar, PW 50 Inspector Dharam Dev, PW 51 HC Rajesh Kumar, PW 52 Sh. R.K. Singh, PW 53 Sh. Naveen Arora, PW 54 Sh. Manoj Sharma, PW 55 ASI Mukesh Chand Meena, PW 56 SI Arvind Kumar, PW 57 Ms. Kiran Bansal, PW 58 Inspector Pankaj Singh, PW 59 Sh. Israr Babu, PW 60 Sh. Mangat Ram Katyal, PW 61 Sh. Mehar Singh (retired ACP), PW 62 Sh. Upender Kumar Bhardwaj, PW 63 Sh. Sharad Aggarwal, PW 64 Sh. Kashmir Singh, PW 65 Sh. Virender Singh, PW 66 Sh. Ranjan Mishra and PW 67 Sh. Ajay Kashyap during the trial.

PUBLIC WITNESSES/ EYE WITNESSES

5. PW 1 Abhay Dua: He deposed that he was having a vehicle bearing no. DL 4C AA 0300 which he had purchased from M/s Chetan Das Om Prakash Impex Pvt. Ltd. He further deposed that he had purchased this vehicle for a sum of Rs. 6,75,000/- and got some work done on the vehicle. The witness further deposed that thereafter, he had sold this vehicle for a sum of Rs. 7,30,000/- to accused Parveen Kumar. He further deposed that this vehicle was transferred in the name of accused Parveen Kukmar. The witness had identified the document pertaining to this vehicle i.e., delivery receipt issued by him as Ex. PW 1/A. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 5 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:05 +0530 This witness

was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

6. PW 2: S.B. Mehto:- He had brought the record pertaining to Honda City Car bearing no. DL 7CE 2115 registered in the name of Jai Kishan Sharma S/o Sh. Ram Murti Sharma, R/o 306, Gagan Vihar, Delhi. He had identified the printout of the record pertaining to the registration of this vehicle as Ex. PW 2/A. 6.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

7. PW 3: Ramesh Kumar:- This witness had brought the record pertaining to Honda Civic Car bearing no. DL 4CAA 0300 registered in the name of Parveen Kumar S/o Sh. Ram Narayan, R/o B-93, First Floor Krishna Nagar, Safdarjung Enclave, New Delhi. The witness had identified the printout of the record pertaining to registration of this vehicle as Ex. PW 3/A. 7.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

8. PW 4: Smt. Shalinil Arora: This witness had brought the assessment record pertaining to accused Parveen Kumar as available in Ward 23 (4), CR Bldg. I.P. Estate, New Delhi. The witness had identified the challans and returns pertaining to accused Parveen Kumar along with document SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 6 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:12 +0530 of fixed assets as Ex. PW 4/A. 8.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

9. PW 5: Sh. Devendra Kumar Vimal: He was the Inspector from Income Tax Department:- The witness had produced the assessment record pertaining to accused Shiv Murat Dwivedi as available in office at Ward 23 (3), CR Bldg. I.P. Estate, New Delhi. The witness had identified the said data pertaining to accused Shiv Murat Dwivedi as Ex. PW 5/A and Ex. PW 5/B. The witness had also identified the certified true copies of all the available records along with covering letter as Ex. PW 5/D1 to D-13.

9.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

10. PW 6: Sh. Vinay Singh: He was the General Manager from BSES Rajdhani Power Ltd. The witness had deposed that vide his letter Ex. PW 6/A, the witness had identified the documents pertaining to the electricity connection of H.No. 239, Sector -III, R.K. Puram sent by him to ACP Mehar Singh as Ex. PW 6/A1 to Ex. PW 6/A5.

10.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

11. PW 7: Sh. Amit Wadhwa:- He was the Assistant Manager SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 7 of 186 RAVINDRA by

RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:19 +0530 (Legal) from Bajaj Allianz General Insurance Company:-

He had produced the certified record of the policy no. OG-08-1113-1801-00000043 in the name of NDTV Media Ltd., Okhla Industrial Area, Phase-III, New Delhi from the period from 31.03.2007 to 30.03.2008 in respect of vehicle No. DL-3CU-9849 Tata Safari and identified the same as Ex. PW 7/A. 11.1. This witness was not cross examined on behalf of the accused persons. However, opportunity was granted to the accused persons.

12. PW 8: Sh. Inder Raj Sirohiwal:- He was the Head of Finance, Hotel The Royal Plaza situated at 19 Ashoka Road, New Delhi:- The witness had identified the original record i.e., Guest Registration card in the name of S.N. Diwadi, C-120/1, Dham Mandir as Ex. PW 8/A. He further deposed that as per the said record, the said person had arrived on 06.10.2009 at about 08.00 pm and he had departed on 08.10.2009 at about 12.29 pm and total charges were Rs. 17,770/-.

12.1. This witness was cross examined on behalf of the accused persons wherein the witness had replied that the Guest Registration card means the customer bill only. The witness had further replied that he had not prepared or issued the bill i.e., Ex. PW 8/A. The witness further replied that he did not know who had prepared the same.

12.2. The witness had denied the suggestion that Ex. PW 8/A was not an original due to lack of customer's SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 8 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:26 +0530 signature on the said bill and the same was a coloured print out. The witness had replied that the mode of payment of said bill was through cash. The witness had further replied that he did not know the customer S.N. Diwadi. The witness further replied that he was aware that under the directions of the appropriate authorities (Government) the hotel is required to ask from the customer his original identity proof and thereafter, kept a photocopy on record. The witness further replied that he did not have any such photocopy of the ID proof at that time.

12.3. The witness had denied the suggestion that Ex. PW 8/A was not genuine and had been made by them under the pressure of the police.

13. PW 9: Inspector Ram Kumar:- He deposed that on 07.07.2010, as per the direction of the IO, he had visited Manikpur, Uttar Pradesh and had recorded the statements of four persons namely Samrat, Ramesh Chand Gupta, Rajesh and Alok to verify about the spendings made by different modes such as holding of Bhandara, Buying of Construction Material etc. by the accused.

13.1. The witness has not been cross examined on behalf of the accused Praveen despite opportunity was granted to the accused.

13.2. The witness has been cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness has replied that he did not remember whether he was in the raiding party, which went to Saket to Ram Kumar posted at SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 9 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:37 +0530 PS Saket on 25.02.2010. The witness further replied that on 06.07.2010, he had left Delhi so as to reach Manikpur, Uttar Pradesh.

13.3. The witness further replied that on 05.07.2010, the IO ACP Mehar Singh had asked him to go to Manikpur, Uttar Pradesh, however, he did not remember whether it was the time when the said instructions were given. The witness further replied that he did not remember as to where these instructions were given by the IO whether in the Police station or outside the Police station.

13.4. The witness further replied that he did not remember even that whether these instructions were given over the telephone or personally by the IO. The witness further replied that he had gone to the Manikpur, Uttar Pradesh by train. The witness further replied that he did not remember the name or time of the train which he had boarded to reach the Manikpur, Uttar Pradesh.

13.5. The witness further replied that the departure time of the train was between 12.00 to 08.00 pm. The witness further replied that he had boarded the train from New Delhi Railway Station. He further replied that other police officials were also with him but he did not remember their names at that time or as to how many officials had come along with him to Manikpur, Uttar Pradesh.

13.6. The witness had further replied that he had SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 10 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:45 +0530 relevant railway ticket for the journey. The witness had further replied that the IO had given the railway ticket to him in the police station but he did not remember the time when the said ticket was given to him. He further replied that he did not remember when he had reached at Manikpur, Uttar Pradesh, but it was early morning.

13.7. He further replied that he had met Samrat, Ramesh Chand Gupta, Rajesh on 07.07.2010 and he had met with Alok on 08.07.2010. The witness further replied that he had called Samrat through a person whose name he did not remember. He further replied that he did not remember the name of the market where he had met with Samrat.

13.8. He further replied that he had recorded the statement of Samrat at about 12.00 noon. He further replied that he did not know where he had sat alongwith Samrat to record his statement. He further replied that it took around twenty minutes to record his statement.

13.9. He further replied that he had recorded the statement of Ramesh Chand Gupta and Rajesh at the spot only and it took around twenty minutes to record their statements. He further replied that he had stayed in a Guest House, however, he did not remember the name of the guest house and rent paid for the Guest house. He further replied that he had taken two rooms in the said guest house. He further replied that he had paid the bill but the receipt of the same was not with him. The

witness further replied that he did not remember whether he had SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 11 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:16:54 +0530 handed over the said bill to the IO or not. He further replied that did not know the rate of the bill.

13.10. The witness had denied the suggestion that he did not remember the as to where he had received the instructions from the IO or the time of the same as no such instructions were ever given to him by the IO. The witness further denied the suggestion that he did not know the name of the train, the time of its departure, arrival as he had boarded no such train. The witness further denied the suggestion that no other police officials had accompanied him to Manikpur, Uttar Pradesh.

13.11. The witness had further denied the suggestion that he did not remember the name of the guest house or the payment made therein or the rate of the bill as he had never gone to the Manikpur, Uttar Pradesh. The witness had further denied the suggestion that he had never gone to the Manikpur to record the statement of the above named four witnesses.

14. PW 10: ASI Dayanand:- He deposed that on 06.03.2002, he was posted as duty officer at PS Saket when he had recorded FIR No. 54/10 on the basis of Rukka prepared by Inspector Pankaj Singh received through Ct. Deepak. The witness had produced the original FIR and identified the copy of the same as Ex. PW 10/A. He further deposed that the investigations were handed over to the ACP Mehar Singh immediately after the registration of the FIR.

14.1. This witness has been cross examined on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 12 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:00 +0530 behalf of the accused Praveen wherein the witness had replied that the information i.e., the rukka was received at 11.30 pm. The witness had denied the suggestion that the rukka was not received in the manner as stated by him.

14.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, opportunity was granted to the accused.

15. PW 11: Sh. Kamal Manchanda:- He was the Company Secretary and Manager (legal) at M/s Capital Cars Pvt. Ltd. He had produced the record pertaining to the vehicle i.e., car No. DL 7CF 2115 registered in the name of Shiv Murat Dwivedi which was bought by the accused Shiv Murat Dwivedi. The witness had identified the accounts statement, copy of invoice and copy of the registration certificate which were submitted to the police vide letter as Ex. PW 11-A. 15.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to the accused persons.

16. PW 12: Sh. Sandeep Julka: He was the Marketing Manager, LIC. He had produced the record pertaining to Policy Numbers 1130490285 and 111973427 which were in the name of Shiv Murat Dwivedi R/o C-120/1, Jawahar Park, Devli Road, Khanpur, New Delhi and identified the same as Ex. PW 12/A to Ex. PW 12/A-14 with regard to these policies.

16.1. This witness was not cross examined on behalf SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 13 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:07 +0530 of the accused persons, however, the opportunity was granted to the accused persons.

17. PW 13: Sh. Rahul:- He had produced the record pertaining to stay of Mr. and Mrs. Shiv Murat Dwivedi w.e.f 09.09.2009 and from 12.09.2009 to 15.09.2009 and then again 08.12.2009 to 19.12.2009 and identified the same as Ex. PW 13/A running into five pages and further identified the record as Ex. PW 13/B which was running into five pages. The witness had also produced the copy of the guest registration card and identified the same as Ex. PW 13/C along with copy of his ID as Ex. PW 13/D. 17.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he had joined the hotel The Lalit six months back and he was presently working as Financial Controller. The witness further replied that he had no idea as to who had made the bills exhibited above.

18. PW 14: Sh. Chandan Singh:- The witness had produced the record pertaining to the Income Tax Returns filed on behalf of accused Parveen Kumar. The witness further deposed that as per this return, the income of the accused Parveen Kumar was shown as Rs. 2,86,385/- upon which the tax had been paid. He had identified the record as Ex. PW 14/A which was running into twelve pages.

18.1. This witness was cross examined on behalf of the accused Parveen wherein the witness had admitted that he had no personal knowledge about the filing of the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 14 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:13 +0530 Income Tax Return.

19. PW 15:- Ms. Divya Pahuja:- She was the Manager (HR), The Oberoi, New Delhi. She was deputed on behalf of Sh. Ritesh Arora by Gen. Manager Jay Rathore for giving the evidence before the court as Sh. Ritesh Arora had left the services of the hotel. She further deposed that she had worked with Sh. Ritesh Arora in the Oberoi Hotel during her tenure. The witness had identified the signature of Sh. Ritesh Arora at point A on the Ex. PW 15/A. The witness had produced her authorisation letter issued by General Manager and identified the same as Ex. PW 15/B. 19.1. She further deposed that as per the record available in the office of the Oberoi Hotel, the accused Shiv Murat Dwivedi stayed in their hotel from 31.08.2009 to 02.09.2009 and the invoice/ bill raised against the accused Shiv Murat Dwivedi, same were generated in their computer and she had produced another copy of the said invoice. The witness had produced the original invoice carrying the signature of the Shiv Murat Dwivedi and identified the same as Ex. PW 15/C. 19.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had denied the suggestion that he had not brought the original invoice and the same was the colour copy which was bearing the signature of the accused Shiv Murat Dwivedi.

19.3. This witness was not cross examined on behalf of the accused Parveen, however, the opportunity was SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 15 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR

PANDEY PANDEY Date: 2025.12.26 12:17:19 +0530 granted to the accused.

20. PW 16: Sh. Devender Singh:- He was running the shop in the name of Hari Singh Jagdish Singh which was dealing with the arms and ammunition. The witness had identified the copy of the bill as Ex. PW 16/A. The witness further deposed that as per the bill, a riffle was sold for a sum of Rs. 48,000/- to Shiv Murat Dwivedi on 04.11.2009. The witness further deposed that the amount was received in cash against this sale. The witness had produced the original bill.

20.1. This witness was not cross examined on behalf of the accused persons, however, opportunity was granted to the accused persons.

21. PW 17: Sh. B.P. Singh:- He was the Government Approved Valuer. He deposed that on the request of the police of PS Saket, he did valuation of the temple land at Village Chamroha, Manikpur, District Chitrakoot, Uttar Pradesh. He further deposed that as per the final assessment made by him, the value of the property had come to Rs. 50,79,200/-. The witness had identified his report as Ex. PW 17/A. The witness had further deposed that he had also valued the House at Village Chamroha, Manikpur, District Chitrakoot, Uttar Pradesh and had assessed the value as Rs. 66,04,000/-. The witness had identified his report as EX. PW 17/B. The witness had also identified the photographs of the above said properties as Ex. PW 17/C. The witness further deposed that these properties were found in the name of Sai Paran Pawan SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 16 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:25 +0530 Dham Ashram.

21.1. The witness further deposed that he had also valued the H.No. C-120, C-Block, Jawahar Park, Devli road, Property owned by Sai Baba Mandir and house of Baba Ichhadhari and identified his report as Ex. PW 17/D including the photographs of the property. The witness had further deposed that the value of the property was assessed as Rs. 52,82,000/-.

21.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he was not on the panel of Delhi Police. The witness further replied that he had made this valuation on the request of the police official namely Praveen and Pankaj. The witness had also replied that he had also received a written request to this effect. The witness further replied that he did not remember the date of this request.

21.3. The witness further replied that he did not remember the date of visit but he could tell the date of visit to the temple land at Village Chamroha by seeing the record. The witness further replied that he had visited the place Chamroha by train along with police officials namely Sanjeev, Ram Kumar and others whose name he did not remember. The witness further replied that the name of the train was perhaps Sampark Kranti Express and the said train was from Nizamuddin Station and the time of departure of the train was around 08.00 - 09.00 pm. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 17 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:32 +0530 21.4. The witness further replied that other than Sanjeev Kumar and Ram Kumar, there were two more police

officials with them. The witness further replied that the train was got reserved / confirmed by the police officials of Saket. The witness further deposed that he did not remember the date when they had boarded the train. The witness further replied that he did not remember the date when he had boarded the train. The witness further deposed that they had reached at Chamroha Railway Station at about 08.00 am, the witness again replied that the Railway Station was not Chamroha but was some other railway station, however, he did not remember the name of the said railway station.

21.5. The witness further replied that he did not have the railway ticket on which he had gone to Chamroha. The witness further replied that from the railway station the temple site was 10-12 kms far away. The witness further replied that they had gone to the temple by Jeep. The witness further replied that he did not know to whom the said jeep belonged however, it was private jeep. The witness further replied that the driver of the Jeep ferried only the four of them.

21.6. The witness further replied that he did not know how much money was paid to the Jeep driver. The witness further replied that it took them 2-3 hours to reach the temple site. The witness further replied that he did not remember on whose name was the property (temple) was on. The witness further replied that there was no local SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 18 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:40 +0530 police officials to accompany them. The witness further replied that he first collected the data regarding the temple which took him about one hour. The witness further replied that thereafter, they had gone to the house of the accused Shiv Murat Dwivedi. The witness further replied that no document was given to him by the police and he was told by the police that the property which he was supposed to value was in the name of Ichhadhari. The witness further replied that he had till date not seen the ownership / title documents of the temple. The witness further replied that the father and the brother of the accused were present at the temple but there was no Pujari or any other person. The witness further replied that the surrounding area to this temple was the residential in nature.

21.7. The witness further replied that the land surrounding the temple was agricultural and houses were situated at some distance from the land. The witness further replied that these were various classifications of localities namely, Poor, Ordinary, Medium, High and Super High Class. The witness further replied that the categories were decided on the basis of understanding and locality. The witness further replied that this is assessed on the basis of experience. The witness further replied that however, the categorization of these properties were not taught to them in their study of Civil Engineering and even not dealt with while they were granted license by the Chief Commissioner Income Tax. The witness further replied that grading of property was given area-wise and where SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 19 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:48 +0530 grading was not given then the property is considered as ordinary.

21.8. The witness further replied that the grade were not given as per the value of the property. The witness further replied that he did not remember how far were the school, hospital, market or cinema from the temple. The witness further replied that the road leading to the temple was a Pacca. The witness further replied that he did not remember the total temple land but he had mentioned

the same in his report.

21.9. The witness had denied the suggestion that the temple land was not 555.55 sq. yds, but was about 44x44 sq. feet. The witness further replied that there was no boundary wall around the temple. The witness further replied that he did not remember the year of construction of the temple but it was mentioned in his report. The witness further replied that there were three categorization regarding method of construction, which were direct labour employed, labour rate contractor and contractor with material. The witness further replied that the temple was built by labour rate contractor.

21.10. The witness further replied that the father of the accused had informed about the same to him, however, he did not give anything in writing. The witness further replied that his father remained with him for 2-3 hours. The witness further replied that he could not tell the description of the father of the accused. The witness voluntarily replied that he used to go only for the valuation SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 20 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:17:55 +0530 of the property.

21.11. The witness had denied the suggestion that he had not visited the temple site that is why he was telling the description of the father of the accused. The witness further replied that he himself had taken the photographs of the temple through non digital camera. The witness had replied that the camera was belonged to him and the negatives of these photographs had not been taken from him by the police. The witness further replied that he did not have the negatives of the said photographs in his possession.

21.12. The witness had denied the suggestion that the camera did not belong to him and it was the police. The witness further denied the suggestion that he did not visit the temple site and prepared the valuation report while sitting at his office. The witness further denied the suggestion that the labours who had built the temple were not on contract basis but worked on a barter system which was prevalent even today in India. The witness further replied that he did not remember exactly as to how many walls were there in the temple. The witness further denied the suggestion that there was only one wall that too at the back of the temple and the remaining were all arch.

21.13. The witness had replied that there was no electricity wiring and the connection in the temple. The witness further replied that there was no sanitary. The witness further replied that there was a hand pump outside premises of the temple. The witness further replied that SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 21 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:03 +0530 when they had prepared the valuation, the same was done considering that the local police and the same was not done as comparison to Delhi and NCR.

21.14. The witness was confronted with Ex. PW 17/A at internal page 6 of the valuation report wherein it was stated that the rate as far as possible have been applied from CPWD basic plinth area rate of construction of these types of building in Delhi and around Delhi.

21.15. The witness further replied that he had seen all the projection murti of the gods and deities at the temple and the same were made of metal, however, he did not remember what metal was used. However, witness was confronted with Ex. PW 17/A at internal page 6 of the valuation report, wherein it was not mentioned the make and material of the said murtis. The witness further replied that he did not remember as to how much was the valuation for all these murtis. The witness had denied the suggestion that the murtis of gods were made of cement and specifically of Hanumanji was made of red stone and the valuation of all the murtis together was not more than Rs. 10,000/-.

21.16. The witness further replied that he did not remember the date when he had visited the site at Jawahar Park, New Delhi for the purpose of valuation. The witness further replied that he had visited the said site at about 11.00 am along with one Dharampal from Police Station. The witness again replied that he did not know the name of that person who had come along with him. The witness SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 22 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:09 +0530 further replied that they remained at the site for about one hour. The witness further replied that they had visited the site first and then later they had gone to the village Chamroa for valuation purpose. The witness further replied that they had gone to the village Chamroha from Delhi after valuation and after 3-4 days. The witness further replied that he did not remember the total area of the property at Jawahar Park, Delhi. The witness further replied that he did not remember the name of the owner of the said property. The witness further replied that he had not seen the ownership/ title documents of the said property, nor the same were given to him by the police and till date he had not seen them.

21.17. The witness further replied that he did not remember as to how far the school, hospital, office, market, cinema etc from the said property. The witness further replied that nearby means 1 km or 2 kms. The witness further replied that the residents of the said property had told him about a year of commencement of construction and year of completion as 2000 onwards. The witness further replied that there are soundness test and ultra sound test for determining the age of the building. The witness further replied that in the present case, no such test was conducted. The witness further replied that he could not tell if this house was constructed around 1990 much before its purchase from its previous owner in the year 2003.

21.18. The witness further replied that he did not SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 23 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:15 +0530 remember what kind of flooring was used in the house but the same was mentioned in his report. The witness further replied that ordinary flooring means cement flooring. The witness further replied that he himself had taken the photographs of this place. The witness further replied that he did not have the negatives of the said photographs with him.

22. PW 18: Ms. Sudha Mishra: She was the Assistant Administrative Officer, Life Insurance Corporation. She had produced the record pertaining to the policy nos. 124222426 and 124222584 which were lying in the name of Parveen Kumar. The witness further deposed that only three premiums were paid against these policies for Rs. 24,622/- and Rs. 8671/- respectively. The witness

further deposed that after that no premiums were paid. The witness had identified the policies as Ex. PW 18/A and Ex. PW 18/D along with receipts Ex. PW 18/C to Ex. PW 18/I. 22.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to them.

23. PW 19: Sh. Lal Shyam Mishra:- He was the Supervisor Standard Chartered Bank:- He had produced the Bank record pertaining to account No. 53310209808 which was in the name of Parveen Kumar. The witness had identified the copies of the statement in the judicial record Ex. PW 19/A1 to Ex. PW 19/A24 along with covering letter as Ex. PW 19/B. The witness had also produced the computerized print out of the statement along with covering letter and SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 24 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:22 +0530 identified the same as Ex. PW 19/C. 23.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to them.

24. PW 20: Sh. Sunder Lal Singh:- He was the Naib Tehsildar, Tehsildar Karvi, Janpath, New Delhi. He deposed that he had received a letter from SI Praveen Kumar of PS Saket and identified the same as Ex PW 20/A vide which six queries were raised regarding properties belonging to Bachha Lal son of Sh. Roop Ram. The witness further deposed that Baccha Lal was the father of the accused Shiv Murat Dwivedi. The witness further deposed that vide his letter Ex. PW 20/B, he had replied these queries in detail.

24.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that as per the record brought by him, there was no land/ property in the name of the accused Shiv Murat which was the self acquired property. The witness further replied that the land of the temple located in village Chamroha which was being constructed was in the name of Sh. Baccha Lal Dwivedi. The witness further replied that there was no hospital in the name of the accused or his family members as mentioned at Serial no. 6 A on Ex. PW 20/A. 24.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to him.

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25. PW 21: Sh. K.C. Mistry:- He was the Manager, State Bank of Bikaner and Jaipur, Branch Safdarjung Enclave, New Delhi. He had produced the record pertaining to Account No. 61070724277 which was in the name of accused Parveen Kumar. He had identified the record from 29.04.2009 to 09.07.2010 which was available in the judicial file and was correct and witness had identified the same as Ex. PW 21/A. The witness also produced and identified the latest accounts statement of that account as Ex. PW 21/B. 25.1. This witness was cross examined on behalf of the accused Praveen Kumar wherein the witness had replied that the bank maintained the accounts of the accused Praveen Kumar. He replied that he had not certified the record Ex. PW 21/B. The witness voluntarily replied that it could be certified by the bank. The witness further replied that it was a computer generated statement.

25.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, the opportunity was granted to the accused.

26. PW 22: Sh. Inderbir Singh Gujral:- He was the branch Manager, Kotak Mahindra Bank, Safdarjung Enclave Branch, New Delhi. He had produced the record pertaining to Account No. 01750010013340 which was in the name one Praveen Kumar. The witness had identified the record as Ex. PW 22/A. The witness had also produced and identified the latest accounts statement of that account as Ex. PW 22/B. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 26 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:40 +0530 26.1. This witness was cross examined on behalf of the accused Praveen Kumar wherein the witness replied that the documents Ex. PW 22/A were issued by the Saket Branch but the same would not make any difference. The witness further replied that he had not brought any certificate with regard to the record produced by him. The witness further replied that this account was maintained by the concerned team of the bank.

26.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, opportunity was granted to the accused.

27. PW 23: Sh. Mukesh Kumar:- He deposed that there was a Sai Baba temple in his neighbourhood. The witness further deposed that he did not know exactly what might be the daily chadawa on the temple, but he could guess it was Rs. 200 - 300/- daily and this amount was spent on the water and electricity expenses of the temple.

27.1. This witness was not cross examined on behalf the accused persons, however, opportunity was granted to the accused persons.

28. PW 24: Sh. M.N. Vijayan:- He was the Nodal Officer Tata Telly Services. He deposed that he had seen the mobile bills of the mobile phone number 921510687 and 011- 64715799 which was in the name of the accused Shiv Murat Dwivedi and Bhima Nand Maharaj respectively. The witness had identified the computerized generated original bills as Ex. PW 24/A and Ex. PW 24/B SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 27 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:47 +0530 respectively.

28.1. This witness was not cross examined on behalf the accused persons, however, opportunity was granted to the accused persons.

29. PW 25: SI Sanjay Sharma:- He deposed that on 25.02.2010, he was the member of the raiding party when accused persons namely Shiv Murat Dwivedi and Praveen Kumar along with six girls were arrested in case FIR No. 47/10 PS Saket. The witness further deposed that he had acted as a decoy customer in that case. The witness had identified his detailed statement in case FIR No. 47/10 in the trial court. The witness had identified the accused persons in the court correctly.

29.1. This witness was cross examined on behalf of the accused Praveen wherein the witness replied that he did not know whether any other case was pending against the accused Parveen Kumar under ITP act besides FIR No. 47/10. He further replied that he had seen the judicial record and his statement was recorded in the trial court was not there.

29.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that on 25.02.2010, the informer had given the information to the SHO, however, he did not know the exact place where the said information was shared by the informer to the SHO. The witness further relied that he did not see the informer coming to the police station. The SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 28 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:18:53 +0530 witness further replied that however, the informer had accompanied them while the raiding party had left the police station. The witness further replied that the raiding party had left the police station at around 08.40 pm on the said date. The witness further replied that the ACP had reached the spot at about 09.15 pm. The witness further replied that the ACP briefed the raiding party for about 10- 15 minutes. The witness further replied that the informer had informed that the accused persons would be coming in the Honda Cars. The witness further replied that while he and Inspector Dalip had approached the accused persons, the raiding party was hiding in the PVR complex, however, their exact location was not known to him. The witness further replied that at the time of raid, there were various other vehicles and people were at the spot and the area was cordoned off by the raiding party.

29.3. The witness further replied that his personal search was conducted at about 10.05 pm, however, he did not remember as to how many cars were present except the car of the accused at that time at the spot. The witness further replied that street light was located at a distance of around 10-15 meters from the position of the car of the accused. He further replied that the accused Shiv Murat was in Honda City car. He further replied that both the cars were at a distance of 2-3 steps. He further replied that in front, Honda City car was parked.

29.4. He further replied that the accused Shiv Murat was wearing jeans and t-shirt on the said date of incident. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 29 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:00 +0530 He further replied that the colour of the T-shirt was white however, the colour of the jeans he did not remember. He further replied that the money given by him was kept by the accused Shiv Murat in his pant pocket. He further replied that the tehrir was prepared by the IO Inspector Pankaj Singh. He further replied that the Ct. Saudan took the rukka from the spot to the PS at about 11.55 PM. He further replied that he did not know how Ct. Saudan took the rukka to the PS. He further replied that he did not know whether Ct. Saudan took it on a four wheeler or a two wheeler. He further replied that the IO had asked the public persons to participate during the arrest and search however, no one had joined the proceedings.

29.5. He further replied that in front of him, no notice was given to any public person by the IO. He further replied that he was under training at the PS on 25.02.2010 and used to be in the police station. He further replied that he did not remember on 25.02.2010 what other duties he had

performed in the police station. He further replied that he had a training schedule which clearly contained the duties performed by him on day to day basis. He further replied that however, he did not know whether that training schedule formed the part of this case or not.

29.6. The witness had denied the suggestion that the ACP Mehar Singh never visited the spot. He further denied the suggestion that he was deliberately being ignorant about his duty on he said date as the accused persons were arrested from some other spot. He further denied the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 30 of 186 RAVINDRA Digitally signed by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:07 +0530 suggestion that they had arrested the accused from South Extension while he was shopping much prior to the incident narrated above. He further replied that he did not remember what all the articles were recovered from him while his personal search was conducted in front of him by the IO. He further replied that personal search of the accused Shiv Murat was conducted in front of him by the IO. He further replied that about Rs. 16,000/- in cash, a 20 dollar currency bill, again said around 300 dollars, one RC, one DL, one PAN Card, two mobile phones and one diamond ring were recovered from the personal search of the accused Shiv Murat Dwivedi. He further replied that while he was dealing with the accused Shiv Murat neither did the accused nor he had discussed the place where the girl/ girls were to be taken after finalising the deal. He further replied that he did not remember whether in his personal search his mobile phone was also taken away. He further replied that the cars of the accused were halted in front of the community hall.

29.7. He further replied that he did not remember the name of the said community hall. He further replied that the briefing of the raiding party was conducted in PVR complex at a distance of 10-15 meters right from the ticket counter. He further replied that rest all the members of the raiding party were in their uniform except for him and Inspector Dalip. He further replied that he did not remember whether the cars of the accused were facing towards Malviya Nagar or M.B. Road. Witness again replied that the cars of the accused were facing towards SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 31 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:13 +0530 Malviya Nagar. He further replied that they did not visit the house of the accused Shiv Murat at Khanpur.

29.8. This witness was cross examined on behalf of the accused Parveen wherein the witness had denied the suggestion that accused Praveen was not arrested from the spot and his arrested was effected from Patiala House Court. He replied that ACP Mehar Singh had reached at the spot at around 09.15 pm on that day and raiding party had reached at the spot at about 08.55 pm. The witness denied the suggestion that accused Praveen was not arrested from the spot or he was not involved in any offence along with the accused Shiv Murat Dwivedi.

30. PW 26: Sh. Rajesh Jain:- He deposed that he was having the shop No. 1-C, Central Road, Bhogal, New Delhi and he had identified the cash memo as Ex. PW 26/A. He deposed that the cash memo was issued to one Shiv Murat against the sale of gold ornaments for a sum of Rs. 12,000/-. He further deposed that he could not identify the customer as the sale was done in the routine business.

30.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the police had made enquiry regarding this bill issued by him at his shop but he did not remember the date. The witness further replied that it might have happened two - three years ago. The witness had denied the suggestion that Ex. PW 26/A was a fabricated bill which was prepared by him at the instance of the police and upon this, signature of the accused were obtained at SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 32 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:19 +0530 later stage.

30.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

31. PW 27: Sh. Manoj Aggarwal: He deposed that he was running a store by the name of Ganesh Store. He further deposed that he was regularly supplying the goods to Sai Mandir which was nearby his store. He had identified the receipt Ex. PW 27/A which was issued against the supply of such goods.

31.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he had given a similar statement to the police but he did not remember the date. The witness further replied that he did not write that statement. The witness further replied that the statement was recorded through phone. The witness further replied that he did not mention in his statement to the police that goods were supplied to Sai Mandir. The witness further replied that he did not mention the name of the customer in the bills. The witness had denied the suggestion that this bill was not issued for Sai Mandir. The witness further replied that this bill was in his handwriting.

31.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

32. PW 28: Sh. Devender Bansal: This witness was from SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 33 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:26 +0530 Bansal Electronics at Devli Road, Khanpur, Delhi. He had identified the bills Ex. PW 28/A, Ex. PW 28/B, Ex. PW 28/C which were issued in the name of Shiv Murat Dwivedi against the sale of TV and Mobile phones.

32.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the signature at point A on the bill Ex. PW 28/A were of himself. He replied that he could identify the accused Shiv Murat Dwivedi. The witness had denied the suggestion that Ex. PW 28/A, Ex. PW 28/B were issued to some other person by the name of Shiva and did not pertain to the accused Shiv Murat Dwivedi.

32.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

33. PW 29: Sh. Gurmeet Singh Kocchar: He had identified the Lease Agreement as Ex. PW 29/A which was executed between his father and the accused Parveen. The witness had correctly identified the accused in the court. The witness further deposed that vide this agreement, accused Parveen took their house on rent at a monthly rent of Rs. 22,000/- per month. He further deposed that accused Parveen had stayed as a tenant for about 4-5 months before he was arrested.

33.1. This witness was not cross examined on behalf of the accused persons, however, opportunity was granted to the accused persons.

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34. PW 30: Sh. Dushyant:- He deposed that accused Shiv Murat Dwivedi had stayed as a tenant on the first floor of their house at H.No. 130, Village Hamayunpur. He further deposed that accused used to pay Rs. 5000/- per month as rent, although, the normal rent was Rs. 8000/- per month but on the request of the accused, his grand father had reduced his rent for a sum of Rs. 5000/- per month. The witness further deposed that they were told by the accused that the flat would be used for the trust business. The witness further deposed that later on, they had come to know that the accused was arrested under ITP Act.

34.1. This witness has been cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he had not given any statement to the police in this case. The witness further replied that the accused did not take the flat on rent for one year. The witness further replied that the expenses of electricity and water were included in the rent of Rs. 5000/-.

34.2. He further replied that after two months the accused had left the rented accommodation on his own. The witness further replied that he did not ask him to vacate it. The witness further replied that he had never stated to the police that prostitution was carried out in the rented out flat to the accused.

34.3. The witness further replied that Hawan and Pooja used to be done occasionally in the rented out flat. The witness further replied that in fact, on one occasion, there was a complaint that the speaker was too loud during SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 35 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:19:45 +0530 the Hawan ceremony.

34.4. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

35. PW 31: Sh. Amulya K. Patnaik:- He was the Addl.

Director General of Police from Mizoram. He deposed that on 16.08.2010, he was posted as Joint commissioner of Police Southern Range, Delhi, when ACP Hauz Khas had produced before him the

case file of the FIR No. 54/10 of PS Saket through DCP South. He further deposed that he had perused the entire record and after satisfying himself that it was a fit case for according the sanction for prosecution of the accused under MCOC Act, he had accorded the requisite sanction. The witness had identified the same as Ex. PW 31/A. 35.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the case details of the previous involvement of accused was perused by him when the record was produced. The witness further replied that there were more than two cases against the accused persons, however, he could not give exact number of cases against the accused persons were involved. He further replied that those offences were related to the cheating and sex racket. He denied the suggestion that he did not go to the record before according sanction and the sanction was accorded in mechanical manner.

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36. No witness with the PW No. 32 was examined during the trial.

37. PW 33:- Sh. Vivek Khurana:- He was the Branch Manager, HDFC Bank, E-143, Saket, New Delhi. He had identified the record i.e., certified copy of the statement of the account No. 00881370001348 maintained by Shiv Murat Dwivedi maintained in HDFC Bank having branch in Sector-18, Noida as Ex. PW 33/A. He further identified the record of forwarding letter vide which the said statement of the account was forwarded to the ACP concerned as Ex. PW 33/B. The witness had identified the signature of Sh. Pulkit Sharma, the then Branch Operation Manager as he had worked with him as his subordinate.

37.1. The witness further deposed that he had also bought another set of certified copy of the aforementioned statement of account which was retained on record. The witness had identified the same as Ex. PW 33/C. 37.2. The witness had produced the summoned record in respect of account no. 00431930004780 maintained at HDFC, Saket Branch in the name of Parveen Kumar. The witness further deposed that the account statement pertain to the period from 24.04.2009 to 30.06.2013 as per which the aforementioned account had SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 37 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:11 +0530 been blocked. The witness further deposed that the said account statement pertained to Parveen Kumar consisting of five pages and identified the same as Ex. PW 33/D. 37.3. This witness was cross examined on behalf of the accused Shiv Muart Dwivedi wherein the witness had replied that he had never been posted at HDFC Branch at Sector 18, NOIDA. The witness further replied that the account was blocked in the year 2010 and the loan instalments which were to be paid by the accused got bounced. The witness further replied that he could not comment upon as to for what purpose for loan was availed by the accused.

37.4. This witness was cross examined on behalf of the accused Parveen Kumar wherein the witness replied that he had no personal knowledge of the account in question or the entries made therein.

38. PW 32: Ms. Abha:- She was the Officer, OBC bank, RPA, Sector-II, Gurugram, Haryana. She had produced the certified copy of the statement of account no. 52252151006087 pertained to the period from 23.05.2008 to 13.08.2013 as per which, the said account was in the name of Parveen S/o Sh. Ram Narayan, R/o H.No. 91, Block-I, Village G, Gurugram, Haryana. The witness had identified the certified copy of the said statement of the account as Ex. PW 31/A. The witness had identified the record of the photocopy of the passbook on judicial record of the said account number in the name of Sh. Parveen and identified the same as Ex. PW 32/B. The witness further SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 38 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:24 +0530 produced the required documents vide forwarding letter given by Sh. Rajender Bhardwaj as Ex. PW 32/C. 38.1. This witness was cross examined on behalf of the accused Parveen Kumar wherein the witness had admitted that he had never seen the photocopy of the statement of account pertaining to the above mentioned account. The witness further replied that he had not compared the photocopy of the statement of the account produced by him in the court. The witness had voluntarily replied that the entries revealed the same in the certified copy as well as photocopy. The witness further replied that the certified copy brought by him was updated. The witness had admitted that the photocopy of the passbook was not updated and the same pertained to the relevant period only.

38.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, opportunity was granted to the accused.

39. PW 34: Sh. Gopal Dass:- He deposed that he had been residing in Jawahar park area for the last 32 years and he was also running the Welfare Association of the area. The witness further deposed that there was a temple by the name of the Sai Mandir situated at C-123, Jawahar Park. The witness further deposed that the affairs of the said mandir was being looked after by one Swami Shiva. The witness further replied that several public persons used to visit the said mandir. The witness further deposed that he did not know as to how much offerings in the shape of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 39 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:30 +0530 money used to be received in the mandir.

39.1. The witness further deposed that about 2 1/2 years back from that day, the police officials had come to make inquiry from him regarding who was running the said mandir and whatever was in his knowledge, he had narrated to the police. He further deposed that he did not know what type of a person Shiva was and in what activities he was involved and he was having a good character. The witness further deposed that through Media, he had only come to know that once Lord Ganesh appeared in the said temple. The witness had identified the said Shiva in the court correctly. The witness further deposed that the police had written certain lines and he had signed below it.

39.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he was the General Secretary of Welfare and Cultural Association, Jawahar Park and Blocks B, C, D and E were covered by the said Association. He further replied that the residents living in the said areas had voted in the association elections for electing Executive Committee. The witness further replied that he had fair idea of the people living in the said area.

39.3. This witness was not cross examined on behalf of the accused Parveen, however, the opportunity was granted to the accused.

40. PW 35: SI Parveen Kumar :- He deposed that on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 40 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:36 +0530 19.03.2010, he was posted at PS Saket and on that day, accused Shiv Murat Dwivedi was formally arrested by the IO/ ACP Mehar Singh and IO had made enquiries and interrogation from the accused regarding his involvement in the flash trade business and disclosure statement of the accused Shiv Murat Dwivedi was recorded and witness had identified the same as Ex. PW 35/A. The witness had identified the accused in the court correctly.

40.1. The witness further deposed that thereafter, he had again joined the investigation of this case with ACP Mehar Singh on 31.07.2010 and accused Parveen Kumar was arrested by the IO in this case and identified the memo as Ex. PW 35/B and his personal search was conducted and identified the memo of the same as Ex. PW 35/C. The witness had identified the disclosure statement of the accused Parveen Kumar as Ex. PW 35/D. The witness had identified the accused Parveen correctly in the court. The witness further deposed that the accused Parveen Kumar got recovered two mobile phones and two registration certificates of the vehicles, which he had been using in the business of Flash trade and cash of Rs. 30,330/- which he had disclosed to have obtained from the business of flash trade.

40.2. The witness further deposed that the accused Parveen had also given his pan card. The witness further deposed that all these articles and money were seized and memo was prepared and witness had identified the same as Ex. PW 35/E. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 41 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:42 +0530 40.3. The witness further deposed that on the next day, accused Parveen Kumar was again interrogated wherein he had disclosed that he used to give advertisements in various newspapers like Times of India, Hindustan Times for providing Escort Services/ Message Services. He further deposed that the accused Parveen had also disclosed that he had provided Rs. 10 lakh to his friend Manoj for buying flats. He had identified the supplementary disclosure statement of the accused Parveen as Ex. PW 35/F. 40.4. The witness further deposed that on 02.08.2010, accused Parveen took them to his house at Gautam Nagar from where he got recovered two diaries and one delta exercise book with some loose papers, which contained the details of various contacts relating to the flash trade business of the accused and the same were seized and seizure memo was prepared as Ex. PW 35/G. 40.5. The witness had identified the registration certificates in unsealed condition of vehicle no. DL 4C AA 0300 and vehicle No. DL 3C BP 0243 in the name of the accused Parveen Kumar stated to be recovered from

his house as Ex. P-1 and Ex. P-2.

40.6. The witness further identified the PAN card in unsealed condition in the name of the accused Parveen Kumar stated to be recovered from the house of the accused Parveen as Ex. P-3.

40.7. The witness further identified the two mobile SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 42 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:49 +0530 phones make NOKIA in unsealed condition stated to be recovered from the house of the accused Parveen as Ex. P-4.

40.8. The witness further identified the currency notes of Rs. 30,330/- in the denomination of currency notes of Rs. 1000/-, Rs. 500/-, Rs. 100/- and Rs. 10/- which were recovered from the house of the accused Parveen as Ex. P-6.

40.9. The witness had identified the two diaries, one of which was bearing writing built matrices (Black colour) and another bearing Surya Note Book containing eleven loose papers (brown colour) and note bearing mark Delta (in unsealed condition) as Ex. PW P-7, Ex. P-8 and Ex. PW P-9.

40.10. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that he did not remember how many times his statements were recorded in the present case and he did not know for what purpose accused Praveen Kumar came to the police station on 31.07.2010 when he was arrested in the present case. He further replied that he did not know whether IO had given any notice or intimation to the accused Praveen Kumar to come to the PS Saket.

40.11. The witness had admitted that on 31.07.2010, accused Praveen was on bail in other matter and he was arrested earlier in FIR No. 47/2010 PS Saket. The witness denied the suggestion that he was not present at the time of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 43 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:21:55 +0530 the arrest of the accused. The witness replied that he did not remember the particular place in the house of the accused Praveen Kumar from where diaries and note books were recovered and he replied that he did not know if it was a flat, jhuggi or individual house.

40.12. The witness further replied that he did not know if the IO had given any notice to the any neighbour at Gautam Nagar before conducting the search at the house of the accused Praveen. The witness denied the suggestion that he did not go to the house of accused Praveen, therefore, he did not recollect any detail about the house of the accused.

40.13. During the cross examination on behalf of the accused Shiv Murat Dwivedi, the witness replied that he could not tell the time when the disclosure statement of the accused Shiv Murat was recorded, however it was recorded on 19.07.2010 in his presence. The witness denied the suggestion that no such disclosure statement was made by the accused Shiv Murat and the alleged disclosure

statement was fabricated by the investigating officer.

41. PW 36: Sh. Ram Kishore: He deposed that he was having Flat No. 239, Sector -3, R.K. Puram which was allotted in his name. He deposed that he did not give this house to anyone. He further deposed that he had surrendered this house to the Government.

41.1. This witness was not cross examined on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 44 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:22:02 +0530 behalf of the accused persons, however, the opportunity was granted to the accused persons.

42. PW 37: Ramesh Chander Gupta:- He deposed that his brother looked after the cement shop which was situated at Station Raod, Manikpur, Uttar Pradesh. He further deposed that he could not tell what goods were supplied from the shop.

42.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to the accused persons.

43. PW 38: Samrat Singh: He deposed that he knew the accused Shiv Murat Dwivedi and correctly identified him in the court as he had also belonged to the Manikpur. The witness further deposed that he did not have any money transaction with him.

43.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to the accused persons.

44. PW 39: Sh. Rajesh @ Shyam:- He deposed that he had run a tent house business by the name of Shyam Tent House at Allahabad Road. He further deposed that he had sent the tent house goods to Chamroha village in some religious function which was arranged by some villagers. The witness further deposed that those persons made the payment of Rs. 4500/- plus cartage.

44.1. This witness was cross examined on behalf of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 45 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:08 +0530 the accused Shiv Murat Dwivedi wherein the witness had replied that the said religious function was organised by the villagers and not exclusively by the accused Shiv Murat Dwivedi.

44.2. This witness was not cross examined on behalf of the accused Parveen, however, the opportunity was granted to the accused.

45. PW 40: Sh. Alok Jaiswal:- He deposed that he was having a Kiryana Shop in Manikpur. He further deposed that some Bhandara was done at Chamroha but no major goods were supplied by him. He further deposed that he had sent the goods worth Rs. 3000/- - Rs. 4000/- only which were

being paid to him by the villagers to arrange the bhandara.

45.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness deposed that the amount of Rs. 60/70,000/- which had come into his account was not merely deposited by accused Shiv Murat Dwivedi, but in fact was a contribution of the village people together.

45.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

46. PW 41: Sh. Vijay Kumar:- He deposed that he was the owner of the H.No. F-19, Second Floor, Arjun Nagar which was given on rent to one Parveen Kumar. He had identified the copy of the Lease Deed as Ex. PW 41/A. He further deposed that this property was given on lease for a SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 46 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:15 +0530 sum of Rs. 30000/- and a security of Rs. 60,000/- was taken. He further deposed that he had come to know that Parveen was an associate of one Shiv Murat Dwivedi, although he did not meet him.

46.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he did not give any statement to the police, however, he was called by the police at PS Saket. He further replied that he did not mention any amount regarding the electricity and water bill to the police. The witness further replied that he had never seen the accused Shiv Murat Dwivedi. He replied that he did not know the accused Shiv Murat Dwivedi ever lived or visited to the house.

46.2. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that he did not reside on his house which was given on rent. The witness further replied that he had come to know about the fact of association between Parveen and Shiv Murat Dwivedi when raid was conducted at the house which was given on lease by him. The witness voluntarily replied that nothing was found in this house. The witness further replied that he had come to know about this association from the neighbours. The witness further replied that he did not see the accused Parveen with the accused Shiv Murat Dwivedi at any point of time by himself.

47. PW 42: Sh. Navjot Singh Ahluwalia: He deposed that as SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 47 of 186 RAVINDRA Digitally RAVINDRA signed by KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 PANDEY 12:22:21 +0530 far as he remembered, one Javed Khan along with one Parveen Kumar made an arrangement with them that they would pay a monthly sum of Rs. 1.5 to 1.75 lakh per month to them for sale of rooms in their hotel. The witness further deposed that this arrangement was made in the month of August to October, 2009, however, the arrangement could not be continued for two - three months as these people backed out from the deal. The witness further deposed that a sum of Rs. 2.5 lakh were deposited as security with them.

47.1. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that basically, Mr. Javed was dealing with them and he was the main contact person. The witness had admitted the suggestion that the accused Parveen Kumar had never dealt with them except he had made payment on behalf of Mr. Javed.

47.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, the opportunity was granted to the accused.

48. PW 43: Sh. Rajiv Gupta:- He deposed that he was running the business for the sale of silver utensils, jewellery etc at Prithvi Raj Chowk, Partner of M/s Shri Ram Hari Ram at 1658/59, Dariba Kalan, Delhi. He had identified the original receipt as Ex. PW 43/A dated 10.02.2003 which was issued from their showroom and he had stated the same to be correct. He further deposed that vide that receipt, a sale of Rs. 46,388/89 was made against the sale SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 48 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:27 +0530 of Silver Article namely, Chattar.

48.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he was one of the fourth partners in the above said business enterprise. He further replied that Ex. PW 43/A did not bear his signature. The witness further replied that the sale pertaining to Ex. PW 43/A did not occur in his presence. The witness further replied that he did not know as to who had purchased the said silver chattar. The witness further replied that he did not know whose signature were at point A on the Ex. PW 43/A. He further replied that the said exhibit was the original of the bill pertaining to the sale.

48.2. The witness had denied the suggestion that Ex. PW 43/A was a false and fabricated document created at the behest of the police and therefore, the correction / alteration on the bill number exists.

48.3. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

49. PW 44: Sh. Darshan Lal Sachdeva: He deposed that one Rozy madam made a deal of H.No. C-120/1, Jawahar Park with them as she had given a Power of Attorney to them against some money transaction with her. He further deposed that the said madam was having the right to sell that house. He further deposed that on the asking of Rozy madam, GPA of this house was made in favour of the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 49 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:37 +0530 accused Shiv Murat Dwivedi. The witness further deposed that Rozy madam had cleared their account by taking money from the accused Shiv Murat. The witness further deposed he did not know if the money was taken from the accused Shiv Murat by Rozy Madam.

49.1. This witness was not cross examined on behalf of the accused persons, however, the opportunity was granted to the accused persons.

50. PW 45: Sh. Ashok Kumar Gandhi: This witness had identified the bill Ex. PW 45/A which was issued by their shop to one Shiv Murat Dwivedi for purchase of electronic goods for Rs. 14,700/-.

50.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he did not know who had issued the bill Ex. PW 45/A, however, the same has been issued by someone from their shop. He further replied that he did not know the accused Shiv Murat Dwivedi.

50.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

51. PW 46: Sh. S.K. Khanna:- He had identified the cash bill Ex. PW 46/A which was issued from their shop against the sale of a music system of Aiwa make for a sum of Rs. 8500/-.

51.1. This witness was cross examined on behalf of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 50 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:45 +0530 the accused Shiv Murat Dwivedi wherein the witness had replied that he did not know as to who was the customer who brought the electronic item mentioned in Ex. PW 46/A. 51.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

52. PW 47: Sh. Liyakat Ali: He was the Regional Manager, Just Dial Pvt. Ltd. He deposed that he had submitted the contract copy of the Rajdhani Body Massage Centre to the IO of the PS Saket and identified his letter as Ex. PW 47/A. He had also identified the documents submitted by him running into six pages as Ex. PW 47/A-1 to Ex. PW 47/A-6.

52.1. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that he had no personal knowledge about the documents Ex. PW 47/A-1 to Ex. PW 47/A-6. He further replied that these documents were not the original. The witness further replied that the company had authorised him to issue Ex. PW 47/A. The witness further replied that he had not handed over the authorisation letter issued by the company in his favour along with Ex. PW 47/A. 52.2. The witness had denied the suggestion that he had never been authorised by the company to issue Ex. PW 47/A and therefore, he had not filed the same with the IO. The witness further replied that he had not made any SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 51 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:51 +0530 statement to the police concerning the above matter.

52.3. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, opportunity was granted to the accused.

53. PW 48: Sh. Manoj Methew: He was the Assistant Manager, Muthoot Finance Ltd.. He had produced the record pertaining to the loan amount of Shiv Murat Dwivedi. He deposed that as per record he was granted the loan of Rs. 1,99,900/- against the mortgage of gold ornaments. He had identified the letter to this effect written to the ACP Sh. Mehar Singh as Ex. PW 48/A. He further identified the copies of the relevant documents of loan as Ex. PW 48/A1 to Ex. PW 48/A-4.

53.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that they did not take photographs of the gold ornaments(s) deposited with them while availing loan by any of the customer. The witness further replied that they also did not seek any bill/ invoice regarding the gold pledged. The witness further replied that the loan was sanctioned to the accused on 27.10.2009. The witness further replied that he had not brought those gold ornaments in the court. The witness further replied that he had been transferred to that branch, so he did not know about the status of the loan. He further replied that he did not know whether the hand chain and the ring pledged by the accused belonged to male or female.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 52 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:22:58 +0530 53.2. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was granted to the accused.

54. PW 49: Inspector Dalip Kumar:- He deposed that on 25.02.2010, he was posted at PS Saket as Sub Inspector when Inspector Pankaj Singh had formed a raiding party as he was having some information regarding prostitution racket being run by some persons. The witness further deposed that he had also joined the raiding party along with other police officials. He deposed that SI Sanjay Sharma was deputed as decoy customer to strike a deal with the person involved in prostitution. He further deposed that he was given signed currency note of Rs. 5000/- and a trap was laid at PVR Saket. The witness had correctly identified both the accused persons in the court correctly during his examination.

54.1. The witness further deposed that both the accused persons brought six girls in two different vehicles. He further deposed that SI Sanjay Sharma struck a deal with them and handed over a sum of Rs. 3000/- to Shiv Murat and Rs. 2000/- to Parveen. He further deposed that after getting the pre-fixed signal, they overpowered the accused persons. The witness further deposed that subsequently at the instance of Inspector Pankaj, FIR No. 47/10 was registered at PS Saket. He further deposed that Trial of that FIR was going on in the trial court in which his deposition was going on. He further deposed that later on MCOC Act was invoked against both the accused SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 53 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:04 +0530 persons.

54.2. He further deposed that he had also joined the investigation of this case on 07.03.2010 when certain registered diaries and documents were seized at the instance of the accused Shiv Muart Dwivedi from his house and other places. He further deposed that certain documents and diaries were also seized ie., Honda City Car in which the accused Shiv Murat Dwivedi had reached to PVR

Saket along with girls. The witness had identified the seizure memo Ex. PW 49/A of Honda City Car.

54.3. The witness had identified the the magazines as Ex. PW 49/A1, CDs as Ex. PW 49/A2, Register as Ex. PW 49/A3, Dhoties as Ex. PW 49/A4, ten packets of calendar cards as Ex. PW 49/A5, an album containing photographs as Ex. PW 49/A6, two DVDs as Ex. PW 49/A7, religious book as Ex. PW 49/A-8, diary as Ex. PW 49/A9, 100 pamphlets as Ex. PW 49/A-10 collectively.

54.4. He further deposed that one suitcase was also seized from the car of the accused Shiv Murat Dwivedi carrying Rs. 1,55,000/- in cash and another foreign currency, besides one statue/ pendant of Sai Baba, one phone of Samsung. He had identified the suitcase carrying these articles as Ex. PW 49/B1 and seizure memo was prepared as Ex. PW 49/B. He further identified the seizure memo of Honda Car of the accused as Ex. PW 49/C. 54.5. He further deposed that on 25.02.2010, the Honda Civic car no. DL 4C A 0300 of the accused Parveen SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 54 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:10 +0530 Kumar and Honda City car No. DL 7C F 2115 from the accused Shiv Murat Dwivedi were also seized from the spot. He further deposed that he had again joined the investigation on 07.03.2010 when the accused persons namely Shiv Murat Dwivedi and Parveen Kumar were on the police remand in FIR No. 47/10 PS Saket. He further deposed that the accused Shiv Murat Dwivedi had taken the police team to the H.No. C-120/1, Jawahar Park, Develi Road, Khanpur, New Delhi. He further deposed that from the above said address, accused Shiv Murat Dwivedi had got recovered various documents pertaining to the bills, account numbers and documents of the properties, LIC policies and documents related to the different type of expenditures. He further deposed that these documents were around 50 in number. The witness further deposed that these documents were also seized.

54.6. The witness further deposed that thereafter, the accused Parveen Kumar had taken the police team to O-5, Ground Floor, C.R. Park and from the said house, some documents related to the bank accounts and the telephone numbers of the various people including that of pimps and customers and details of expenditures mentioned on the papers were also recovered. He further deposed that the said documents were also seized from the house of the accused Parveen. He further deposed that thereafter, his statement was recorded.

54.7. The witness had identified the recovery memo of documents recovered at the instance of the accused SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 55 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:19 +0530 Praveen as Ex. PW 49/D, Ex. PW 49/D-1 to Ex PW 49/D-13 and seizure memo of the documents as Ex. PW 49/E which was the recovery memo of the register, diary and other documents and same were identified by the witness as Ex. PW 49/F-1 to Ex. PW 49/F-48. He further identified the Ex. PW 49/F which was the recovery memo of the documents recovered at the instance of the accused Shiv Murat Dwivedi. He further identified the Ex. PW 49/F-1 to Ex. PW 49/F-48. He further identified the recovery memo of the currency notes recovered in case FIR No. 49/10 as Ex. PW 49/G. He further identified the supplementary disclosure statement of the accused Shiv Murat Dwivedi as Ex. PW 49/H. 54.8. The witness had also identified the vehicle Honda City car No. DL 7C F 2115 as Ex. PH as well as Honda Civic car bearing

registration no. DL4CAA0300 as Ex. PHC.

54.9. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that secret informer met with the SHO and thereafter he had introduced him with the witness and other police officials. The witness further replied that at about 08.45 pm, the raiding party had left for the spot vide DD No. 28-A. He further replied that Inspector Pankaj was in uniform and the witness was also in his uniform before leaving the police station for the spot. He further replied that SI Sanjay was also in the uniform before leaving the police station for the spot. The witness further replied that SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 56 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:26 +0530 witness had changed his uniform between 08.30 - 08.45 pm at the police station. He further replied that the ACP Mehar Singh came at the spot in his official vehicle and he was in the uniform.

54.10. He replied that at around 10.00 pm, Honda City car of the accused Shiv Murat came at the spot and accused Shiv Murat was on the driver seat and the accused Shalini was sitting next to the accused on the front seat and Shashi Prabha and Raina were sitting at the back seat of the car. He further replied that the personal search of the witness was not conducted before he left to the spot from the police station and even thereafter and personal search of the SI Sanjay was conducted at the place where the briefing was done by the ACP.

54.11. He further replied that while SI Sanjay was striking the deal with accused Shiv Murat, witness was standing immediately next to him. He further replied that on being asked by the accused Shiv Murat as to where the girl would be taken for sexual purposes, SI Sanjay said that he would arrange the place for that, however, no specific place was mentioned by the SI Sanjay. He further replied that the deal was regarding the one programme i.e., sexual intercourse for one time and the said deal was being undertaken for two girls for both of them i.e., witness and SI Sanjay.

54.12. He further replied that rukka was handed over to Ct. Sodan who took it to the police station. He further replied that the belongings which were recovered SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 57 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:35 +0530 from the boot of the car of the accused were not sealed.

54.13. He further replied that on 07.03.2010, he along with Inspector Pankaj, SI Praveen and other team members and both the accused persons went to flat no. C-120/1, 1st floor, Jawahar Park, however he did not remember the detail of the storeys of the building. He further replied that the said flat was opened by Pujari and about 50-60 documents related to the accused Shiv Murat were recovered. The witness denied the suggestion that he deposed falsely.

54.14. During the cross examination on behalf of the accused Praveen Kumar, the witness denied the suggestion that the accused Praveen Kumar was not arrested from the spot or police team did not visit to his house. He further replied that the accused Praveen was living in a rented accommodation. He further denied the suggestion that Rs. 2000/- were not recovered from the

possession of the accused Praveen or the same were planted upon the accused. The witness denied the suggestion that the police team never visited the residence of the accused Praveen at CR Park and nothing was recovered from there.

55. PW 50: Inspector Dharam Dev: He deposed that in the month of July, 2020, he was deputed by the ACP Mehar Singh to serve the notices under Section 160 Cr.PC to different witnesses and accordingly, he had served the same. He further deposed that the witnesses served by him, had joined the investigation and their statements were SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 58 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:43 +0530 recorded by the IO.

55.1. He further deposed that prior to that, he was also a member of the raiding party formed by the Inspector Pankaj on 25.02.2010 when he was posted at PS Saket. He further deposed that on that day, both the accused persons namely Parveen and Shiv Murat Dwivedi were arrested as they had produced the girls for the purpose of prostitution to SI Sanjay Sharma who was deputed as a decoy customer to strike a deal with the accused persons. He further deposed that subsequently, a case FIR No. 47/10 was registered against both the accused persons at PS Saket. He further deposed that recovery of currency note were handed over to the accused persons by SI Sanjay Sharma were also effected. He further deposed that accused persons with all six girls were arrested under Section 3, 4 and 5 of the ITP Act.

55.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he was not aware how Inspector Pankaj Singh had gathered the knowledge about the prostitution being going on in that area on that day. He further replied that he was in civil dress. He further replied that he did not remember whether SHO, SI Sanjay Sharma, SI Dalip and other police staff were in civil dress or in the uniform. He further replied that SI Sanjay Sharma was made as customer and SI Dilip was a shadow witness and both were in Civil Dress. He further replied that he did not know whether any personal search of SI Dilip or SI SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 59 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:48 +0530 Sanjay Sharma was conducted. He further replied that ACP Mehar Singh was in the Civil Dress. He further replied that he did not remember whether there was any female staff in the raiding team.

55.3. He denied the suggestion that he was not the member of the raiding team on 25.02.2010 as no raiding team was formed or he deposed falsely.

55.4. During the cross examination of accused Praveen Kumar, the witness had admitted that he was not present at the time and accused Praveen Kumar was apprehended and arrested. He denied the suggestion that he had not seen the accused Praveen Kumar at the spot or that he was not the member of the raiding team.

56. PW 51 : HC Rajesh Kumar: He deposed that he was posted in the office of DCP, West District Sh. Sharad Aggarwal in the month of August, 2010 when the statement of the accused Parveen was recorded by him. He further deposed that he had recorded the statement in Hindi language on the computer. The witness had identified the proceedings and the statement recorded by the DCP Sh. Sharad Agarwal as Ex. PW 51/A. 56.1. He further deposed that he was called inside the office of DCP Sh. Sharad Aggarwal and at that time, accused Parveen was present along with him. He further deposed that he was asked by Sh. Sharad Aggarwal to sit on the computer and record the statement. He further deposed that whatever, was stated by the accused Parveen SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 60 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:23:54 +0530 was recorded by him in Hindi Language on computer. The witness had identified the accused Parveen in the court correctly.

56.2. This witness was cross examined on behalf of the accused Parveen wherein he denied the suggestion that he did not record the statement of the accused Praveen Kumar or that he had signed the document on the instructions of the DCP. He further denied the suggestion that he deposed falsely.

56.3. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, the accused was granted the opportunity.

57. PW 52: Sh. R.K. Singh: He was the Nodal Officer, Bharti Airtel. He had produced the summoned record pertaining to the call details of mobile phone no. 9717829786 and 9810639999 w.e.f. 01.01.2010 to 04.03.2010 and also of mobile no. 9810255799 w.e.f. 01.02.2010 to 25.02.2010. He had identified the record produced by him pertaining to the mobile no. 9717829786 as Ex. PW 52/A1 to Ex. PW 52/A-48 and the application of the connection of the mobile phone along with its annexures in the name of Shiv Murat Dwivedi as Ex. PW 52/A49 to Ex. PW 52/A51.

57.1. The witness further identified the call detail record pertaining to mobile number 9810639999 in the name of Raj Kumar as Ex. PW 52/B2 to Ex. PW 52/B-19 and the application form of the applicant for this connection along with annexures as Ex. PW 52/B-20 to SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 61 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:02 +0530 Ex. PW 52/B-21. He further identified the call details record pertaining to the mobile number 9810255799 as Ex. PW 52/C1 to Ex. PW 52/C66 along with application form and annexures in the name of Ram Kumar as Ex. PW 52/C-67 to Ex. PW 52/C69.

57.2. The witness further identified the location chart pertaining to these mobile connection for the period mentioned above as Ex. PW 52/D-1 to Ex. PW 52/D-10. He further identified the certificate confirming the correction of the record brought by him under Section 65-B of the Indian Evidence Act as Ex. PW 52/E. 57.3. The witness had also produced the original customer application forms along with its annexures and the photocopies of the same. He further deposed that every page of the call detail records was signed by him along with his officials seal on each page in confirmation of its correction.

57.4. This witness was not cross examined on behalf of the accused persons, however, opportunity was granted to the accused persons.

58. PW 53: Sh. Naveen Arora: Ld. ADJ, Saket Courts, New Delhi. He deposed that on 15.03.2010, he was posted as ACMM/SE, New Delhi when the accused Shiv Murat Dwivedi @ Shiva was produced before him by ACP Mehar Singh whose statement was recorded by the concerned DCP u/s 18 of MCOC Act. He further deposed that the sealed envelope containing the statement was also SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 62 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:08 +0530 produced.

58.1. He further deposed that he had asked the lawyers appearing on behalf of the accused to leave the court room as he wanted to speak to the accused in isolation. He further deposed that thereafter, he had spoken to the accused about his statement and in reply he had given evasive answers and most of the time, he remained silent. He further deposed that when the accused was leaving the court, he had stated that he was falsely implicated. He further deposed that no complaint was made by the accused regarding any torture etc.. by the police official and all those fact if collectively seen showed that he had given his statement voluntarily to the police.

58.2. He further deposed that the sealed envelope was sealed at three more places on the side of the envelope and it was further sealed with the court seal at five places and was handed over to the ACP for further action. He had identified the proceedings recorded by him as Ex. PW 53/A. The witness had identified the statement of the accused Shiv Murat Dwivedi recorded under Section 18 of the MCOC Act as Ex. PW 53/A. 58.3. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the accused was produced before him by the police team probably after lunch hours. He further replied that no specific question was put to the ACP producing the accused about the time when the confessional statement was recorded. He further replied that as per record, no SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 63 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:16 +0530 specific directions were given to the ACP for taking the accused to the Special Court though sealed envelope was given to ACP for further action as per law.

58.4. This witness was not cross examined on behalf of the accused Parveen, however, the accused had adopted the cross examination conducted on behalf of the accused Shiv Murat Dwivedi.

59. PW 54: Sh. Manoj Sharma: He deposed that he was the proprietor of Sharma Communication. He deposed that accused Parveen had engaged him for giving advertisement in Times of India and Hindustan Times. He further deposed that the cost of these advertisements was between 1 to 1½ lakh per month. He further deposed that the accused Parveen also booked three flats and paid 20/25 lakhs as advance to one Arun Kumar, who was also known to him. He further deposed that he was constructing the flats alongwith his one partner namely Anuj in Chattarpur area. He had identified the accused in the court correctly. He further deposed that he had also given these facts in writing on his letter head to ACP Haus Khas on 09.08.2010 alongwith photocopy of his diary

carrying the accounts of accused Parveen. He had identified the written facts given by him as Ex.PW54/A and three pages of diary as Ex.PW54/A1 to A3.

59.1. This witness was cross examined on behalf of the accused Parveen wherein he replied that his agency Sharma Communication used to book advertisements for Times of India and Hindustan Times. He further replied SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 64 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:22 +0530 that he was given agency code and no letter for authorising him was issued by Times of India and Hindustan Times. He further replied that the accused Parveen Kumar used to pay cost of advertisement in his bank account. He further replied that the accused Parveen used to make him call after depositing the amount in his account and he also used to settle the account as per the depositions.

59.2. He further replied that he used to maintain the accounts for the payments. He further replied that he used to maintain accounts for the payments made by his all clients. He further replied that Ex. PW54/A1 to A3 was the photocopy of his diary and not the original.

59.3. The witness had denied the suggestion that the photocopy of the records of account as mentioned in photocopy of his diary was not the actual and has been prepared at the behest of the police. He further replied that the advertisement booked by accused Parveen Kumar were for the massage parlour only. He admitted that the payments made by accused Parveen for the booking of flats were not made to Anuj Sharma in his presence. He admitted that he did not know for which three flats the alleged payment was made to Sh. Anuj Sharma.

59.4. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however, opportunity was granted to the accused.

60. PW 55: ASI Mukesh Meena: He deposed that on 15.03.2010, Sh. Virender Chahal was the Addl. CP of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 65 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:30 +0530 South East when in his office, statement of Shiv Murat Dwivedi was recorded by him. He further deposed that as he was posted as his steno in his office therefore, he did the typing work during the recording of the statement of accused Shiv Murat Dwivedi. He had identified the proceedings and statements as Ex.PW55/A and his statement as Ex. PW55/B. 60.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he was was posted at the said office since 07.11.2008 as a stenographer with the Addl. DCP (South East). He replied that he could type in Hindi and English language both. He further replied that the confessional statement of accused Shiv Murat was recorded at about 11.00 AM in the morning and concluded after 12.00 noon. He further replied that it had continued till 12.30 noon. He further replied that the confessional statement was recorded in the chamber of Addl. C.P on the desktop of computer in his chamber.

60.2. He further replied that the computer was kept on the side computer table of the office. He further replied that the keyboard was contained only English Alphabets. He further replied that he

did not remember the type of printer attached with the computer i.e., if it is ink jet, lesser or otherwise IO of this case was ACP Ram Mehar. He further replied that there were around eight to ten visitors chairs in the office of the Addl. C.P. He further replied that the IO was not present at that time and he was staying SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 66 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:36 +0530 outside the office of Addl. C.P. Inside the office himself, accused and Mr. Chahal were the only persons present.

60.3. He further replied that he did not remember the type of cloth worn by the accused at that time. He further replied that the accused worn white coloured dhoti and kurta. He further replied that he did not remember if he was having gamcha/stoll around his neck or not. He further replied that he was not in his uniform even the Addl. CP was not in his uniform. He further replied that he did not remember the cloth worn by either the Addl. CP or himself. He further replied that the English portion of Ex.PW55/A was recorded as per dictation of Mr. Chahal.

60.4. He further replied that Hindi Portion was recorded as told by the accused himself not even a single line was dictated by Mr. Chahal in Hindi. He further replied that no instructions were given by the Addl. CP to the accused. He further replied that Addl. CP told the accused that the statement which he was giving would be used against him in the court and whatever he stated was read over to him. He further replied that as far as he remembered these were the only instructions and about remaining instructions Addl. CP himself would depose. He further replied that this statement was recorded under Section 18 of MCOC Act. He further replied that he did not record any other statement under this Act during his tenure in this office.

60.5. He further replied that whatever was told by the accused it was being recorded. He further replied that SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 67 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:42 +0530 whatever was asked by Addl. CP, the same was told by him. He further replied that he did not remember if the accused stated about any prior offences committed by him in his statement. He further replied that he understood by the meaning of Confessional Statement that whatever statement was given by the accused was his confessional statement.

60.6. Ld. Counsel for the accused Shiv Murat Dwivedi had put the question to the witness that in the confessional statement recorded in Hindi by him, did he remember a single offence continued by the accused and the witness had replied that he did not know which letter in the English type board denotes 'Adha ka'. Witness voluntarily replied that he could type Aha Ka' without seeing on the english alphabets on the keyboard naturally, therefore, he could not tell as to which alphabet key is used to type 'Adha ka'. He further replied that the same was his reply regarding other Hindi alphabets.

60.7. The witness had replied that ExPW55/A was not recorded in the office of Addl. CP by him but was recorded by the IO and later on got signed by the Addl. CP and himself. The witness further replied that he had not sealed the statement in any envelope and left the office after signing the

same.

61. PW- 56 SI Arvind Kumar: He was the STF, South Distt., Vasant Vihar, New Delhi. He deposed that on 11.08.2010, he was posted at PS Saket when on the directions of ACP Mehar Singh, he had taken five diaries, carrying serial No. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 68 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:24:48 +0530 1,3,4,6,9, and 31 pages of specimen handwriting sheets vide RC No. 484898 and deposited the same with FSL, Rohini which were duly acknowledged as received on the file he carried with him. He further deposed that no tampering was made with the case property till the same remained with him.

61.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the specimen handwriting on the said 31 pages was not taken in front of him. The witness further replied that he had taken the said articles to FSL Rohini at 2:55 PM from the PS on 11.08.2010. He further replied that DD entry 35 B pertains to his departure from P.S. He further replied that he had taken the said articles to FSL alone, there was no other police official. He further replied that he had taken the said articles on his own personal bike. He further replied that he had taken the said articles from the malkhana which was at the first floor of the PS at that time and thereafter, had taken the articles to FSL after lodging DD entry. He further replied that all the articles i.e. mal mukadama were handed over to him in open and were not in any sealed cover etc.

61.2. He further denied the suggestion that on the instructions of the I.O, fresh articles were introduced/ planted in the said articles which were sent to the FSL.

61.3. This witness was not cross examined on behalf of the accused Parveen, however, opportunity was given to the accused.

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62. PW 57: Ms. Kiran Bansal, Ld. PO, MACT, Karkardooma Courts, Shahdara, Delhi. She deposed that on 04.08.2010, she was posted as ACMM-03/SD at Patiala House court. She further deposed that on that day, ACP mehar Singh had produced the accused Parveen Kumar @ Ankit for endorsement as per the Section 18 of the MCOC Act 1990. She further deposed that the confessional statement was produced in a sealed envelope sealed with the seal of SSY along with the covering letter of Sh. Sharad Aggarwal, DCP West. She further deposed that she had examined the accused Praveen Kumar @ Ankit in her chamber and the IO and other police officials were asked to wait outside.

62.1. She further deposed that she had recorded the statement of the accused Parveen Kumar @ Anki, S/o Ram Narain and identified the same as Ex. PW 57/A. She further deposed that the confessional statement was further sealed with the seal of the undersigned and the confessional statement along with proceedings sheets sent in a sealed cover to the court concerned.

62.2. This witness was not cross examined on behalf of the accused persons, however opportunity was granted to the accused persons.

63. PW 58: Inspector Pankaj Singh: He was the SHO of PS Saket at the time of incident. He deposed that on 06.03.2010, he had got the FIR No. 54/10 registered under Section 3 of the MCOC Act at PS Saket after obtaining the approval from competent authority. He had identified the accused Shiv Murat Dwivedi and Praveen in the court who SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 70 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:01 +0530 were arrested by him on 25.02.2010 in case FIR No. 47/10 under Section 3/4/5 of the ITP Act. He further deposed that investigation of the case FIR No. 54/10 was entrusted to the then ACP Hauz Khas Sh. Mehar Singh.

63.1. This witness was cross examined on behalf of the accused Shiv Muart Dwivedi wherein the witness had replied that he had personally deputed four - six informers and some through other staff also. He further replied that the said informers were deputed about a month back from 25.02.2010. He further replied that the informer had come to his office at about 07.30 pm on 25.02.2010. He further replied that he did not remember the clothes worn by the informer. He further replied that the information narrated to him lasted for two minutes and immediately thereafter, he had called up the ACP.

63.2. He further replied that he had not refreshed his memory in case FIR No. 47/10 as he was likely to depose in that case FIR in the trial which was already going on in another court.

63.3. The cross examination conducted on behalf of the accused Shiv Murat Dwivedi was adopted by the accused Parveen.

64. PW 59: Sh. Israr Babu: He was the Alternate Nodal Officer, Vodafone mobile services. He had produced the record pertaining to the mobile number 9999853646 which was in the name of the accused Parveen Kumar and the customer agreement form along with annexures and SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 71 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:10 +0530 identified the same as Ex. PW 59/A. He further identified the call detail record for the period from 01.02.2010 to 26.02.2010 as Ex. PW 59/B. He had also identified the certificate of correctness under Section 65 B of the Indian Evidence Act as Ex. PW 59/C. 64.1. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that he had joined the Vodafone in May, 2020 as Alternate Nodal Officer. He further replied that the CDR had been generated before his joining. He further replied that he had no personal knowledge regarding the verification of the customer application form Ex. PW 59/A. The witness had denied the suggestion that he was not sure of the genuineness of the CDR as he was not custodian of the CDR at the relevant time. He further denied the suggestion that the CDR Ex. PW 59/B as well as customer agreement form Ex. PW 59/A were not genuine.

64.2. This witness was not cross examined on behalf of the accused Shiv Murat Dwivedi, however the opportunity was granted to the accused.

65. PW 60: Sh. Mangam Ram Katyal: He deposed that accused Parveen was his tenant for one and half months on the first floor of his house and the rent was settled as Rs. 22,000/- per month plus electricity and water charges. He further deposed that however, the accused had left the rented premises after one and half months.

65.1. This witness was not cross examined on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 72 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:17 +0530 behalf of the accused persons, however the opportunity was granted to the accused persons.

66. PW 61: Sh. Mehar Singh: He was the Retired ACP. He deposed that during 2010, he was the holding the charge of ACP, Hauz Khas and PS Saket was under his jurisdiction. He further deposed that on 06.03.2010, this case vide FIR No. 54/10 under Section 3 of the MCOC Act was registered at PS Saket after approval of competent authority. He further deposed that the investigation of this case was entrusted to him. He further deposed that during investigation, he had examined various witnesses, conducted searches, seized relevant record and obtained required information as well as documents from various persons and organisations and placed on record. He further deposed that during the investigation of this case, accused Shiv Murat Dwivedi was produced before Sh. Virender Chahal who had recorded his confessional statement.

66.1. He further deposed that during the course of investigation, accused Shiv Murat Dwivedi was arrested on 09.03.2010 and on 15.03.2010, he was produced before Sh. Virender Chahal, Addl. CP (South East) for recording his confessional statement as desired by him. He further deposed that for this purpose a request was made to the Joint CP for marking his application to the competent police officer for recording his confessional statement and accordingly, Sh. Virender Chahal Addl. CP (South East) was asked to record his confessional statement and he was told to produce him before him.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 73 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:23 +0530 66.2. He further deposed that accordingly, on 15.03.2010, he was produced before him and as per the procedure, he had recorded the confessional statement of Shiv Murat Dwivedi. He further deposed that at the time of recording of this statement, he was asked to stay away from his office. He further deposed that thereafter, a sealed cover containing his recorded confessional statement was given to him to be submitted in the concerned court.

66.3. He further deposed that accordingly, on the same day, he had handed over the sealed cover containing confessional statement of Shiv Murat Dwivedi to the Ld. Court of Sh. Naveen Arora at Patiala House Court for authentication of his confessional statement. He further deposed that there also Shiv Murat Dwivedi was produced in the court and after adopting legal procedure his statement was authenticated by the court.

66.4. He further deposed that similarly on 31.07.2010, after accumulation of sufficient documentary and oral evidence, another accused Parveen Kumar was arrested in this case. He further deposed

that during investigation, he had also expressed to confess his guilt willingly. He further deposed that again in this contest, he had moved an application to the then Joint CP Southern Range who had marked his application to Sh Sharad Aggarwal, the then DCP West District. He further deposed that on 03.08.2010, accused Praveen Kumar and the other accused in this case were produced before Sh. Sharad Aggarwal, the then DCP, West District. He further deposed SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 74 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:29 +0530 that he was asked to stay away from his office and as per the legal procedure, he had recorded the confessional statement of Parveen Kumar, the other accused and thereafter, he had told him that on his own he would send the confessional statement to Praveen Kumar to the concerned court. He further deposed that on 04.08.2010, accused Praveen Kumar was produced before the court and confessional statement of Sh. Praveen Kumar was authenticated as per procedure.

66.5. He further deposed that during the course of investigation, he had sent the requisition to various banks including Standard Chartered Bank, Axix Bank, ICICI Bank, Muthoot Finance Green Park, various mobile service provider and other agencies for getting the statement of accounts, CDR of respective forms used by both of the accused persons either in their own name or in the names of the other persons and in compliance of his notice, he had received the details.

66.6. He further deposed that during the course of investigation, accused Shiva was taken to his native place in Chatrakoot District and his house search was conducted. He further deposed that during the investigation, the house search of the accused was also conducted and from there two diaries, one note book, some loose sheets etc. on 02.08.2010 were seized by him.

66.7. He further deposed that during the investigation, from one authorised valuer, the assessment of the property of the accused was assessed and it was SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 75 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:36 +0530 found that through flash trade, he had accumulated and had transaction in various bank accounts more than Rs. 2.5 crores, in this context it was submitted that he had pledged the gold ornaments, one gold ring and one bracelet costing of more than Rs. 3 lakh. He further deposed that he had purchased the property at Devli, Jawahar Park, he had also purchased a piece of land at his native place in District Chitrakoot and built a huge temple. He further deposed that he had also booked several hotel rooms and he was working with other accused Parveen Kumar hand in gloves.

66.8. He further deposed that during investigation, it was also transpired that accused Praveen Kumar had invested Rs. 18 Lakh for the purchase of three flats through one Manoj Sharma at Mehrauli. He further deposed that he was also in the possession of a luxury car. He further deposed that during the investigation, it was also transpired that through Sh. Manoj Sharma, he was advertising for flash trade in the name of Rajdhani Message, and other name in the newspapers Times of India and Hindustan Times. He further deposed that he was also doing this flash trade to just dial services and every month he was spending around Rs. 1.5 to Rs. 2 lakh and this continued for about one year.

66.9. He further deposed that during the investigation, he had also received the details of various cases registered against the accused Shiva and in some of the cases he was also convicted and some cases were SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 76 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:25:55 +0530 pending trial. He further deposed that certified copies of all such cases against both the accused persons were obtained from the concerned courts especially the copies of charges, cognizance taken along with the copies of FIR and the same were taken on record and filed along with the charge sheet.

66.10. He further deposed that on 16.08.2010, he had put the details of the investigation and oral evidence and documentary evidence, he had made a request to the then Joint CP Southern range to accord the sanction for prosecuting the accused Shiva and Praveen and after going through the evidence, the then Joint CP Sh. Amulya Patnayak (Southern Range) had accorded sanction to prosecute both of the accused persons and thereafter, he had filed the detailed charge sheet in the court against both the accused Shiv Murat @ Shiva and Praveen.

66.11. He further deposed that it was worthwhile to mention that during the investigation it was also transpired that the accused Praveen Kumar amassed huge wealth through flash trade in connivance of accused Shiv Murat more than Rs. 1.5 Crores.

66.12. He further deposed that during the course of investigation, he had collected all the details pertaining to movable and immovable properties of both the accused persons and placed the same on record. He further deposed that during the course of investigation he had also concluded that the accused persons could not justify and explain the source of their income in order to acquire these SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 77 of 186 RAVINDRA Digitally signed by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:01 +0530 properties during their life time. He further deposed that it was also transpired that the prevailing legal procedure could not restrain them from committing the crime and as such the provisions of MCOC Act were invoked. He further deposed that during investigation, he had also seized dairies of accused Praveen and memos were prepared as Ex. PW35/G on Ex. P-7 to P-9, two mobile phones Ex. P-4 and P-5, Two RCs Ex. P1 and P2, One Pan Card Ex. P-3 and a sum of Rs. 30,330/-Ex. P-6 collectively vide separate memo as Ex. PW35/E.

66.13. He further deposed that he had also recorded his disclosure statement and identified the same as Ex. PW35/D and also identified the supplementary disclosure of co-accused Shiv Murat Dwivedi as Ex. PW 35/A. He further deposed that he had also prepared the arrest memo and personal search memo and identified the same as Ex. PW 35/B and Ex. PW 35/C respectively qua the accused Parveen Kumar.

66.14. He further deposed that it was also worth while to mention that on specific information received by Inspector Pankaj Singh, the then SHO PS Saket, about involvement of accused Shiva and Praveen in flash trade through informer a raid was conducted near PVR Saket, at about 10:00PM and accused Shiv Murat Dwivedi and other accused Praveen Kumar presented six girls to the decoy customer SI Sanjay Sharma in presence of Shadow witness SI Daleep who were posted at that time at PS Saket. He further deposed that Rs. 3,000/- were accepted SC 7058/2016 (43/15/2015) STATE

Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 78 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:09 +0530 by accused Shiva for providing a girl out of three and Rs. 2,000/- were accepted by accused Praveen Kumar to provide a girl out of three which were accompanying them. He further deposed that all the six girls were brought by them by two vehicles driven by them personally. He further deposed that during raid, both of these accused persons were arrested on the spot along with six other girls who were brought by them for prostitution.

66.15. He further deposed that from the Honda City car of accused Shiva an amount of Rs. 1.55 Lakh along with the Dhoti, some DVDs, some diaries etc were recovered and in this context a case vide FIR No. 47/10, under ITP Act was registered at PS Saket and the trial of the same was going on in some other court at that time.

66.16. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that on 25.02.2010, he did not go to the police station at 8.40 p.m. He further replied that he was informed by the SHO, PS Saket Sh. Pankaj Singh about the ongoing prostitution racket wherein he was informed that the accused Shiv Murat Dwivedi and other accused would be accompanied by some girls and would be arriving at PVR Saket around 10 o'clock at same night. He further deposed that this information was given to him telephonically.

66.17. He further replied that he had reached the spot between 9.15-9.30 p.m. on his official vehicle. He further deposed that when he had reached the spot, he was in his uniform however, on reaching the spot, he had SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 79 of 186 RAVINDRA Digitally RAVINDRA signed by KUMAR KUMAR PANDEY Date: 2025.12.26 PANDEY 12:26:16 +0530 changed into his civil dress. He further deposed that since PS Saket was raised till the time he was transferred that is somewhere around November, 2011, he was the ACP concerned of PS Saket. He further replied that prior to this case, only one ITP case related FIR was registered during his tenure in PS Saket. He further replied that he did not remember the detail of that case. The witness had voluntarily replied that one of the accused in that matter was one Sonu Punjaban.

66.18. He further replied that similarly he had joined the raiding party in the other matter as well. He further replied that his vehicle was parked on the road which was running at the right side of PVR Saket if they were facing it near nala. He further replied that he did not remember the exact distance of his vehicle from Pramod Mahajan Road, however, it was less than 150 meters.

66.19. He further replied that Inspector Pankaj Singh and Inspector Dharam Dev and some subordinate staff were at the location but he did not know whether the complete raiding party had reached there or not. He further replied that he did not know whether the informer was at the spot or not. He further replied that he had briefed the raiding party for 5-7 minutes. He further replied that he did not know as to the description of the vehicles on which the raiding party reached the spot. He further replied that he did not know the number of the vehicles by which the raiding party had reached the spot.

66.20. He further replied that he he did not SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 80 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:25 +0530 remember whether SHO Sh. Pankaj Singh was in his uniform or civil dress. He further replied that that SI Sanjay and SI Dalip were in civil dress.

66.21. He further replied that he did not personally ask any passersby or shopkeeper at that place to join the investigation. The witness voluntarily replied that Inspector Pankaj Singh however asked few people to join the same in his presence. He further replied that he had personally directed SI Sanjay and SI Dalip not to carry any cash however, no personal search was conducted. He further replied that at around 10.00 p.m. SI Sanjay and SI Dalip went to car of the accused.

66.22. He further replied that as far as he remembered, the car of the accused Shiv Murat was silver coloured Honda City, however, he did not remember the registration number of the car. He further replied that he did not remember what was found in the personal search of accused Shiv Murat. The witness had voluntarily replied that however, at the time of search, Rs.3,000/- in 1000 denomination were found from accused Shiv Murat, however, from what he remembered the said currency notes were in the right front pocket of the jeans that he was wearing.

66.23. He further replied that the accused Shiv Murat was wearing collared T-shirt, the colour of which he did not remember. He further replied that the accused Shiv Murat was driving his own car. He further replied that one girl was sitting besides the driver seat and two were sitting SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 81 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:44 +0530 on the back seat and the name of the girls, he did not remember, however, the same find mentioned in the FIR no. 47/10. He further replied that Rukka was prepared in front of him, however, he did not remember who had prepared the same. He further replied that he did not remember when it was prepared. He voluntarily replied that it was prepared after ascertaining the details of the accused. He further replied that the rukka was sent to police station through one Ct. Saudan in his presence, however, he did not remember whether Ct. Saudan went to the police station on foot, two-wheeler or a four-wheeler.

66.24. He further replied that he did not remember the time at which Ct. Saudan had left for the police station but he had left after 12 a.m. He further replied that he did not remember who had prepared the site plan or at what time the same was prepared. He further replied that on 26.02.2010, he did not go to the police station Saket. He further replied that he personally had requested in writing Sh. Ajay Kashyap, Joint CP, Southern range for marking his request to some competent officer to record the confessional statement of accused Shiv Murat Dwivedi.

66.25. He further replied that he did not remember the date of the request made to the Joint Commissioner. He further replied that he did not know whether this written request has been produced before this Hon'ble Court.

66.26. He further replied that he did not know whether any written request was sent by SHO Inspector Pankaj Singh to the Joint CP. He further replied that he did SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 82 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:49 +0530 not remember whether this written request made by him to the Joint Commissioner of Police was delivered by hand personally through him or some other officer under him or through dak. He further replied that when this request was forwarded to Joint CP, he was aware about the previous criminal cases of accused Shiv Murat Dwivedi. The witness again replied that against the said accused, there was one FIR lodged at PS Lajpat Nagar under ITP Act, one case at PS Badar Pur U/s. 395 IPC, two cases under Gangestar Act at Gautam Budh Nagar and there was one more case, the detail of which he did not remember.

66.27. He further replied that he did not know when the disclosure statement of the accused was recorded, however, the same was recorded in front of him. The witness further replied that the certified copies of the previous cases as mentioned above of the said accused were obtained however, he did not remember the date when the same was done. He further replied that he did not remember whether the certified copies were applied earlier or the first disclosure statement of the accused Shiv Murat Dwivedi was recorded.

66.28. He further replied that he did not remember whether the certified copies were applied in the concerned court before the registration of FIR no. 54/10 or after that. Witness further replied that it was done after the registration of the FIR. He further replied that he did not remember the date when he had taken the accused Shiv Murat to Additional CP for recording of confessional SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 83 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:26:56 +0530 statement. He further replied that it was on 15.03.2010. He further replied that the accused at that time was in police remand.

66.29. He further replied that he had personally taken the accused to Additional CP office. He further replied that he did not remember the time, however, it was before 12 noon. He further replied that the office of Additional CP was at PS Sarita Vihar on the first floor. He further replied that on that day, accused Shiv Murat Dwivedi was taken from PS Saket to the Additional CP office by him and other officials, the name and no. he did not remember. He further replied that he did not know who all remained present inside the office of Additional CP since he was sent out by the said officer.

66.30. He further replied that he did not know for how long the confessional statement of the accused was recorded in the office of Additional CP. Again said, it went on for one and half hour to two hours. He further replied that he did not remember the clothes worn by the accused Shiv Murat Dwivedi at that time. He further replied that the accused was then taken to Sh. Naveen Arora, Ld. ACMM, Patiala House Courts after 2.00 p.m and it took them around 40-45 minutes to reach Patiala House Courts from PS Sarita Vihar. He further replied that he was in the court while the statement of accused was being recorded by the Ld. ACMM.

66.31. He further replied that it took the Ld. ACMM around one to one and half hour to record the statement of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 84 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:34:29 +0530 the accused. He further replied that the confessional statement of the accused was sealed by the office of Additional CP, however, he did not know at how many places the said seal was put. He further replied that the confessional statement was handed over by the Ld. ACMM to the special court directly and not handed over to him. He further replied that the court of Ld. ACMM did not seal the confessional statement in his presence. He further replied that he did not remember whether the accused was medically examined on that day. He voluntarily replied that the accused was used to regularly medically examined.

66.32. He further replied that the accused Shiv Murat was taken to Chitrakoot, UP, however, he did not remember the date. He further replied that he alongwith Sh. Pankaj Singh (SHO), Ct. Saudan and some other police officials went to Chitrakoot. He further replied that they had left for Chitrakoot at 10.00 p.m. He further replied that he did not remember whether the DD entry pertaining to the departure of the accused as well police officials had been brought before this Hon'ble Court. He further replied that he had travelled on AC-3 tier ticket and other officials alongwith the accused were travelling on third class. He further replied that the name of the train he did not remember.

66.33. He further replied that the departure time of the train, he did not remember, however, the said train departed from New Delhi Railway Station. He further replied that the entire team alongwith the accused were SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 85 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:34:37 +0530 travelling in confirmed seats. He further replied that the railway tickets of this journey, he had not produced before this Hon'ble Court. He further replied that they reached Chitrakoot in the morning, however, he did not remember the time. He further replied that he did not even remember whether it was 5 o'clock, 10 o'clock in the morning or 12 o'clock in noon. He further replied that they had de- boarded the train at Manikpur railway station and on arrival, they had informed the local police station and made efforts to seek their assistance, however, on the said day, the local police officials were busy in a kidnapping matter of some prominent person in that area.

66.34. He further replied that thereafter, they had arranged a private vehicle to go to Chamroha, village of the accused. He further replied that he did not remember the description of the vehicles that carried them to Chamroha. He further replied that there were two vehicles which were hired. He further replied that he did not remember how much time it took them to reach the temple made by the accused at some place outside the village of accused. He further replied that the authorized valuer did not reach the temple till the time they were there but came afterwards. He further replied that the name of the said valuer, he did not remember, however, his report was there on record. He further replied that after consultation with the SHO Sh. Pankaj Singh, he had requested the DCP Sh. H.S. Dhaliwal to hire the services of an approved valuer on the rolls of State / Central Govt.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 86 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:34:43 +0530 66.35. He further replied that Inspector Ram Kumar was deputed by him to arrange the travelling and stay of the valuer. He further replied that somebody might have accompanied the valuer, but he did not remember the name of the official. He further replied that he even did not remember how many officials accompanied the valuer for this task. He further replied that he did not remember whether title documents (sale-purchase document) pertaining to the land at the village of the accused had been brought before this court. He further replied that he did not know on whose name was the agricultural land at accused Shiv Murat's village was registered.

66.36. The witness further replied that the land on which the temple had been raised was purchased by accused Shiv Murat. He further replied that he did not know on whose name this land was registered. He further replied that he did not remember the quantum of the agricultural land. He further replied that the structure of the temple was huge and the same was under construction. He voluntarily replied that the accused Shiv Murat used to send money every month for the material used in the construction. He further replied that in this case, the statement of no other girl except the six girls apprehended in FIR no.47/10 had been taken or recorded.

66.37. He further replied that during investigation, they had not come across any girl / female who had made any sort of complaint of threat, pressure coercion against accused Shiv Murat, however, there was one complaint SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 87 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:34:51 +0530 made by one girl (name he did not remember) which was sent to them during investigation of FIR no. 54/10 which was part of this record before this Hon'ble court. He further replied that he did not remember the contents of the complaint as to whether the accused had threatened or pressurized her. He voluntarily replied that the same was made against the accused since she was aggrieved. He further replied that he did not remember exactly as to how many number of times that he had recorded the disclosure statement of accused Shiv Murat. He further replied that during investigation, notices under Section 91 and 160 Cr.P.C. were sent to number of persons, but he did not remember the names, however, there names are mentioned in case diary.

66.38. He further replied that these notices were sent through subordinate staff. He further replied that he had sent Insp. Ram Kumar to examine certain witnesses however, he did not remember the names, but the same were mentioned in the case diary. He further replied that Inspector Ram Kumar might have gone by train, but he did not remember exactly. He further replied that he did not know who gave railway ticket to Inspector Ram Kumar. He further replied that he did not personally give the railway ticket to Inspector Ram Kumar. He further replied that the disclosure statements were recorded in different places during investigation.

66.39. He denied the suggestion that the accused was threatened or pressurized into making the confessional SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 88 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:34:57 +0530 statement before the Additional CP or before the Ld.

ACMM. He further denied the suggestion that the accused had never given disclosure statement in this matter. He further denied the suggestion that accused was arrested from South Extension at a different time and not from PVR Saket.

66.40. This witness had denied the suggestion that no public witness had been included at the time of arrest or search at Delhi. He further replied that he did not brief the raiding party. He further replied that he had never travelled to Chamroha or Chirakoot that was why he was unable to point out the details of his travel etc. 66.41. This witness was cross examined on behalf of the accused Parveen Kumar wherein he replied that the time gap between registering FIR No. 47/10 registered at PS Saket and FIR No. 54/10 at PS Saket was around five days. He further replied that during his investigation, he found no case registered against accused Praveen except the present one and FIR No. 47/10 but during investigation, it was transpired that Praveen was a close associate of accused Shiva @ Shiv Murat Dwivedi and continuously by way of telephone and in other activities he was helping the main kingpin Shiva in every respect by supplying the girls in his association which was well established during investigation.

66.42. He further replied that when accused Praveen Kumar was arrested in this case on 31.07.2010 by that time, he had obtained sufficient documentary as well as SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 89 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:10 +0530 oral evidence against him such as details of property acquired by him by way of flash trade within a short time to the tune of more than Rs.1.5 crores, the details of girls which were being supplied by him, on scrutiny of documents recovered during investigation and their communication through mobiles continuously which was revealed by getting the CDR details of the phone being utilized by the main culprit Shiv Murat Dwivedi and Praveen.

66.43. He further replied that especially, the girl Shalini Gautam who was staying with Parveen. He further replied that he had invested Rs. 18 lakh for purchasing three flats in Mehrauli through one person Manoj Sharma before his arrest, he had incurred, huge expenses by using phones, renting different accommodations and by way of depositing cash in his various bank accounts.

66.44. He further replied that he did not remember the property number of aforesaid three flats. He further replied that he did not remember whether he had filed any documentary proof regarding the purchase of aforesaid three flats or not. He further replied that he had perused the record, there was no such property related document on court record. He voluntarily replied that the details mentioned by him in his diary and the facts were corroborated by witness Manoj Sharma. He further replied that the related documents in this regard are Ex. PW 54/A and Ex. PW 54/A1 to A3. He further replied that he had not inquired from Manoj Sharma whether accused Praveen SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 90 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:16 +0530 had furnished any ID proof for the purpose of booking of an advertisement in two newspapers. He further replied that he did not remember the exact time when accused Praveen Kumar was produced before Shri Sharad Aggarwal, the then DCP West District.

66.45. He further replied that as far as he remembered as it was noon time. He further replied that he could not tell the exact time taken to record the confessional statement of accused Praveen Kumar. He further replied that he did not remember the exact time when they had come back from DCP office but it was evening time. He further replied that the DCP concerned kept the confessional statement in a sealed cover and sent the same to the court concerned in Patiala House Courts. He further replied that the statement was not sealed in his presence.

66.46. He further replied that he was not in uniform when he had gone to DCP office as well as DCP concerned was also in civil dress. He further replied that he alongwith two-three police officials had gone to DCP office alongwith accused Praveen Kumar for recording his confessional statement but he did not remember their names. He further replied that as far as he remembered, they had come back directly to PS Saket. He further replied that accused Praveen Kumar was arrested from PS Saket.

66.47. He denied the suggestion that the accused Praveen Kumar was arrested from Patiala House Courts or SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 91 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:22 +0530 that on that day, the accused Praveen Kumar was having court hearing in the court of Shri Ravinder Kumar, Ld. MM Patiala House Courts. He further replied that he did not remember as to how many complaints had been lodged against accused Praveen Kumar in different police stations. He further replied that as far as he remembered, only two cases were pending against accused Praveen Kumar in the court and except these cases, there was no involvement of accused Praveen Kumar with accused Shiv Murat Dwivedi @ Shiva.

66.48. He further replied that Insp. Pankaj had sent a proposal to Joint CP, Southern range Mr Ajay Kashyap to invoke MCOC Act procedure. He further replied that he did not remember as to when Insp. Pankaj had sent this proposal. He voluntarily replied that it was definitely after registration of FIR No. 47/10 of PS Saket.

66.49. He further replied that he did not remember when charge-sheet had been filed against accused Praveen in FIR No. 47/10 of PS Saket. He further replied that he did not remember whether it was filed prior to filing of charge-sheet in present case or later. He further replied that he did not remember whether he had served any notice upon accused Praveen Kumar to explain that why MCOC Act had been invoked against him. He further replied that the secret information was received by Sh. Pankaj Singh, the then SHO of PS Saket. He further replied that he had reached PS Saket at about 9.15 PM. He further replied that he had gone at the place of information in uniform but he SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 92 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:29 +0530 had changed his uniform after reaching PVR Saket.

66.50. He further replied that he did not remember the colour of pant shirt worn by accused Praveen at the time of his arrest. He further replied that he did not remember whether he had recorded the statement of accused Praveen Kumar in MCOC Act case.

66.51. He further replied that the raid was concluded at about 4.30 AM on 26.02.2010. He further replied that he did not come to the police station. He denied the suggestion that he had not arrested the accused persons from PS Saket. He further replied that he had not properly investigated the matter. He further replied that accused Praveen Kumar had not given any instructions to book any advertisement, booking of flats etc. He further denied the suggestion that no raiding was conducted at PVR Saket from where accused Praveen was apprehended.

67. PW-62 Upender Kumar Bhardwaj: He deposed that on 30.12.2009, he was working with Unique Infoways Pvt. Ltd. when a Lenovo laptop was sold to one Swami Bhimanand Maharaj. He further deposed that the Invoice raised against this sale is upon Ex. PW62/A which he had seen on judicial record and the same was correct. He had identified the cash receipt against this sale as Ex. PW62/B. 67.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that the Sales Executive signed these documents. He further replied that these documents were prepared in SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 93 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:35:35 +0530 his presence. He further replied that the said document were having signatures of Sales Executive Sh. Sunil Singh at point A. He further replied that he could not identify the buyer of this product that day. He denied the suggestion that these were not original documents and were prepared at later stage at the instance of police.

67.2. This witness was not cross examined on behalf of the accused Praveen, however, the opportunity was granted to the accused.

68. PW 63: Sharad Aggarwal: He deposed that on 03.08.2010, he was posted as DCP, West at Rajouri Garden, Delhi. He further deposed that on that day, the IO of case FIR No. 54/10 P.S. Saket came alongwith accused Praveen Kumar @ Ankit S/o Ram Narayan R/o 147A, Gautam Nagar, Delhi and requested to record the statement of accused U/S 18 of MCOC Act. He further deposed that thereafter, he had asked the I.O to leave the room. He further deposed that the accused, his Stenographer HC Rajesh and himself were present in the room. He further deposed that he had explained to the accused that he was not duty bound to make any confessional statement and the same could be used against him. He further deposed that he had also verified that he was not under any inducement or threat to make such statement. He further deposed that after ascertaining the same, his statement was recorded in his language i.e. Hindi. He further deposed that the proceedings of the recording of this statement were reduced into writing in English language and identified the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 94 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:42 +0530 same as Ex. PW 63/A and the statement of the accused recorded in Hindi language as Ex. PW63/B.

68.1. He further identified the certificate issued by him regarding correctness of the statement as Ex. PW 63/C. He further deposed that thereafter the next day, the statement in a sealed envelope was sent to Ld. ACMM, Patiala House Courts for further proceedings. He had identified the accused correctly in the court.

68.2. This witness was cross examined on behalf of the accused Parveen wherein the witness had replied that he had recorded the statement of accused Praveen Kumar in his office chamber at DCP West Office, Rajouri Garden. He further replied that he had recorded statement of accused after explaining him the consequences of making such statement and also told him that he was not bound to make such statement. He further replied that he did not remember whether the accused told him in how many cases he was involved with the co-accused Shiv Murat.

68.3. He further replied that the accused Praveen Kumar was sitting across his table and his Stenographer was on his left hand side. He further replied that the accused Praveen was telling his statement to him and the same was being recorded by his Stenographer on his dictation as he had formed the sentences in which it was recorded.

68.4. The witness had denied the suggestion that the statement was not recorded in the language of accused. He SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 95 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:49 +0530 further replied that it was recorded in Hindi. He further replied that the statement was recorded in verbatim and where the sentence was to be written appropriately, he had framed the sentence properly. He further replied that he did not remember as to what was accused wearing at that time. He further replied that he was without uniform and in civil dress. He further replied that he had recorded the statement in the afternoon but he did not remember the exact time. He further replied that he had not written the exact time of recording the statement while recording the statement of the accused. He further replied that he had signed the statement immediately after it being recorded. He further replied that he did not remember whether he had signed the statement first or accused had signed the same.

68.5. He further replied that the ACP Mehar Singh, IO had brought the accused to him for recording of his statement. He further replied that the application by the IO for recording statement of accused was sent to him through the Office of Joint C.P, on 02.08.2010. He further replied that he did not remember as to who was present in his office when he had received the application for recording of statement of accused Praveen Kumar through the office of Joint C.P on 02.08.2010. He further replied that he had kept the application in his office and subsequently IO had appeared with the accused for recording his statement. He further replied that the IO had come in the afternoon i.e. after lunch but he did not remember the exact time. He further replied that it took 45 minutes to one hour in recording statement of accused. He further replied that the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 96 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:35:57 +0530 statement was sealed in envelope and sent to court of Ld. ACMM, Patiala House Courts with a covering letter.

68.6. He further replied that he did not personally seal the envelope. He voluntarily replied that the same was sealed in his presence in his office chamber. He further replied that he did not remember at what time he had reported in his office on the day when he had recorded statement of accused. He denied the suggestion that the statement of accused was not voluntarily made by accused and he had dictated the same on his own and obtained the signatures of accused on it. He further denied the suggestion that the statement of accused is not in accordance with the provisions of Sec. 18 of MCOC Act.

69. PW 64: Kashmir Singh: He was the Deputy General Manager, BRPL, Khanpur Division, New Delhi. He had identified the letter Ex. PW 64/A which was written by his predecessor Sh. Ravinder Srivastava with regard to the electricity bill at the address C-120, Jawahar Park, Devli Road, Delhi. He further deposed that as per this communication, the bills in question were found in the name of Ms. Rani Razy. The witness had identified the documents i.e., the information provided along with the copies of bills as Ex. PW 64/B. 69.1. This witness was not cross examined on behalf of the accused persons, however, opportunity was granted to the accused persons.

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70. PW 65: Sh. Virender Singh: He was the IGP Mizoram. He deposed that on 15.03.2010, he was posted as Addl. Commissioner South East Delhi when ACP Shri Mehar Singh had produced the accused Shiv Murat Dwivedi for recording his statement under Section 18 of the MCOC Act. He further deposed that he had conveyed to the accused that his statement was to be recorded under section 18 of the MCOC Act and he was under no threat or pressure from any side to give such a statement, but the accused had given his consent for recording his statement. He further deposed that he had sent the IO ACP Mehar Singh out of his chamber in order to record the statement of the accused.

70.1. He further deposed that he had called his stenographer ASI whose name he did not remember for recording the statement of the accused. He further deposed that thereafter, he had asked the accused to depose and thereafter, accused had started narrating and as he was listening the same and conveying it to the steno, the same was recorded accordingly. He further deposed that the statement was recorded along with the proceedings and he had identified the same as Ex. PW 55/A. He further deposed that accused had also signed on each page on Ex. PW 55/A. He had correctly identified the accused Shiv Murat Dwivedi in the court during his examination.

70.2. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein he replied that the accused was produced at around 11.00 am. He further SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 98 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:12 +0530 replied that only ACP Mehar Singh was with the accused. He further replied that he did not remember if the IO was in uniform or otherwise. He further replied that he was not in his uniform. He further replied that he did not remember about the clothes of the accused as to what he was

wearing. He further replied that he had recorded the statement on the request of DCP, South District i.e., the concerned district pertaining to this FIR. He further replied that besides this, he did not receive any direction from any other official. He further replied that he did not remember if request from DCP was written or oral.

70.3. He further replied that this request was received one or two days prior to the recording of the statement. He further replied that DCP South spoke to him while conveying this request. He further replied that except accused, himself and the Stenographer, nobody else was present in the room at the time of recording the statement of the accused. He further replied that the confession was recorded in Hindi and thereafter translated and typed in English. After seeing the statement, the witness had replied that it was recorded in Hindi.

70.4. He further replied that stenographer was sitting on his left side in front of the computer. He further replied that the computer was placed on separate cabinet on the left of his table. He further replied that the entire proceedings might have taken around one and half hours which started around 11.00 am. He further replied that he did not see the documents pertaining to the present case on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 99 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:19 +0530 the day of recording the statement. He further replied that he did not remember if the IO had come along with the record of this case.

70.5. He further replied that he could not tell as to what was told by the accused after going through the statement. He further replied that as far as he remembered, the accused had told about few cases against him. He further replied that he could not tell after seeing the statement if those cases pertained to Delhi or other areas.

70.6. He denied the suggestion that Ex. PW 55/A was not recorded in his office or that it was already prepared by the IO who had obtained his signature on the same. He further denied the suggestion that the accused was never brought to his office or that no such proceedings had taken place in his office. He further denied the suggestion that on Ex. PW 55/A, the time mentioned at Point X was written at a later stage and due to this reason, the same was not typed or was not countersigned. He further replied that he did receive any instruction from the Joint Commissioner to record the confessional statement.

70.7. This witness was not cross examined on behalf of the accused Parveen Kumar, however, the opportunity was granted to the accused.

71. PW 66: Sh. Rajan Mishra: He was the Assistant Vice President, Branch Manager in Axis Bank at Damoh, MP. He had produced the statement of the account bearing no. 202010100093930 w.e.f. 01.01.2004 to 31.03.2009 which SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 100 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:28 +0530 was in the name of Prakash Chand Gupta. He had identified the copy of the same as Ex. PW 66/A. He had seen the judicial record in which the copies of the same were available which were correct and witness had identified the same

as Ex. PW 66/B. 71.1. This witness was not cross examined on behalf of both the accused persons, however, opportunity was granted to the accused persons.

72. PW 67: Sh. Ajay Kashyap: He was the IPS, Special Commissioner of Police. He deposed that on 06.03.2010, he was working as Joint commissioner of Police, Southern Range, Delhi. He further deposed that DCP (South) had produced the case file of the present case of approval u/s 23 (1) (a) MCOC Act, 1999. He further replied that he had accorded the approval after perusing the papers produced before him on 06.03.2010 vide File No. 1827 and identified the approval as Ex. PW 62/A. 72.1. This witness was cross examined on behalf of the accused Shiv Murat Dwivedi wherein the witness had replied that he did not remember the details of the cases put before him at the time of approval. He further replied that he did not remember the number of old cases, whether they were registered in Delhi or outside Delhi and also the nature of the offences. He further replied that the approval was granted with regard to the accused Shiv Murat Dwivedi @ Swami Bhimanand.

72.2. He further replied that the activities were SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 101 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:34 +0530 pertaining to the Immoral Trafficking, Violence and other crimes. He further replied that he did not remember with regard to the assets made by the accused. He further replied that he did not remember the name of the other members of the organised crime. He denied the suggestion that he had given the approval or that he had not perused the case file properly.

72.3. He further denied the suggestion that he did not consider whether the cases registered earlier were cognizable in nature or were punishable for more than three years or that any other chargesheet was filed and cognizance was taken by any competent court by any previous court in the matter.

72.4. This witness was cross examined on behalf of the accused Parveen wherein the witness had denied the suggestion that the approval dated 06.03.2010 was ambiguous in nature as he had used the term "and associates". He denied the suggestion that the said approval was given without application of the mind and mechanically. He further replied that he did not remember if criminal records produced before him pertaining to any other person except the accused Shiv Murat Dwivedi.

73. After conclusion of the prosecution evidence, statement of the both the accused persons were recorded under Section 313 Cr.PC in which all the incriminating evidence / material was put to the accused persons to which they denied.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 102 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:40 +0530 73.1. The accused Shiv Murat Dwivedi opted to lead defence evidence in his defence. The accused Shiv Murat Dwivedi had examined one witness in his defence i.e., Sh. Santosh Tiwari.

74. DW 1: Sh. Santosh Tiwari: He deposed that on 25.02.2010 at about 06.30 pm, accused Shiv Murat Dwivedi, himself and one Mr. Rahul had come from East of Kailash to South Extension Market, Part-I, New Delhi. He further deposed that he had to purchase some puja articles and accused Shiv Murat had to buy one mobile phone and some Pooja articles. He further deposed that they had come on Honda City silver colour car and had parked their vehicle near the petrol pump at South Extension Market, Part-I, New Delhi.

74.1. He further deposed that on reaching the spot, one person in civil dress had approached the accused Shiv Murat Dwivedi and had asked him to come out of the car.

74.2. He further deposed that the said person also asked him and Rahul to come out of the car. He further deposed that himself and Rahul were asked to go away from the spot. He further deposed that they were standing at some distance and the said persons along with 5-6 more persons had started talking to the accused Shiv Murat. He further deposed that one of those persons had sat on the driver seat of the Honda City Car and two of them had sat in the back seat of the car with the accused Shiv Murat in the middle.

74.3. He further deposed that one person was sitting on the front passenger side and the remaining two persons SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 103 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:46 +0530 had sat on the white coloured police vehicle standing behind the car of the accused. He further deposed that they were then asked by the police to go back to their houses. He further deposed that both the said vehicles also then moved away from the spot.

74.4. This witness was cross examined on behalf of the State by Ld. Addl. PP for the State wherein the witness had replied that he had not been summoned by the court. He further replied that the accused Shiv Murat Dwivedi @ Swami had brought him in the court. He further replied that he had known the accused Shiv Murat Dwivedi because they both were priests and had done pujas together. The witness further replied that they did not live together but work together.

74.5. The witness further replied that the accused Shiv Murat Dwivedi used to live in the same locality where he was staying. He further replied that he was not the regular pujari of any particular mandir.

74.6. He further replied that whenever any person had called them to perform puja at any place on a particular occasion, then he and accused Shiv Murat Dwivedi used to perform the puja. He further replied that for their religious services they got dakshina between Rs. 500/- to Rs. 40,000/- depending upon the kind of puja and duration.

74.7. He further replied that neither himself nor the accused Shiv Murat had any other business except their SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 104 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:36:51 +0530 religious services. He further replied that they regularly used to meet each other even on time other than during puja etc.. He further replied that they had

been working together for over 10-12 years. He further replied that he had not been to his village/ native place but he had known that the accused Shiv Murat belonged to Chitrakoot.

74.8. He further replied that the place where he lived, did not have a temple near it. The witness further replied that the nearest temple was Iskon temple at East of Kailash. He further replied that he used to purchase articles of puja/ hawan from South Extension, Madangir and various different places. He further replied that the Honda City car belonged to accused Shiv Murat Dwivedi. He further replied that he did not ask the persons who had come to the spot and took away the accused Shiv Murat Dwivedi, whether they were police officials or not, but they themselves told them that they were police officials. He further replied that he did not ask the police personnels as to why the accused Shiv Murat was being taken away by them.

74.9. He further replied that he also did not ask the said police officials as to where they were taking the accused Shiv Murat Dwivedi. The witness had voluntarily replied that the said officials asked them to go away from the spot immediately. He further replied that he did not know if the accused Shiv Murat Dwivedi had any relative living in Delhi. He further replied that he did not even make any efforts to inform any person in Delhi, known to SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 105 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:36:59 +0530 the accused Shiv Murat Dwivedi and at his native place, about the fact that he was apprehended by the police and taken away.

74.10. He further replied that he also did not make any enquiry from the office of any senior police official in respect of apprehending accused Shiv Murat Dwivedi @ Swami. He further replied that he had come to know later on, from news etc., the reason as to why the police had apprehended accused Shiv Murat Dwivedi. He further replied that at the time of his apprehension the accused Shiv Murat Dwivedi did not tell him anything. He further replied that the place where Shiv Murat resided was his own house. He further replied that he did not inform the neighbours of the accused Shiv Murat Dwivedi about his arrest.

74.11. The witness had denied the suggestion that on 25.02.2010, he did not go to South Extension -I along with accused Shiv Murat Dwivedi and Rahul. He further denied the suggestion that he had deposed falsely and concocted story at the instance of the accused Shiv Murat Dwivedi. He further replied that he did not know if the accused Shiv Murat Dwivedi used to indulge in illegal activities.

74.12. He denied the suggestion that he was aware about his illegal activities and he was hiding this fact deliberately. He denied the suggestion that at the time of the arrest of the accused Shiv Murat Dwivedi by the police, he was not along with him and that was why, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 106 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:05 +0530

neither he had made any enquiry from the police about the cause of his arrest, nor informed his neighbours and his relatives about his arrest. He further replied that he had never visited the native village of the accused Shiv Murat Dwivedi.

75. During the course of evidence, the statement of the accused under Section 294 Cr.PC was recorded wherein the accused Shiv Murat Dwivedi had admitted the correctness and genuineness of the execution of the documents as under:-

1) Invoice No.10646 dated 28.01.2010 of Balaji Network qua the sale of Samsung Mobile for Rs.7200/- as Ex. PA/1;

2) A receipt dated 22.12.2009 of Metro Communication of Rs.3000/- as Ex. PA/2;

3) Bill No.1051 dated 22.05.2004 of Classic Power System for the sale of inverter and battery for Rs.9500/- as Ex.

PA/3;

4) Receipt dated 07.08.2007 of Le Club Elite for Rs.7865/- as Ex. PA/4;

5) Receipt No. 7764 of Hotel Downtown, Kolkatta for Rs. 1000/- as Ex. PA/5;

6) Receipt No.365 of Neeta Travels of date of journey on 28.07.2007 to go to Mumbai for Rs.400/- as Ex. PA/6;

7) Detail invoice of Time Emporium for the sale of mobile phone for Rs.4900/- as Ex. PA/7;

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8) Bill no. 284 dated 11.04.2003 for Rs.3500/- in the name of Sri Sai Dham Mandir, C- Block, Jawahar Park, Devli Road, New Delhi, as Ex. PA/8;

9) Cash memo dated 23.08.2007 in the name of Swami Bhima Nand for the sale of microtek 850VA inverter for Rs.4900/- as Ex. PA/9;

10) Bill No.34009 of R.K. Vision in the name of Shiv Murat Dwivedi for Rs.4500/- as Ex. PA/10;

11) Bill No. 7717 dated 07.10.2006 of Bhartiya Vision in the name of Shiv Murat Dwivedi for the sale of Nokia Mobile phone for Rs. 13100/- as Ex. PA/11;

12) Bill No.240 dated 23.07.2007 of Jainco Power Technologies in the name of Sri Sai Ram Mandir for the sale of inverter for Rs.4900/- as Ex. PA/12;

13) Bill No. 480 dated 30.06.2002 in the name of Om Sai Mandir Trust for sale of Samsung 50A model of Samsung Digital Allhome for Rs.13500/- as Ex. PA/13;

14) Silver Master Card Credit Card Statement in the name of Shiv Murat Dwivedi dated 07.01.2010 for Rs. 1255/- as Ex. PA/14;

15) ICICI Bank Pay-In-Slip dated 20.06.2007 in the name of Rashmi Goha for the deposit of cash of Rs.20,000/- as Ex. PA/15;

16) ICICI Bank cheque no.600934 dated 12.07.2007 in favour of Shiv Murat Dwivedi for Rs.15 lacs only, as Ex. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 108 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:18 +0530 PA/16;

75.1. Therefore, the witnesses with respect to these documents were dropped.

Arguments on behalf of State by Sh. Pravin Rahul, Ld. Addl. PP for State.

76. It is argued on behalf of the State that accused Shiv Murat Dwivedi @ Shiva @ Swami Ji S/o Bacha Lal has been charged and facing the trial for the commission of offence punishable U/s 3(1) of MCOC Act. It is further argued that accused Parveen has been charged and is facing the trial for commission of offence punishable U/s 3(2) of the MCOC Act. It is further argued that accused Shiv Murat Dwivedi was having previous involvement in other cases bearing FIR No. 705/1997 PS Lajpat Nagar U/s 3/ 4 /5/8 of ITP Act, FIR No. 183/1998 U/s 3 /4/ 5/ 8 of ITP Act PS S.N Puri, FIR No. 303/1998 U/s 395/ 412 IPC PS Badarpur, FIR No. 167/2003 U/s 2/ 3 of the Gangster Act PS Sector 24 Noida, U.P., FIR No. 381/2003 which was again re-registered as FIR No. 160/2003 PS Sector 24 Noida U/s 3/ 4/ 5/6/7/8 of ITP Act and FIR No. 47/2010 PS Saket U/s 4/ 5/8 of the ITP Act.

76.1. It is further argued that during the investigation of FIR No. 47/2010 PS Saket, it was revealed that accused Shiv Murat Dwivedi was running an organized crime syndicate and had generated huge wealth to the tune of Rs. 1.5 Crore approximately and he was found indulged in other criminal activities including the offence punishable U/s 395 IPC.

76.2. It is further argued that the accused was not SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 109 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:25 +0530 having any legal source of income and therefore, it was presumed that this amount has been accumulated as the proceeds of the crime. It is further argued that accused and his associate Parveen continued their unlawful activities with the sole object of gaining pecuniary benefits and other advantages by unlawful means.

76.3. It is further argued that the approval for registration of FIR was moved before competent authority and the same was accorded on 06.03.2010 Ex. PW67/A. Hence, the present FIR was

registered under the MCOC Act.

76.4. It is further argued that accused Shiv Murat was arrested on 09.03.2010 in the present case and his police custody remand was taken and during investigation his confessional statement was recorded on 15.03.2010 U/s 18 of MCOC Act by Addl. Commissioner of Police South East District and the accused was produced before the then Ld. ACMM where he also admitted that he was running a flash trade in organized manner for pecuniary gain for about last 13 years and had collected massive wealth through these activities.

76.5. It is further argued that during further investigation, it was also revealed that he had acquired several movable or immovable properties from the said pecuniary gain while running a syndicate. He further argued that in the year 2003, the accused had purchased the property in Devli Khanpur which was approximately cost Rs. 52 lacs and established a temple on the said property to misrepresent himself as a spiritual preacher despite being SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 110 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:31 +0530 continue to run a prostitution racket.

76.6. It is further argued that he had also purchased luxury vehicles from the proceeds of the crime and during interrogation he had also revealed the name of his co accused and member of syndicate i.e. accused Parveen who was also the active member of organised crime syndicate.

76.7. It is further argued that accused Praveen was having number of girls on his panel for supplying them and the proceeds were shared with accused Shiv Murat Dwivedi.

76.8. It is further argued that during investigation it was revealed that accused Shiv Murat was also using several mobile numbers including in his name and address for carrying out illegal activities and running a organised crime syndicate. It is further argued that the recovered mobile phone contained thousands of contact numbers from different parts of the country and various hotels in Delhi.

76.9. It is further argued that it was revealed from the CDR that both the accused persons were in touch with each other regularly. It is further argued that the accused had also invested the ill-gotten money in various insurance policies, purchasing property at Jawahar Park, Khanpur in the year 2003 and had constructed four and a half story building and he was maintaining a lavishly furnished office.

76.10. It is further argued that accused Shiv Murat Dwivedi had also built three storied temple in 5000 sq feet area in his native village with approximately cost of Rs. 50 lacs besides purchasing one more property worth of Rs. 15 lacs from the proceeds of the crime.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 111 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:39 +0530 76.11. It is further argued that the accused Shiv Murat Dwivedi used to

reside in different renting premises by representing himself as spiritual preacher, however, when the landlord used to realize that he was running a prostitution racket, they used to ask him to vacate the same. It is further argued that the accused was also having six banks accounts and having a cash deposit of about Rs. 89 Lacs.

76.12. It is further argued that during investigation, seven personal diaries, two registers and some loose documents were also seized containing several notes of payment, expenses and he was having transactions of such huge amount without having any legal known source of income. It is further argued that during investigation, it was also revealed that he used to hire rooms with five star hotels to entertain the clients for the purpose of prostitution and to continue his activities of organised crime syndicate.

76.13. It is further argued that it was also revealed that he had purchased various air and railway tickets. It is further argued that the investigating agency had examined the witnesses in relation to the above said fact and collected the documents from the various banks.

76.14. It is further argued that the prosecution has relied upon the FIR No. 705/1997, PS Lajpat Nagar under Section 3,4,5,8 of ITP Act, FIR No. 183/1998, PS S.N. Puri, FIR No. 303/1998, PS Badarpur, FIR No. 167/2003 PS Sector 24, NOIDA, FIR No. 341/2003 (re-registered as 160/2003) PS Sector 24, NOIDA and FIR No. 47/2010, PS Saket as the offences which were committed prior to the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 112 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:45 +0530 registration of the FIR under MCOC Act of the present case and the competent court had taken the cognizance on these cases as per mandate of Section 2 (d) of the MCOC Act.

76.15. It is further argued that the record pertaining to the these cases were duly proved during the trial of the case. It is further argued that the witnesses have been examined regarding vehicles and properties belonging to the accused persons had duly proved the case of prosecution during the trial of the case and it has been established that the vehicles and properties were generated by the accused persons from the commission of organised crime.

76.16. It is further argued that the life style and the expenditure made by the accused without any legal source of income suggests that all the properties were generated from the commission of organised crime by the accused persons. It is further argued that the lifestyle and expenses incurred by the accused persons have also been proved by the concerned witnesses and documents have been duly exhibited during their testimonies.

76.17. It is further argued that the confessional statement as recorded under Section 18 of the MCOC Act has also been proved by the prosecution and the accused has admitted that he had made the statement voluntarily before the competent authority/ Ld. ACMM, therefore, this confessional statement can be used as a corroborative evidence against the accused persons.

76.18. It is further argued that accused Shiv Murat Dwivedi had examined DW 1 Santosh Pandit in support of his claim that the accused gained the properties by working SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 113 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:52 +0530 as Pujari, however, from the testimony of this witness it has not been established that the quantum of income as generated by the accused Shiv Murat Dwivedi from the work as Pujari and further no ITR was filed by the accused for the relevant period to show that the accused was gaining income from the work of Pujari.

76.19. It is further argued that accused Shiv Murat had also claimed through witness DW 1 Santosh Pandit that accused Shiv Murat was wrongly and falsely arrested by the police however, no corroborative evidence like any complaint against illegal arrest was made by the Shiv Murat or his family members so his defence is liable to be rejected.

76.20. It is further argued that the defence as taken by the accused Shiv Murat through defence evidence is an afterthought and no such defence was taken by the accused during the cross examination of the witnesses of the prosecution and statement of the accused.

76.21. It is further submitted that accused Shiv Murat had not disputed in his statement recorded under section 294 Cr.PC that about the bank documents and amount credited in his account, which also corroborates the case of the prosecution.

76.22. It is further argued that prosecution has proved its case beyond reasonable doubt regarding the charges of Section 3 of the MCOC Act against both the accused persons, hence both the accused persons are liable to be convicted as per law.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 114 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:37:59 +0530 Final arguments on behalf of accused Praveen Kumar through counsel Sh. Vikas Padora.

77. It is argued on behalf of the accused Praveen that the accused Parveen is merely a scape got in order to implicate the accused Shiv Murat, so as to make the case of organized crime syndicate U/s 2(f) of the MCOC Act.

77.1. It is further argued that there was no urgency shown by the police as FIR no. 54/2010 PS Saket was registered on 06.03.2010 and accused Shiv Murat was arrested on 09.03.2010, however, the accused Parveen was arrested on 31.07.2010 and he was implicated in the planned manner after scrutinizing the document as the case was not falling within the purview of Section 2(f) of MCOC Act.

77.2. It is further argued that the confessional statement of accused Shiv Murat was recorded on 15.03.2010 and the confessional statement of the accused Praveen was recorded on 03.08.2010.

77.3. It is further argued that six girls were not prosecuted under MCOC Act and therefore, in the present case neither there was a victim nor accused as associate of the accused Parveen and Shiv Murat to invoke MCOC Act against them.

77.4. It is further argued that confession under Section 18 of the MCOC Act is forced and invalid in law and the same cannot be considered as evidence for the prosecution under MCOC Act or it has no corroborative value against the accused persons.

77.5. It is further argued that initially, two disclosure statements dated 31.07.2010 and 01.08.2010 were SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 115 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:05 +0530 recorded forcibly by the police during police custody of accused Praveen and thereafter, he was forced to give the confessional statement on 03.08.2010 which was not voluntarily.

77.6. It is further argued that no incriminating material came on record to support the confessional statement as no monetary transaction/banking transaction were established and proved in between accused Shiv Murat Dwivedi and Parveen during the investigation and during the trial.

77.7. It is further argued that the confessional statement of both the accused persons show that those were not having the name of the other accused as their associate. It is further argued that on perusal of the confessional statement of both the accused persons, it appears to be the copy paste of each other.

77.8. It is further argued that the witness PW-51 HC Rajesh Kumar find mentioned that the accused was not explained that he was not bound to give the confessional statement to the DCP or the statement may be used against the accused during the trial and mandatory procedure of Section 18(3) of the MCOC Act was not followed.

77.9. It is further argued that the accused Parveen had not confirmed his statement before Ld. CJM/ACMM/CMM. It is further argued that chargesheet reflected that there was no evidence that both the accused persons were associates of each other or were related with each other in any manner either financially, telephonically or having any other relationship between them. It is further SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 116 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:12 +0530 argued that no bank statement or CDR were proved during the trial.

77.10. It is further argued that it is the admitted case of prosecution that the accused Praveen Kumar had come to Gurgaon in the year 2006 and started working as tempo driver, so any criminal activity which was not attributed of the accused Shiv Murat prior to 2006, cannot be considered against the accused Parveen for the purposes of MCOC Act.

77.11. It is further argued that from the year 2010, there was no contact or dealing with accused Shiv Murat and Parveen between the period 2006 till the year 2010. It is further argued that there are only 10 to 15 calls on record i.e. prior to registration of the FIR for about 20 days prior to the registration of FIR No. 47/2010 PS Saket.

77.12. It is further argued that the calls which accused Praveen was having was of no use. It is further argued that the call was made by accused Praveen (Mob no. 9999853646) with one Raj Kumar (9910639999) who was not associated in the investigation of the present case in any manner and was not examined as a witness.

77.13. It is further argued that the personal number of accused Shiv Murat has been shown as 9717829786, but there are no direct calls on this number from two mobile numbers of accused Parveen i.e. 9999853646, 9899650927. The phone book of accused Praveen does not show number of accused Shiv Murat saved.

77.14. It is further argued that the offence under organized crime U/s 2(e) of MCOC Act is not made out as prosecution has not examined any witness who is the victim SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 117 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:18 +0530 of any violence, threat of violence, intimidation or coercion as required under MCOC Act.

77.15. It is further argued that no doubtful properties have been found from accused Praveen whether movable or immovable. It is further argued that there are only two second hand cars shown recovered from accused Parveen but the value of said cars i.e. Santro was about Rs. 2.5 lacs and Honda Civic Car was about Rs. 6.5 lacs.

77.16. It is further argued that the possession of said two second hand cars can in no manner be considered as any proceeds of crime as prosecution has admitted that accused Praveen was working earlier as a tempo driver and dairy goods supplier and could have accumulated such meagre amount to purchase cars.

77.17. It is further argued that mere possession of two movable properties i.e. two cars can had best be a case of tax evasion but not an offence under MCOC Act.

77.18. It is further argued that seven bank accounts had been shown against accused Praveen, but only Rs. 97,000/- was the residual amount of said seven bank accounts.

77.19. It is further argued that except the chargesheets filed against accused Shiv Murat Dwivedi, there was no evidence in the present matter. It is further argued that since FIR No. 47/2010 PS Saket cannot be considered for the purposes of invoking MCOC Act as chargesheet was not filed in the said FIR No. 47/2010 and the cognizance was not taken, so no evidence or investigation conducted in FIR No. 47/2010 PS Saket can SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 118 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:24 +0530 be considered in the present

FIR under MCOC Act.

77.20. It is further argued that since accused persons have already been acquitted in FIR No. 47/2010, no incriminating evidence of said FIR or the statement of witnesses pertaining to said FIR in the present case, can be read or considered against the accused persons. It is further argued that the prosecution has miserably failed to prove the case U/s 3(2) of MCOC Act against accused Praveen.

77.21. It is further argued that the case of the prosecution against the accused Praveen and accused Shiv Murat Dwivedi has not been proved. Hence, both the accused persons are entitled to be acquitted from the present case.

Arguments on behalf of the accused Shiv Murat Dwivedi by his counsel Sh. Chirag Jamwal.

78. It is argued that the 'term continuing unlawful activity' has been defined under section 2 (d) of the MCOC Act and the term Organised Crime Syndicate has been defined under 2

(f) of the MCOC Act, however, the prosecution has failed to prove about the existence of any organised crime syndicated operated by the Shiv Murat or the other accused persons signally or jointly.

78.1. It is further argued that as per the case of the prosecution, the accused Parveen was the active member of the Organised Crime Syndicate, however, it has not been proved that accused Praveen was in any manner associated with the accused Shiv Murat Dwivedi. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 119 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:30 +0530

78.2. It is further argued that the crime syndicate can not be formed by single person and two or more persons are required to the alleged act of the accused Shiv Murat if any, does not fall within the purview of Section 2

(f) of the MCOC Act. It is further argued that the term 'Organised Crime' has been defined under 2 (e) of the MCOC Act, however, the allegations of offence punishable under the provision of ITP act does not fall within the purview of organised crime as defined under 2 (e) of the MCOC Act as the element of Violence or threat is missing in the cases registered under the ITP Act against the accused Shiv Murat Dwivedi as there is no allegation in those cases that forceful sex trade business was run by the accused persons.

78.3. It is further argued that the prosecution has also failed to prove that the accused persons gained any pecuniary benefit, undue economic or other advantage or promoting insurgency, hence, the element of organised crime has not been proved against the accused persons.

78.4. It is further argued that no witness i.e., the alleged customers of the alleged sex trade business or call girls were examined during the trial on behalf of the prosecution to establish that the accused persons were deriving any pecuniary benefits from the alleged sex trade business.

78.5. It is further argued that the case under MCOC Act was registered on 06.03.2010 and as per the legal provisions, the cases registered prior to the 06.03.2010 are required to be considered in preceding ten years i.e., cases SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 120 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:36 +0530 upto 05.03.2000. It is further argued that the cognizance in FIR No. 47/2010, PS Saket was taken on 26.04.2010 i.e., subsequent to the date of the registration of the case under MCOC Act, therefore, this case cannot be considered.

78.6. It is further argued that the FIR No. 705/1997, PS Lajpat Nagar, under Section 3,4,5,8 of ITP Act, however, this case was registered on 01.10.1997 i.e., prior to the 05.03.2000, hence it cannot be considered for invoking MCOC Act.

78.7. It is further argued that FIR No. 303/1998, PS Badarpur was also registered prior to the 05.03.2000 hence, it cannot be considered for invoking the provision MCOC Act. It is further argued that in FIR No. 303/1998, PS Badarpur, accused was ultimately acquitted from the Hon'ble High Court of Delhi.

78.8. It is further argued that in FIR No. 303/1998, PS Badarpur, no document has been placed and proved to establish the factum of taking cognizance in that case by the competent court. It is further argued that the judgment in FIR No. 303/1998 was pronounced on 22.09.2001 wherein the accused was ultimately acquitted by the Hon'ble High Court of Delhi.

78.9. It is further argued that in FIR No. 183/1998, PS S.N. Puri, it has not been established during the trial that on which date cognizance was taken by the competent court and only the order of arguments on point of charge was filed with the record.

78.10. It is further argued that FIR No. 341/2003 (re-registered as 160/2003) PS Sector 24, NOIDA and FIR SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 121 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:42 +0530 No. 167/2003, the prosecution has not placed any record to establish the date of taking cognizance by the competent court and the said FIR pertains to the state of UP where MCOC Act has not been notified, hence, the same cannot be considered for the purposes of offence in preceding ten years. It is further argued that the said FIR No. 167/2003 was registered under Gangster Act in NOIDA which is equivalent to the MCOC Act, therefore, the same cannot be considered as substantive offence for the purposes of the present case.

78.11. It is further argued that in FIR No. 47/2010, PS Saket, the cognizance was taken on 26.04.2010 pursuant to the 06.03.2010 when the FIR of MCOC Act in the present case was registered, therefore, the same cannot be considered for the purposes of the present case.

78.12. It is further argued that the case of the prosecution regarding the commission of substantive offences for considering to invoke the MCOC Act has not been proved beyond reasonable doubt, therefore, the accused persons Shiv Murat and Praveen Kumar are entitled to be acquitted under Section 3(1)/ 3(2) of the MCOC Act.

78.13. It is further argued that in all the FIRs on the basis of which the MCOC Act was invoked in the present case, no other accused except the accused Shiv Murat and Praveen were chargesheeted and tried or investigated to establish the alleged crime syndicate.

78.14. It is further argued that accused Praveen was only allegedly involved in FIR No. 47/2010 PS Saket, so SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 122 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:49 +0530 the invocation of the MCOC Act against the accused Shiv Murat Dwivedi and accused Praveen on the basis of the other FIRs, except FIR No. 47/2010 was bad in law and wrongly invoked, hence, the accused persons are entitled to be acquitted.

78.15. It is further argued that the certificate under Section 65-B of the Indian Evidence Act was not placed and proved with respect to the registration of the FIR or any other document by the prosecution. It is further argued that the name of the police officials Inspector Dharamdev, Inspector Ram Kumar, SI Praveen Kumar were mentioned in the FIR, however, these police officials were not made as the witnesses in the present case, neither they were associated as a witness in the present case in any manner.

78.16. It is further argued that the present FIR No. 54/2010, PS Saket under MCOC Act was registered on 06.03.2010 and it is mentioned in the FIR that the accused Shiv Murat had generated a sum of Rs. 1.5 Cr. from his criminal activities, however, it has not been proved that on what basis the complainant officer of the MCOC Act had arrived at the figure of sum of Rs. 1.5 Cr. as mentioned in the FIR at such an initial stage.

78.17. It is further argued that the detail of the FIR No. 47/2010 PS Saket was not mentioned in the FIR of the MCOC Act i.e., present FIR and the other persons involved in other cases were not associated in the investigation of the present case.

78.18. It is further argued that the FIR under MCOC Act was registered only against the accused Shiv Murat SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 123 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:38:55 +0530 Dwivedi despite the commission of alleged offence and apprehension of both the accused persons under ITP Act in FIR No. 47/2010 PS Saket and no explanation has been offered by the prosecution in that regard.

78.19. It is further argued that the entire case was initiated on the basis of the FIR based on the FIR registered in the NOIDA and the MCOC Act has not been notified in UP, so the registration of the FIR of the present case on the basis of cases registered in NOIDA was impermissible in law and MCOC Act has been wrongly invoked against the accused persons.

78.20. It is further argued that in the FIR the term Operator of Organised Crime Syndicate was used against the accused Shiv Murat however, it has not been explained that on the basis of what material the said term was used against the accused Shiv Murat Dwivedi as no material was available at that time with the investigating agency.

78.21. It is further argued that vague allegations and averments made against the accused Shiv Murat in the FIR and in the complaint in order to falsely implicate him in the present case. It is further argued that no procedure for sending the proposal to the competent authority was followed by the investigating agency and the competent authority had wrongly accorded the Sanction under Section 23 of the MCOC Act to prosecute the accused persons without any sufficient material scrutinized by them.

78.22. It is further argued that PW 1 Abhay Dua has been pressurised by the prosecution to enhance the value of the car as the witness had vehicle bearing no. DL 4C SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 124 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:01 +0530 AA 0300 which was bought from M/s Chetan Das for a sum of Rs. 675000/-, however, on perusal of cheque dated 12.12.2009, the same mentioned as sale consideration as 6 lakh only.

78.23. It is further argued that from the evidence of PW 1, it is also apparent that the said vehicle belonging to accused Praveen was not new and second hand car, meaning thereby he was not having sufficient means to purchase new car and this fact was verified through witness PW 3 Ramesh Kumar from the transport department vide document PW 3/A. 78.24. It is further argued that as per the deposition of the PW 4 regarding the ITR of the accused Praveen, the gross income of the accused Praveen in the assessment year 2007-08 was 1,23,985/- only. It is further argued that similarly, for the other financial years are not substantial with respect to the accused Praveen which rules out that any offence was committed by the accused through which the accused Praveen generated huge money through the proceeds of the crime.

78.25. It is further argued that there is contradiction in the prosecution case in which on one side the prosecution is claiming that the accused Praveen had deposited huge cash in his account, however, his account statement as well as ITR shows that there was no substantial amount deposited in the respective financial year in the account of accused Praveen.

78.26. It is further argued that witness PW 5 produced the ITR of the accused Shiv Murat Dwivedi, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 125 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:08 +0530 however, the ITR document of the accused Shiv Murat shows that there was no substantial amount deposited in the account of the accused Shiv Murat for the assessment year 2004-05 and 2005-06 and no other document was filed.

78.27. It is further argued that there is contradiction in the prosecution case in which on one side the prosecution is claiming that the accused Shiv Murat had deposited huge cash in his account, however, his account statement as well as ITR shows no substantial amount was deposited in the respective financial year in the account of accused Shiv Murat.

78.28. It is further argued that the alleged electricity bill as produced by the witness PW 6 with respect to the accused Shiv Murat Dwivedi had not proved anything as no connection had been proved by the accused with the house no. 239, Sector 3 R.K. Puram and H.No. 138, Government

Quarter, R.K.Puram, New Delhi.

78.29. It is further argued that the document as produced by witness PW 7 regarding the insurance policy of vehicle bearing no. DL 3CU9849 Tata Safari had no connection with the accused Shiv Murat or accused Praveen and no corroborative evidence came on record to this effect.

78.30. It is further argued that the document Ex. PW 8/A regarding the alleged hotel bills in the name of S.N. Diwadi had not been duly proved as the cashier who had issued the bill was not examined and it had not been proved that the said guest S.N. Diwadi was in any manner SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 126 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:21 +0530 connected with the accused. It is further argued that the witness PW 8 Inder Raj was a planted witness by the police and he deposed falsely and document Ex. PW 8/A was a fabricated document.

78.31. It is further argued that no material incriminating evidence came on record through witness PW 9 Inspector Ram Kumar as the witness who were examined by him namely Samrat, Ramesh Chand Gupta, Rajesh and Alok were not cited as witness in the present case and they were not examined as witness in the present case regarding the alleged expenses made by the accused Shiv Murat by alleged different modes.

78.32. It is further argued that witness PW 9 was vague as to whether he was member of the raiding team regarding the raid conducted on the date of incident. The said witness was ignorant of the fact about the time and place where the instructions were given to him to go to Manikpur by the IO or whether the said instructions were given telephonically or personally.

78.33. It is further argued that the witness PW 11 was the witness related to the vehicle bearing no. DL 7 CF 2115 registered in the name of the accused Shiv Murat Dwivedi and from the ledger account, retail invoice and RC of the Vehicle, it is evident that the said vehicle was hypothecated through HDFC bank and the total sale consideration was merely, 7,16,532/-, thus cannot be a luxury car which corroborates the fact that the accused Shiv Murat was not in the financially capacity to purchase the car without loan.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 127 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:29 +0530 78.34. It is further argued that the witness PW 12 Sandeep Julka was the witness regarding the Life Insurance Policy of the accused Shiv Murat, however, as per the record Ex.PW 12/A-1 to Ex. PW 12/A-14, the premium amount was very small and the some of the insurance policies were discontinued/ lapsed due to the non payment of the premium amount which corroborates the version of the accused that the accused Shiv Murat was not having any sufficient means as claimed by the prosecution from the proceeds of the crime.

78.35. It is further argued that PW 13 was the witness related to the alleged stay of the accused Shiv Murat from Lalit Hotel, however, no material evidence came on record neither the document Ex.

PW 13/A was proved by the witness PW 13 who was neither the author of the document nor the witness to the document in any manner.

78.36. It is further argued that PW 14 was the witness related to the ITR for the assessment year 2008-09 of the accused Praveen Kumar, however the gross total income was as Rs. 2,86,385/- which was not a substantial amount to say that accused had generated huge sum from the proceeds of the crime. It is further argued that the gross total income of the year 2007-08 was merely Rs. 1,23,985/- of the accused Praveen Kumar as per the record of the ITR.

78.37. It is further argued that PW 15 was the witness regarding the alleged stay of the accused Shiv Murat Dwivedi at Oberoi Hotel, however, the document SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 128 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:35 +0530 Ex. PW 15/A was not proved as witness was not the signatory or author of the document, neither the document was having signature of the customer.

78.38. It is further argued that PW 16 Davender Singh was the witness regarding the bill of the rifle sold to the accused Shiv Murat, however, this witness had no relevance with the present case and even the said bill Ex. PW 16/A had not been proved as per law.

78.39. It is further argued that PW 17 Sh. D.P. Singh was the valuer with respect to the properties of the accused Shiv Murat Dwivedi at his native place and Delhi. However, he was a planted witness by the police and the document as relied upon by the witness PW 17 i.e., Ex. PW 17/A, the property of Chamroha village was belonging to the Sai Param Pavan Dham and not belonging to the accused Shiv Murat Dwivedi.

78.40. It is further argued that the the said property was the ancestral property of the accused in the name of the father of the accused. It is further argued that the ancestral property of the accused had no relation with the accused Shiv Murat or the alleged crime committed by the accused. It is further argued that the said valuer had never visited the property and had prepared a false and baseless report under the pressure of the police.

78.41. It is further argued that various aspects as mentioned in Form-01 have been wrongly assessed and as per the said valuation report, the said witness had visited the subject site on 16.06.2010 along with the representative of the owner, however, the same was SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 129 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:41 +0530 factually incorrect.

78.42. It is further argued that witness was silent about location of the nearby school, hospital, cinema, market from the Chamroha temple and the witness was unaware about the total area of the temple and about the year of the construction of the temple at the time of his cross examination.

78.43. It is further argued that without any basis the witness had deposed that the temple was built by labour rate contractor and no such contractor was ever examined either by the valuer or by the police.

78.44. It is further argued that father of the accused Shiv Murat had not been examined, despite allegedly talking to the father of the accused for 2-3 hours and the said witness could not even give basic description about the said father of the accused. It is further argued that the photographs of the temple Chamroha had not been proved as per law as the negatives had not been proved by the said witness.

78.45. It is further argued that during his cross examination the witness had accepted that there was no electrical wiring in the temple, however, in his valuation report, the witness had stated otherwise.

78.46. It is further argued that witness did not remember when he had visited the Jawahar Park property and he was highly vague about the police official if any who had accompanied him to the Jawahar Park property. It is further argued that the witness had conceded that he had stayed at the Jawahar park property for only one hour and SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 130 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:48 +0530 it was humanly impossible to prepare a detailed valuation report of a property in merely one hour.

78.47. It is further argued that PW 18 Sudha Mishra was the witness with respect to the insurance policies of the accused Praveen Kumar, however, the premiums of the said policies were discontinued to be paid by the accused after paying two instalments and no incriminating material came against the accused from this witness PW 18. the amount of premium was very meagre.

78.48. It is further argued that PW 19 is the witness with respect to the account of the accused Praveen Kumar at Standard Chartered Bank, however as per the record of the bank, only Rs. 7,935/- were there in the account, which rules out that accused Praveen was maintaining huge bank balance.

78.49. It is further argued that PW 20 Sunder Lal, the Tehsildar and he was the witness in relation to the queries raised by the police with respect to the Chamroha Property of the District Chitrakoot

78.50. It is further argued that the said witness clearly mentioned that there was no self acquired property in the name of the accused Shiv Murat and further that all the properties at Chamroha was in the name of the Sh. Bachha Lal i.e., the father of the accused. It is further argued that the said witness also stated that the land of the Chamroha temple was belonging to the father of the accused Shiv Murat and further that no hospital was there in the name of the accused or his family members. It is further argued that the said witness had clearly supported SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 131 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:39:55 +0530 the defence version.

78.51. It is further argued that the Ex. PW 21-A and Ex. PW 21/B were not proved as per law and there was no certificate under Section 65-B of Indian Evidence Act or under Bankers Book Evidence

Act 1891 and even otherwise the transaction in the said account no. 61070724277 pertaining to accused Praveen Kumar was not large but rather routine. It is further argued that these facts had been admitted by the witness PW 21 during his cross examination.

78.52. It is further argued that similarly Ex. PW 22- A and Ex. PW 22/B had not been proved as per law and there was no certificate under Section 65-B of Indian Evidence act or under Bankers Book Evidence Act 1891 and even otherwise the transaction in the said account no. 01750010013340 was pertaining to accused Praveen Kumar was not large but rather routine.

78.53. It is further argued that nothing deposited by PW 23 which might be considered as incriminating evidence against the accused persons. It is further argued that at the behest of the police, the said witness had intentionally undervalued the amount of Chadhawa offered at the Sai Temple. It is further argued that in fact the said Chadhawa was much higher than the amount said by the witness.

78.54. It is further argued that the bills Ex. PW 24/A and Ex. PW 24/B pertaining to the accused Shiv Murat Dwivedi were not duly proved for want of certificate under Section 65-B of the Indian Evidence Act and even SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 132 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:01 +0530 otherwise the bill raised were of very miniscule amount i.e., Rs. 302/- and Rs. 99/- only.

78.55. It is further argued that the witness PW 25 SI Sanjay being a decoy customer in FIR No. 47/2010 PS Saket and in that case accused persons had already been acquitted by this court.

78.56. It is further argued that PW 25 has been most vague about the informer, the raiding party, personal search conducted on him, presence of the beat constable, amount of money recovered from the accused Shiv Murat, place of the presence of the raiding party, dress worn by the raiding party, parking of cars of the accused persons, clothes worn by accused Praveen Kumar and other relevant facts.

78.57. It is further argued that PW 26 Rajesh could not even identify the alleged customer as mentioned in the cash memo Ex. PW 26/A. It is further argued that the said witness was a planted witness and even otherwise the amount involved in the said bill was merely Rs. 12,000/-.

78.58. It is further argued that PW 27 was the witness who had proved the receipt as Ex. PW 27/A which was of mere Rs. 1000/- and the said witness conceded that he did not write his own statement but the same was recorded through his phone and also he did not mention the name of the accused Shiv Murat in his testimony. It is further argued that he was the planted witness by the prosecution.

78.59. It is further argued that PW 28 was the witness related to Ex. PW 28/A i.e., the invoice of Bansal SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 133 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:08 +0530 Electronics which did not bear the signature of the

customer. It is further argued that even otherwise the article purchased ie., Nokia handset was of merely Rs. 5050/- and was a very basic phone in nature. It is further argued that the name depicted on the said invoice was of one Shiva Devadi and not the present accused.

78.60. It is further argued that PW 29 was neither the author nor the signatory of the Ex. PW 29/A, thus he was not competent to depose in the instant matter.

78.61. It is further argued that PW 30 had clearly mentioned the amount of rent of merely Rs. 5000/- per month and during his cross examination, the witness had accepted that no prior statement was ever recorded by the police. It is further argued that he also stated that he never complaint that the prostitution was going on in the said premises, however, on the contrary, Havan and Pooja used to be occasionally done in the said flat and that speaker was too loud during the havan ceremony.

78.62. It is further argued that PW 31 Amulya K. Patnaik was the witness who had accorded the sanction Ex. PW 31/A to prosecute the accused persons and during his cross examination, it came on record that Ex. PW 31/A did not mention the specific offences under MCOC Act for which the sanction was accorded. It is further argued that it also did not mention details of the FIR , charge sheet, nature of offences with respect to alleged earlier criminal antecedents and also did not mention any fresh offence to show continuity in organised crime.

78.63. It is further argued that during his cross SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 134 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:40:15 +0530 examination, the said witness could not even spell out exact number of cases in which the accused persons were previously involved and whether those cases pertained to ITP Act.

78.64. It is further argued that the said witness had wrongly deposed about the previous offences in the nature of cheating with respect to the accused persons and also he was unaware about the police stations, area (Delhi or outside) where previous alleged offences were committed.

78.65. It is further argued that he was also unaware about the particular charge sheets or the cases where cognizance were taken by the competent courts. It is further argued that he was not even aware about the number of the accused involved in the present case. It is further argued that he was unaware about any previous case with respect to the accused Praveen or involvement of both the accused jointly in any other previously committed offence. It is further argued that the sanction was thus faulty, passed in a mechanical manner without application of mind and thus unsustainable in law.

78.66. It is further argued that PW 33 was the witness pertains to the bank statement of the accused Shiv Murat Dwivedi maintained at HDFC Bank Ex. PW 33/A, however the document Ex. PW 33/A was not duly proved and even the document which was produced by the witness was not pertaining to the HDFC Saket Branch, but it was pertaining to the Sector 18 NOIDA Branch and witness was in no manner related with the said document. It is further argued that the said witness and his branch fell SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 135 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:40:21 +0530 under PS Saket, therefore he was pressurised by the police to depose against the accused Shiv Murat.

78.67. It is further argued that the account opening forms had not been produced, although the account of accused Praveen Kumar was from HDFC Saket Branch, but no certificate under Section 65-B of Indian Evidence act or under Bankers Book Evidence Act 1891 was proved during the trial. It is further argued that the amount deposited as well as the closing amount was meagre in nature. It is further argued that Ex. PW 33/A to Ex. PW 33/C pertains to the long period from 2001 to 2010.

78.68. It is further argued that PW 32 Ms. Abha was the witness pertaining to OBC Bank record of the accused Parveen having account at Sector 2, Gurugram, however, no certificate under Section 65-B of Indian Evidence Act or under Bankers Book Evidence Act 1891 was proved during the trial. It is further argued that the amount deposited as well as the closing amount was meagre in nature i.e., Rs. 369/-.

78.69. It is further argued that PW 34 Gopal Dass did not support the case of the prosecution.

78.70. It is further argued that PW 35 SI Praveen Kumar who was the the alleged signatory of Ex. PW 35/A ie., disclosure statement of the accused Shiv Murat Dwivedi, arrest memo Ex. PW 35/B, personal search memo Ex. PW 35/C, disclosure statement of the accused Praveen Kumar Ex. PW 35/D, seizure memo Ex. PW 35/E, disclosure statement of the accused Praveen Ex. PW 35/F, seizure memo of diaries and exercise book Ex. PW 35/G, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 136 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:30 +0530 but despite the above, the said witness was unaware about the details of the above exhibits and detail of the investigation.

78.71. It is further argued that PW 38, PW 39 and PW 40 had also not supported the case of prosecution.

78.72. It is argued that witness PW-41 was the landlord of the accused Parveen Kumar, however, in his statement U/s 161 Cr.PC, he stated that he was landlord of accused Shiv Murat and he did not disclose the name of accused Parveen. It is further argued that during cross examination, witness stated that he had never seen the accused Shiv Murat Dwivedi in the said premises and he did not meet him. It is further argued that the deposition of PW-41 was a hearsay and he was not the eye witness of the present case as he was the planted witness.

78.73. It is further argued that the witness PW-42 deposed in vague manner that Javed Khan alongwith Parveen Kumar had made arrangement for sale of room in the hotel, however, during cross examination he specifically deposed that Javed was with him and accused Parveen never dealt with him except the payment made on behalf of Javed. It is further argued that said Javed was neither a witness nor accused in the present case.

78.74. It is further argued that the witness PW-43 deposed that Ex. PW43/A does not bear name of any customer and the serial number and date of said document was altered. It is further argued that the said witness was not the author of the said document Ex. PW43/A, meaning thereby, he was the hearsay witness and planted by the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 137 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:37 +0530 police.

78.75. It is further argued that the witness PW-44 had not supported the case of prosecution.

78.76. It is further argued that the witness PW-45 and PW 46 deposed that documents Ex. PW45/A and documents Ex. PW 46/A respectively were not executed by them and they could not even name the person who had issued the same, meaning thereby, both these witnesses were the planted witness and they were unaware about the customer.

78.77. It is further argued that similarly, PW-47 deposed that document Ex. PW47/A was not executed by him and he could not even name the person who had issued the same, meaning thereby, he was the planted witness.

78.78. It is further argued that PW-48 Manoj Mathew deposed that he was not the author of document Ex. PW48/A-1 to A-4 and the said document remained unproved as per law.

78.79. It is further argued that PW-49 Inspector Dalip Kumar deposed that Ex. PW49/A-1 to Ex.

PW49/A-10 all pertained to articles which were religious in nature and therefore, not related to any organized crime syndicate and it corroborated the defence of accused Shiv Murat and further the said exhibits had not been proved as per law.

78.80. It is further argued that PW-50 Inspector Dharam Dev was never the part of the raiding party with respect to the FIR no. 47/2010, PS Saket and he never SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 138 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:43 +0530 joined the investigation and his testimony was vague and contradictory.

78.81. It is further argued that the testimony of PW-51 was vague and contradictory and he had failed to specify the contents of statement recorded before DCP, West.

78.82. It is further argued that the witness PW-52 was the nodal officer from Airtel and the document produced by the witness were not duly proved as the document were neither covered in category of primary evidence or secondary evidence. It is further argued that neither IO nor prosecution or this witness had pointed out any relevant calls between the two accused persons and from the perusal of the same, it is evident that there was no significant calls between both the accused persons to corroborate the case of prosecution that accused persons were related with each other being member of organized crime syndicate in active manner and even otherwise, mere phone calls were not enough to show any presence of organized crime syndicate between the accused persons.

78.83. It is further argued that PW-53 had admitted that during the proceedings of recording of statement Ex. PW53/A, the accused had informed to the Court that he was falsely implicated in the present case and meaning thereby his statement given to the police as recorded U/s 18 of MCOC Act was not voluntary made. It is further argued that during cross examination of PW-53, it had come on record that provision of Sec 18(4) and 18(6) of MCOC Act were not complied in word and spirit SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 139 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:49 +0530 by the concerned Court prior to recording the statement of accused.

78.84. It is further argued that PW-54 could not prove that he had an agency of Times of India and Hindustan Times and that payment was made by Parveen into his account. It is further argued that the said witness had fabricated documents and the same were hap hazardously written. It is further argued that the said handwritten random notes did not prove anything and the said witness by no stretch of imagination supported the case of prosecution. It is further argued that the exhibits were not duly proved as per law during the trial.

78.85. It is further argued that PW-55 was the vague and contradictory in his deposition and the said witness could not specify the type of printer used for recording the statement. It is further argued that on 15.03.2010, when the alleged statement was recorded by PW-55, the said witness stated that accused Shiv Murat had come to the office in Dhothi and Kurta. It is pertinent to mention that on said date, the accused was brought from the custody where Dhothi was

impermissible.

78.86. It is argued on behalf of the accused that even as per the deposition of PW-56, the Mal Mukadma was not seized. It is further argued that the possibility of IO planting / forging samples which were sent to the FSL could not be ruled out.

78.87. It is further argued that PW-57 did not follow the due process while recording confessional statement of the accused Praveen while recording the statement Ex. SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 140 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:40:55 +0530 PW57/A.

78.88. It is further argued that PW-59 or even the prosecution failed to point out any incriminating evidence against the accused Praveen from Ex. PW-59/A and nothing material had come out from the said exhibit.

78.89. It is further argued that PW-60 could not prove tenancy in absence of any lease deed with respect to accused Praveen and the said witness had been planted by the IO.

78.90. It is further argued that during the cross- examination of PW 61 recorded on 19.08.2014, it had come on record that the said witness did not go to the police station on 25.02.2010, whereas during his cross examination conducted on 20.08.2014, the said witness mentioned that he had reached the PS Saket at about 09:15 p.m., meaning thereby the said witness was highly vague about the constitution of raiding party, informer, uniform, sequence of vehicle, the persons who had prepared the site plan and other documents. It is further argued that the said witness also gave contradictory statement with respect to his visit to village Chitrakoot. It is further argued that the said witness also gave vague reply with respect to the valuer visiting the temple at Chitrakoot. It is further argued that the said witness was unaware about the name of the person on whose name the agricultural land at the village was registered.

78.91. It is further argued that the said witness also wrongly deposed that the land on which the temple was built was purchased by accused Shiv Murat when SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 141 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:01 +0530 infact it had already come on record that the same was ancestral land in the name of father of the accused Shiv Murat. It is further argued that the witness had accepted that there was no complaint made by any girl / female with respect to threat, pressure, coercion against Shiv Murat.

78.92. It is further argued that witness gave vague replies regarding the date of filing of the chargesheet in FIR No. 47/10, regarding the service of the notice to accused Praveen, with respect to the invocation of MCOC Act against him, the uniform / dress which he was wearing at the time of apprehension of the accused persons at PVR Saket, recording of the statement of accused Praveen Kumar under MCOC Act.

78.93. It is further argued that that the said witness intentionally tried to bolster the case of the prosecution by falsely stating that one complaint was made by a girl during the investigation of FIR

No. 54/10 and the same was unsubstantiated by anything on record.

78.94. It is further argued that from the perusal of Ex. PW62/A, it is evident that there was no customer signature on the said invoice and the name of the Sales Executive was one Vijeta Singh and not Sunil Singh as stated by the said witness during his cross-examination. It is further argued that the said witness had conceded that he could not identify the buyer of the product.

78.95. It is further argued that the entire proceedings undertaken by the PW-63 were fabricated as the said witness could not even remember during his cross-examination whether the accused Praveen had told him SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 142 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:08 +0530 about any previous cases that he was involved with the co-accused Shiv Murat. It is further argued that the said witness had been most vague and unreliable during his cross-examination which goes on to show that the IO had prepared the report / statement and merely obtained the signature of the said witness at a later stage.

78.96. It is further argued that Ex. PW64/A had no relevance to the present case and the electricity bill was of merely Rs. 2,825/-. It is further argued that the said electricity bill dated 17.06.2010 were allegedly pertained to accused Shiv Murat, however at that time, he was already in jail in the present case.

78.97. It is further argued that from the testimony of PW-65 regarding the recording of statement u/s 18 of MCOC Act appeared to be faulty as the said witness had failed to apprise the accused Shiv Murat in clear terms that the said accused was not bound to give any statement. It is further argued that the said witness had given vague replies with respect to nature of request made by the DCP for the recording of the statement, period when the said request was received. It is further argued that the said witness had accepted that he did not see any documents pertaining to the present case on the day of recording of the statement.

78.98. It is further argued that the said witness took a contradictory stand wherein first he had stated that the IO of the case had come with the accused to his office, but later on during his cross-examination it is mentioned that he did not remember whether the IO of the case had come with the documents or not.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 143 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:14 +0530 78.99. It is further argued that the said witness was clueless about the previous cases against the said accused, whether those cases pertained to Delhi or outside. It is further argued that the defence was successful in showing that the said witness had not prepared the confessional statement and therefore point X was written at a later stage and due to this reason the same was not typed nor was it countersigned. It is further argued that apparently the said witness had merely signed a pre-prepared document executed by the IO without applying his own mind.

78.100. It is further argued that that Ex. PW-66/A had not been proved as per law and certificate u/s 65-B of the Indian Evidence Act and the Banker's Book Evidence Act had not been produced and furthermore, the document Ex. PW-66/A had no bearing or relevance to the present case as the alleged account was in the name of Sh. Prakash Chandra Gupta.

78.101. It is further argued that the approval Ex. PW66/A was silent about any documents produced by the IO before the witness PW-67 and file No. 1827 had not been produced in the present case.

78.102. It is further argued that PW-67 during his cross-examination could not tell whether the old cases were registered in Delhi or outside. It is further argued that the said witness had wrongly stated that the previous activities of accused Shiv Murat Dwivedi pertained to violence. It is further argued that the said witness was unaware about the assets made by the accused or name of the other members of the organized crime.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 144 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:20 +0530 78.103. It is further argued that the said witness mechanically granted approval without perusal of the case file properly. It is further argued that it is the case of the defence that PW-67 had merely signed the approval on the asking of the IO without application of mind.

78.104. It is further argued that both the accused persons had satisfactorily answered the questions put to them while recording their respective statements u/s 313 Cr.P.C.

78.105. It is further argued that defence witness i.e., DW 1 Santosh Tiwari for the accused Shiv Murat Dwivedi had clearly established the case of the defence and categorically mentioned the place and manner of apprehension of the said accused which was contrary to the story of the prosecution. It is further argued that the accused Shiv Murat had already undergone imprisonment for a period of about 4 years and 05 months during the trial in the present case.

Rebuttal arguments on behalf of the State.

79. It is argued that each witness had its role to play in the investigation and whole of the case either be proved or disproved by one witness at the stage of final arguments. It is further argued that there was a difference between the print outs of the record and the electronic record and further when the documents were produced by the competent officials and it were proved during their testimonies and the question of their due attestation does SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 145 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:27 +0530 not arise.

79.1. It is further argued that the witnesses were not required to remember each and every minor details which they had written in their documents prepared by them as written documents could neither be proved or disproved by oral evidence.

79.2. It is further argued that it is not legally required to have previous case against each and every member of the organized crime syndicate. It is further argued that each and every legal requirement as required under the law, is against the syndicate and not against each and every member of the syndicate. It is further argued that the points raised upon the approval and sanction were only procedural in nature and also otherwise have been considered and upheld by the concerned Courts and answered by the Hon'ble High Court at the time of cognizance of the offence under MCOC Act and the revision before the Hon'ble High Court on the charge.

79.3. It is further argued that the contentions pointed out by the defence are not relevant as it does not go to the root of the evidence against the accused persons and the evidence against the accused persons stand proved beyond reasonable doubt and they are liable to be convicted.

Additional arguments on behalf of the accused Shiv Murat Dwivedi

80. It is argued that MCOC Act requires a higher standard of proof to show connection between the accused persons and ongoing organized crime syndicate. It is further argued that SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 146 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:35 +0530 the previous criminal cases, while relevant, are not enough on their own to invoke MCOC Act. It is further argued that the prosecution must provide further evidence of the syndicate's existence and accused's membership in it.

80.1. It is further argued that MCOC Act was initially invoked only against Shiv Murat which was impermissible as per law. It is further argued that the sanction / approval order was a mere repetition of the expression of the statute and only religious materials were recovered from accused Shiv Murat Dwivedi at the time of the alleged apprehension of the said accused which further goes on to establish that accused Shiv Murat was not part of a current syndicate but a religious person.

81. Heard the submissions of both the parties, perused the record of the charge sheet and also perused the case law as relied upon by both the parties.

DISCUSSION ON LAW APPLICABLE QUA ALLEGATIONS UNDER MCOC ACT, 1999

82.The term abet is defined in MCOC Act, 1999 as under:-

Section 2 (a) "abet", with its grammatical variations and cognate expression, includes,--

(i) the communication or association with any person with the actual knowledge or having reason to believe that such person is engaged in assisting in any manner, an organised crime syndicate ;

(ii) the passing on or publication of, without any lawful authority,any information likely to assist the organised crime syndicate and the passing on or publication of or

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 147 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:41 +0530 distribution of any document or matter obtained from the organised crime syndicate ; and

(iii) the rendering of any assistance, whether financial or otherwise, to the organised crime syndicate ;

82.1. The term continuing unlawful activity is defined in Section 2 (d) of MCOC Act, 1999 as under:-

" continuing unlawful activity" means an activity prohibited by law for the time being in force, which is a cognizable offence punishable with imprisonment of three years or more, undertaken either singly or jointly, as a member of an organised crime syndicate or on behalf of such syndicate in respect of which more than one charge-sheets have been filed before a competent Court within the preceding period of ten years and that Court has taken cognizance of such offence ;

82.2.

The term organised crime is defined in Section 2 (e) of MCOC Act, 1999 as under:-

(e) "organised crime" means any continuing unlawful activity by an individual, singly or jointly, either as a member of an organised crime syndicate or on behalf of such syndicate, by use of violence or threat of violence or intimidation or coercion, or other unlawful means, with the objective of gaining pecuniary benefits, or gaining undue economic or other advantage for himself or any other person or promoting insurgency ;

82.3. The term organised crime syndicate is defined in Section 2 (f) of MCOC Act, 1999 as under:-

(f) "organised crime syndicate" means a group of two or more persons who, acting either singly or collectively, as a syndicate or gang indulge in activities of organised crime ;

Section 3 of the MCOC Act, 1999 provides about the punishment as under:-

82.4. Section 3:- Punishment for organised crime-

(1) Whoever commits an offence of organised crime shall, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 148 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:47 +0530

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(i) if such offence has resulted in the death of any person, be punishable with death or imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees one lac;

(ii) in any other case, be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lacs.

(2) Whoever conspires or attempts to commit or advocates, abets or knowingly facilitates the commission of an organised crime or any act preparatory to organised crime, shall be punishable with imprisonment for a term which shall be not less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lacs.

(3) Whoever harbours or conceals or attempts to harbour or conceal, any member of an organised crime syndicate shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to a fine, subject to a minimum fine of rupees five lacs.

(4) Any person who is a member of an organised crime syndicate shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to a fine, subject to a minimum fine of rupees five lacs.

(5) Whoever holds any property derived or obtained from commission of an organised crime or which has been acquired through the organised crime syndicate funds shall be punishable with a term which shall not be less than three years but which may extend to imprisonment for life and shall also be liable to fine, subject to a minimum fine of rupees two lacs.

82.5. Section 17 of MCOC Act, 1999 provides SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 149 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:41:54 +0530 about the Special rules of evidence as under:-

Section 17:- Special rules of evidence- (1) Notwithstanding anything to the contrary contained in the Code, or the Indian Evidence Act, 1872,(1 of 1872), for the purposes of trial and punishment for offences under this Act or connected offences, the Court may take into consideration as having probative value, the fact that the accused was,--

(a) on any previous occasion bound under section 107 or section 110 of the Code ;

(b) detained under any law relating to preventive detention; or

(c) on any previous occasion was prosecuted in the Special Court under this Act.

(2) Where it is proved that any person involved in an organised crime or any person on his behalf is or has at any time been in possession of movable or immovable property which he cannot satisfactorily account for, the Special Court shall, unless contrary is proved, presume that such property or pecuniary resources have been acquired or derived by his illegal activities.

(3) Where it is proved that the accused has kidnapped or abducted any person, the Special Court shall presume that it was for ransom.

82.6. Section 18 of MCOC Act, 1999 provides about the confession made to the Police Officer as under:-

Section 18:- Certain confessions made to Police officer to be taken into consideration-

(1) Notwithstanding anything in the Code or in the Indian Evidence Act, 1872, but subject to the provisions of this section, a confession made by a person before a police officer not below the rank of the Superintendent of Police and recorded by such police officer either in writing or on any mechanical devices like cassettes, tapes or sound tracks from which sounds or images can be reproduced, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 150 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:00 +0530 shall be admissible in the trial of such person or co-

accused, abettor or conspirator :

Provided that, the co-accused, abettor or conspirator is charged and tried in the same case together with the accused.

(2) The confession shall be recorded in a free atmosphere in the same language in which the person is examined and as narrated by him.

(3) The police officer shall, before recording any confession under sub-section (1), explain to the person making it that he is not bound to make a confession and that, if he does so, it may be used as evidence against him and such police officer shall not record any such confession unless upon questioning the person making it, he is satisfied that it is being made voluntarily. The concerned police officer shall , after recording such voluntary confession, certify in writing below the confession about his personal satisfaction of the voluntary character of such confession,putting the date and time of the same.

(4) Every confession recorded under sub-section (1) shall be sent forthwith to the Chief Metropolitan Magistrate or the Chief Judicial Magistrate having jurisdiction over the area in which such confession has been recorded and such Magistrate shall forward the recorded confession so received to the Special Court which may take cognizance of the offence.

(5) The person from whom a confession has been recorded under sub-section (1) shall also be produced before the Chief Metropolitan Magistrate or the Chief Judicial Magistrate to whom the confession is required to be sent under sub-section (4) alongwith the original statement of confession, written or recorded on mechanical device without unreasonable delay.

(6) The Chief Metropolitan Magistrate or the Chief Judicial Magistrate shall scrupulously record the statement, if any, made by the accused so produced and get his SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 151 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:06 +0530 signature and in case of any complaint of torture, the person shall be directed to be produced for medical examination before a Medical Officer not lower in rank than of an Assistant Civil Surgeon.

82.7. Section 22 of MCOC Act, 1999 provides about presumption of certain facts as under:-

Section 22:- Presumption as to offence under section 3- (1) In a prosecution for an offence of organised crime punishable under section 3, if it is proved--

(a) that unlawful arms and other material including documents or papers were recovered from the possession of the accused and there is reason to believe that such unlawful arms and other material including documents or papers were used in the commission of such offence ; or

(b) that by the evidence of an expert, the finger prints of the accused were found at the site of the offence or on anything including unlawful arms and other material including documents or papers and vehicle used in connection with the commission of such offence, the Special Court shall presume, unless the contrary is proved, that the accused had committed such offence.

(2) In a prosecution for an offence of organised crime punishable under sub-section (2) of section 3, if it is proved that the accused rendered any financial assistance to a person accused of, or reasonably suspected of, an offence of organised crime, the Special Court shall presume, unless the contrary is proved, that such person has committed the offence under the said sub-section (2).

82.8. Section 23 of MCOC Act, 1999 provides about the recording of information about the commission of offence punishable under MCOC Act, cognizance of offence Under MCOC Act, investigation, Sanction to prosecute under the MCOC Act as under:-

Section 23:- Cognizance of, and investigation into, an offence- (1) Notwithstanding anything contained in the Code,--

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(a) no information about the commission of an offence of organised crime under this Act, shall be recorded by a police officer without the prior approval of the police officer not below the rank of the Deputy Inspector General of Police;

(b) no investigation of an offence under the provisions of this Act shall be carried out by a police officer below the rank of the Deputy Superintendent of Police.

(2) No Special Court shall take cognizance of any offence under this Act without the previous sanction of the police officer not below the rank of Additional Director General of Police.

The legal principles applicable in regard to the provisions of MCOC Act is clarified by Hon'ble Supreme Court of India as well as other Superior Courts as under:-

82.9. In the case of Ranjitsingh Brahmajeetsingh Sharma Vs. State of Maharashtra & Anr. (2005) 5 Supreme Court Cases 294: (2005 ALL MR (Cri) 1538 (S.C.)), Hon'ble Supreme Court observed that:

"32. The Statement of Objects and Reasons clearly states as to why the said Act had to be enacted. Thus it will be safe to presume that the expression 'any unlawful means' must refer to any such act, which as a direct nexus with the commission of a crime which the MCOC Act seeks to prevent or control. In other words, an offence falling within the definition of organized crime and committed by an organized crime syndicate is the offence contemplated by the statement of Objects and Reasons. There are offences and offences under the Indian Penal Code and other penal statutes providing for punishment of three years or more and in relation to such offences more than one chargesheet may be filed. As we have indicated hereinbefore, only because a SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 153 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:17 +0530 person cheats or commits a criminal breach of trust, more than once, the same by itself may not be sufficient to attract the provisions of MCOCA"

82.10. In the case of Prasad Shrikant Purohit vs State of Maharashtra & Anr. 2015 Supreme Court Cases 440, Hon'ble Supreme Court observed as under:

"38 In the first instance, it will be profitable to examine the scheme of MCOCA by making a cursory glance to the Objects and Reasons and thereafter to make an intensive reading of the above referred to provisions. When we peruse the Objects and Reasons, it discloses that organized crime has been posing very serious threat to our society for quite some years and it was also noted that organized crime syndicates had a common cause with terrorist gangs. In the Objects and Reasons, the foremost consideration was the serious threat to the society by those who were indulging in organized crimes in the recent years apart from organized crime criminals operating hand in glove with terrorist gangs. It is common knowledge that for the terrorist gangs, the sole object is to create panic in the minds of peace loving members of the society and in that process attempt to achieve some hidden agenda which cannot be easily identified, but certainly will not be in the general interest or well being of the society. Those who prefer to act in such clandestine manner and activities will formulate their own mind- set and ill-will towards others and attempt to achieve their objectives by indulging in unlawful hazardous criminal activities unmindful of the serious consequences and in majority of such cases it results in severe loss of life of innocent people apart from extensive damage to the properties of public at large. It was further SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 154 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:23 +0530 found that the existing legal framework, that is the penal and procedural laws and the adjudicatory system, were found to be inadequate to curb or control the menace of 'organized crime'. The Objects and Reasons also states that such 'organized crimes' were filled by illegal wealth generated by contract killing, extrusion, smuggling in contraband, illegal trade in narcotics, kidnapping for ransom, collection of protection money, money laundering etc. Keeping the above serious repercussions referred to in the Objects and Reasons, when we examine Section 2(1)(d)(e)&(f), which defines 'continuing unlawful activity', 'organized crime' or 'organized crime syndicate', we find that the three definitions are closely interlinked.

"39. The definition of 'continuing unlawful activity' under Section 2(1)(d) mainly refers to an activity prohibited by law. The said activity should be a cognizable offence, punishable with imprisonment of three years or more. The commission of such offence should have been undertaken either by an individual singly or by joining with others either as a member of an 'organized crime syndicate' or even if as an individual or by joining hands with others even if not as a member of a 'organized crime syndicate' such commission of an offence should have been on behalf of such syndicate. It further states that in order to come within the definition of 'continuing unlawful activity' there should have been more than one charge-sheet filed before a competent Court within the preceding period of 10 years and that the said Court should have taken cognizance of such offence.

"40. Before getting into the nuances of the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 155 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:28 +0530 said definition of 'continuing unlawful activity', it will be worthwhile to get a broad idea of the definition of 'organized crime' under Section 2(1)(e) and 'organized crime syndicate' under Section 2(1)(f). An 'organized crime' should be any 'continuing unlawful activity' either by an individual singly or jointly, either as a member of an 'organized crime syndicate' or on behalf of such syndicate. The main ingredient of the said definition is that such 'continuing unlawful activity' should have been indulged in by use of violence or threat of violence or intimidation or coercion or other unlawful means. Further such violence and other activity should have been indulged in with an objective of gaining pecuniary benefits or gaining undue economic or other advantage for himself or for any other person or for promoting insurgency. Therefore, an 'organized crime' by nature of violent action indulged in by an individual singly or jointly either as a member of an 'organized crime syndicate' or on behalf of such syndicate should have been either with an object for making pecuniary gains or undue economic or other advantage or for promoting insurgency. If the object was for making pecuniary gains it can be either for himself or for any other person. But we notice for promoting insurgency, there is no such requirement of any personal interest or the interest of any other person or body. The mere indulgence in a violent activity etc. either for pecuniary gain or other advantage or for promoting insurgency as an individual, either singly or jointly as a member of 'organized crime syndicate' or on behalf of a such syndicate would be sufficient for bringing the said activity within the four corners of the definition of 'organized crime'."

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 156 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:35 +0530 "66. We are now pitted with the question as to whether the taking of cognizance of the offence by the Competent Court under Section 2(1)(d) of MCOCA is referable only to the Court of Sessions or even to a Magistrate of first class under Section 190. In this context, when we read Section 2(1)

(d) along with 190 and 193 in the absence of any specific stipulation either under Section 2(1)(d) of MCOCA or any other provision under the said Act in the ordinary course of interpretation it can be validly stated that on fulfillment of Section 190, when a Judicial Magistrate of first class or an empowered second class Magistrate, takes cognizance of any offence that would fulfill the requirement of Section 2(1)(d) relating to competent court. We have noted under MCOCA that beyond what has been stipulated under Section 2(1)(d) there is no other provision dealing with the matter relating to a Competent Court for the purpose of taking cognizance. When under the provisions of Cr.P.C., Judicial Magistrate of first class has been empowered to take cognizance of any offence based on a Police Report, we fail to see any hurdle to state that on taking cognizance in that manner, the said court should be held to be the competent court for satisfying the requirement of Section 2(1)(d) of MCOCA.

In this respect, we will have to bear in mind that the implication of MCOCA would come into play only after the third occurrence takes place and only after that it will have to be seen whether on the earlier two such occasions involvement of someone jointly or singly, either as a member of an 'organized crime syndicate' or on its behalf indulged in a crime in respect of which a charge-sheet has already been filed before the Competent SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 157 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:46 +0530 Court which Court had taken cognizance of such offence."

82.11. Hon'ble three judges Bench of Hon'ble Supreme Court in judgment titled Upkar Singh Vs. Ved Prakash delivered on 10.09.2004 passed in Crl. Appeal No. 411/2002 clarified the position with regard to registration of second FIR as under:

"16. Having carefully gone through the above judgment, we do not think that this Court in the said cases of T.T. Antony vs. State of Kerala & Ors. has precluded an aggrieved person from filing a counter case as in the present case. This is clear from the observations made by this Court in the above said case of T.T. Antony vs. State of Kerala & Ors. in paragraph 27 of the judgment wherein while discussing the scope of Sections 154, 156 and 173 (2) Cr.PC, this is what the Court observed :-

"In our view a case of fresh investigation based on the second or successive FIRs, not being a counter-case, filed in connection with the same or connected cognizable offences alleged to have been committed in the course of the same transaction and in respect of which pursuant to the first FIR either investigation is under way or final report under Section 173 (2) has been forwarded to the Magistrate, may be a fit case for exercise of power under Section 482 Cr.PC or under Articles 226/227 of the Constitution" Emphasis supplied.

"17. It is clear from the words emphasized hereinabove in the above quotation, this Court in the case of T.T. Antony vs. State of Kerala & Ors. has not excluded the registration of a complaint in the nature of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 158 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:42:52 +0530 a counter case from the purview of the Code. In our opinion, this Court in that case only held any further complaint by the same complainant or others against the same accused, subsequent to the registration of a case, is prohibited under the Code because an investigation in this regard would have already started and further complaint against the same accused will amount an improvement on the facts mentioned in the original complaint, hence will be prohibited under Section 162 of the Code. This prohibition noticed by this Court, in our opinion, does not apply to counter complaint by the accused in the 1st complaint or on his behalf alleging a different version of the said incident.

82.12. In the case titled as Prafulla s/o. Uddhav Shende v. State of Maharashtra, (2009 All MR (Cri.) 870) observed as under:

"29. Since the definitions, though intertwined in a cyclic order, are clear and unambiguous, it would follow that each ingredient in the definitions, or the alternative thereof provided by the definitions themselves, would have to be proved. Viewed thus, for charging a person of organised crime or being a member of organised crime syndicate, it would be necessary to prove that the persons concerned have indulged in: (i) an activity,

(ii) which is prohibited by law, (iii) which is a cognizable offence punishable with imprisonment for three years or more, (iv) undertaken either singly or jointly, (v) as a member of organised crime syndicate i.e. acting as a syndicate or a gang, or on behalf of such syndicate, (vi)(a) in respect of similar activities (in the past) more than one charge-sheets have been filed in competent SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 159 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:42:58 +0530 court within the preceding period of ten years, (b) and the court has taken cognizance of such offence. (vii) the activity is undertaken by: (a) violence, or

(b) threat of violence, or intimidation or (c) coercion or (d) other unlawful means. (viii)

(a) with the object of gaining pecuniary benefits or gaining undue or other advantage or himself or any other person, or

(b) with the object of promoting insurgency.

"32.Decisions on which even the learned A.P.P. has placed reliance would fortify the conclusion that there has to be a concrete continuing unlawful activity amounting to an organised crime for attracting provisions of MCOCA.

"42.....It is thus clear that apart from previous charge-sheets there has to be a continuation, an activity to which MCOCA is applied".

"47. A look at provisions of the punishment, Section 3 of the MCOCA would fortify this conclusion. Clauses (i) and (ii) of Sub-section (1) would show that "if such offence has resulted in death of any person", the offence of organised crime would attract death sentence or life imprisonment with a fine of Rs.One Lakh. Now, if only old charge sheets should be held as enough, a person acquitted of a murder charge in the past would be liable to be sent for a life term, in spite of acquittal, simply because a chargesheet had been filed in the past. Had this been contemplated, the learned

Judge, Special Court, would have charged Accused No.1/I Shiva of offence punishable under Section 3(1)(i) of MCOCA and not one punishable under Section 3(1)(ii) of the MCOCA, since Shiva had been charged once of murder (Sr.No.9 SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 160 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:04 +0530 in the chart) and acquitted. Same would hold good about the other gangsters. Advocate Tiwari, the learned counsel for Mehmood and others relying on judgment of the Supreme Court in Dilip Singh Vs. State of Punjab, reported at 1997 (3) Current Criminal Journal 223, that charge sheets cannot be made the basis of guilt or innocence of an accused. Therefore, it is clear that the offences referred to in various charge sheets are not "such offence(s)" and consequently an offence, punishable under Section 3 of the MCOCA has to be different from those for which such accused had been charge sheeted in the past. Past criminal activity only aggravates the continued activity amounting to an offence and attracts provisions of MCOCA."

"48. In view of this, since the appellants are not shown to have indulged in any crime which can be said to be continuation of past criminal activity provisions of Section 3 (1) of the MCOCA are not attracted. It cannot be said that the appellants have committed the offence of organised crime."

82.13. Hon'ble Supreme Court in Mahipal Singh vs. CBI, (2014) 11 SCC 282 held as under:

"15. Now we proceed to apply the principle aforesaid to the facts of the present case. We find that on the date the offence was committed or came to be known, one of the ingredients of the offence, i.e. submission of charge-sheet and cognizance of offence of specified nature in more than one case within the preceding period of ten years, has not been satisfied. Therefore, we have no other option than to hold that the accused cannot be prosecuted for the offence under Section 3 of MCOCA."

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 161 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:12 +0530 82.14. Relying upon the judgment titled Prafulla s/o Uddhav Shende v. State of Maharashtra, (2009 All MR (Cri. 870), Hon'ble Division Bench observed and held as under in the judgment titled The State of Maharashtra v. Rahul Ramchandra Taru passed in Criminal Appeal No. 239/2011 decided on 06.05.2011:

"11. In Prafulla s/o. Uddhav Shende v. State of Maharashtra, (2009 All MR (Cri.) 870), the learned single judge of this court while dealing with the bunch of appeals arising out of judgments passed by the Special Court at Nagpur, placed reliance on the various decisions, mainly, the decision in Ranjeetsingh Brahmajeetsing Sharma's case (Supre), also made a reference to the case of Sherbahadur Akram Khan (Supra) and observed in paragraphs 29, 43 and 44 that:

"29. Since the definitions, though intertwined in a cyclic order, are clear and unambiguous, it would follow that each ingredient in the definitions, or the alternative thereof provided by the definitions themselves, would have to be proved. Viewed thus, for charging a person of organised crime or being a member of organised crime syndicate, it would be necessary to prove that the persons concerned have indulged in: (i) an activity,

(ii) which is prohibited by law, (iii) which is a cognizable offence punishable with imprisonment for three years or more, (iv) undertaken either singly or jointly, (v) as a member of organised crime syndicate i.e. acting as a syndicate or a gang, or on behalf of such syndicate, (vi)(a) in respect of similar activities (in the past) more than one charge-sheets have been filed in competent court within the preceding period of ten SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 162 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:18 +0530 years, (b) and the court has taken cognizance of such offence. (vii) the activity is undertaken by: (a) violence, or

(b) threat of violence, or intimidation or (c) coercion or (d) other unlawful means. (viii)

(a) with the object of gaining pecuniary benefits or gaining undue or other advantage or himself or any other person, or

(b) with the object of promoting insurgency.

"43. This fortifies the conclusion that mere proof of filing charge sheets in the past is not enough. It is only one of the requisites for constituting offence of organized crime. If only the past charge sheets were to be enough to constitute offence of organized crime, it could have offended the requirement of Article 20(1) of the Constitution and possibly Article 20(2) as well, (and in any case Section 300 Cr.P.C.) Had these judgments of the Supreme Court and Division Benches of this Court been cited before the learned Single Judge deciding Amarsingh V/s. State (2006 ALL MR (Cri.) 407) the learned Single Judge, without doubt, would not have held that the matter was simply one of an arithmetical equation. The said judgment cannot be reconciled with the judgments of division benches in Jaisingh V/s. State 2003 ALL MR (Cri.) 1506 and Bharat Shah V/s. State, 2003 ALL MR (Cri.) 1061, which I am bound to follow.

44.Therefore, since the previous criminal history of the applicants denotes that they had been or are being separately charged/tried for those offence before competent courts, there is no question of such offences constituting offence of organized crime." (emphasis supplied).

82.15. Hon'ble Delhi High Court in the judgment SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 163 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:26 +0530 titled State Govt. of NCT of Delhi vs. Khalil Ahmed passed in CRL. Rev. P.No. 42/2012 decided on 29.04.2012 has observed and held as under:

"77. The expression 'any unlawful means' must refer to any such act which has a direct nexus with the commission of a crime which MCOCA seeks to prevent or control. In other words, an offence falling within the definition of organized crime and committed by an organized crime syndicate is the offence contemplated by the Statement of Objects and Reasons. If a person cheats or commits a criminal breach of trust, more than once, the same by itself may not be sufficient to attract the provisions of MCOCA.

78. It would be safe to presume that the expression any lawful means, must refer to any such act which has a direct nexus with the commission of a crime which MCOCA seeks to prevent or control.

79. Section 2(e) of MCOCA cannot be invoked for petty offences. The legislative intent is clear that MCOCA is for curing the organized crime unless there is a prima facie material to establish that there is an organized crime syndicate and prima facie material, firstly, to establish that there is an organised crime syndicate and, secondly, that organized crime has been committed by any member of the organized crime syndicate or any person on behalf of such syndicate, the provisions of MCOCA cannot be invoked.

80. Therefore, the prosecution need to firstly establish that there is an organized crime syndicate. It will have to satisfy that there exists the ingredients of continuing unlawful activities. Finally, the Full Bench SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 164 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:36 +0530 of Bombay High Court answers the issue that the term other advantage cannot be read as "ejusdem generis" with the words "gaining pecuniary benefits or undue economic advantage"

84. In the case in hand, to satisfy the condition of Section 2(d) of the Act, prosecution has relied upon a list of 34 Criminal Cases which are filed against the respondent during the period 1985 to 2009. These 34 cases includes present one. The prosecution failed to ascertain as to whether the offences committed therein was related to organized crime or not. Out of remaining 16 cases 2 cases vide FIR No.183/2006 and 96/2006 pertain to the Offence punishable under Section 25 of the Arms Act, 1959. One case vide FIR No.09/04 pertain to Section 20 of NDPS Act. Therefore, the prosecution failed to establish that the respondent has committed an offence either as a member of organized crime syndicate or on behalf of such syndicate. As regards the properties to invoke

Section 4 of the MCOCA, the prosecution failed to show prima facie that the respondent was holding the properties referred above either having a member of organized crime syndicate or on behalf of member of any such syndicate."

82.16. In *State of Maharashtra & Others vs. Lalit Somdatta Nagpal & Another*, (2007) 4 SCC 171, the Hon'ble Supreme Court has held that:

"42.....Having regard to the stringent provisions of the MCOCA, Section 23 (1)

(a) provides a safeguard to the accused in that notwithstanding anything contained in the Code of Criminal Procedure, no investigation of an alleged offence of SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 165 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:42 +0530 organized crime under the MCOCA, 1999 can be commenced without the prior approval of a police officer not below the rank of Deputy Inspector General of Police.

An additional protection has been given under Sub-section (2) of Section 23 which prohibits any Special Court from taking cognizance of any offence under the Act without the previous sanction of a police officer not below the rank of Additional Director General of Police."

"44 In our view, both the sanctions which formed the very basis of the investigation have been given mechanically and are vitiated and cannot be sustained. In taking recourse to the provisions of the MCOCA 1999, which has the effect of curtailing the liberty of an individual and keeping him virtually incarcerated, a great responsibility has been cast on the authorities in ensuring that the provisions of the Act are strictly adhered to and followed, which unfortunately does not appear to have been done in the instant case."

82.17. In *Darasing and Ors. Vs. State of Maharashtra*, Criminal Appeal No. 901/2-18, decided 03.08.2021, by Hon'ble High Court of Bombay, It was observed vide para 10 as under:-

"10. The upshot of the above discussion is that the appellants were merely charged and tried for the offence punishable under Section 3(1)(ii) and 3(4) without any substantive crime. Merely being involved in several crimes without being involved in any other crime to elevate the continuing unlawful activity to the case of organized crime as defined under the Act would not be sufficient. Therefore the appellants could not have been convicted and sentence only SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 166 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:43:47 +0530 for the offence punishable under Section 3(1)(ii) and 3(4) in the absence of any substantive crime so as to constitute an organized crime. The learned Judge of the Special Court has not considered all these aspects and has convicted and sentenced the appellants merely for being involved in

continuing unlawful activity which in itself is not an offence which is made punishable under the MCOC Act."

82.18. In State of Maharashtra Vs. Shiva @ Shivaji Ramaji Sonawane & Ors., Crl. Appeal Nos. 458-460 of 2009, decided on 24.07.2015 by Hon'ble Supreme Court of India, it was observed vide para no. 8 & 9 as under:-

"8 It was in the above backdrop that the High Court held that once the respondents had been acquitted for the offence punishable under the IPC and Arms Act in Crimes No.37 and 38 of 2001 and once the Trial Court had recorded an acquittal even for the offence punishable under Section 4 read with Section 25 of the Arms Act in MCOCA Crimes No.1 and 2 of 2002 all that remained incriminating was the filing of charge sheets against the respondents in the past and taking of cognizance by the competent court over a period of ten years prior to the enforcement of the MCOCA. The filing of charge sheets or taking of the cognizance in the same did not, declared the High Court, by itself constitute an offence punishable under Section 3 of the MCOCA. That is because the involvement of respondents in previous offences was just about one requirement but by no means the only requirement which the prosecution has to satisfy to secure a conviction under MCOCA. What was equally, if not, more SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 167 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:43:53 +0530 important was the commission of an offence by the respondents that would constitute "continuing unlawful activity".

So long as that requirement failed, as was the position in the instant case, there was no question of convicting the respondents under Section 3 of the MCOCA. That reasoning does not, in our opinion, suffer from any infirmity. The very fact that more than one charge sheets had been filed against the respondents alleging offences punishable with more than three years imprisonment is not enough. As rightly pointed out by the High Court commission of offences prior to the enactment of MCOCA does not by itself constitute an offence under MCOCA. Registration of cases, filing of charge sheets and taking of cognizance by the competent court in relation to the offence alleged to have been committed by the respondents in the past is but one of the requirements for invocation of Section 3 of the MCOCA. Continuation of unlawful activities is the second and equally important requirement that ought to be satisfied. It is only if an organised crime is committed by the accused after the promulgation of MCOCA that he may, seen in the light of the previous charge sheets and the cognizance taken by the competent court, be said to have committed an offence under Section 3 of the Act."

"9. In the case at hand, the offences which the respondents are alleged to have committed after the promulgation of MCOCA were not proved against them. The acquittal of the respondents in Crimes No.37 and 38 of 2001 signified that they were not involved in the commission of the offences with which they were charged. Not

only that the respondents were acquitted of the charge under the Arms Act even in SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 168 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:44:00 +0530 Crimes Case No.1 and 2 of 2002. No appeal against that acquittal had been filed by the State. This implied that the prosecution had failed to prove the second ingredient required for completion of an offence under MCOCA. The High Court was, therefore, right in holding that Section 3 of the MCOCA could not be invoked only on the basis of the previous charge sheets for Section 3 would come into play only if the respondents were proved to have committed an offence for gain or any pecuniary benefit or undue economic or other advantage after the promulgation of MCOCA. Such being the case, the High Court was, in our opinion, justified in allowing the appeal and setting aside the order passed by the Trial Court".

82.19. In the case of Madan Vs. State of Maharashtra, 2009 SCC Online Bom 483, in respect of evidence related to income from organized crime, court made following observations:-

"169.....It may be that they had suppressed income. Unless involvement in offence of organised crime is proved, further, inferences are not permissible, and, mere allegation of involvement in organised crime or membership of such syndicate would not be enough.

"180.....Though the possibility that these appellants might have suppressed income, is not ruled out, unless nexus between the income and crime is established, (which has not been done), the properties cannot be held to have been obtained from income of organised crime."

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83. In order to prove the charge of offence punishable under Section 3 (1) of the MCOC Act, 1999 against the accused Shiv Murat Dwivedi @ Shiva @ Rajeev @ Swamiji and in order to prove the charge of offence punishable under Section 3 (2) of the MCOC Act, 1999 against the accused Praveen Kumar, the prosecution has alleged that accused Shiv Murat Dwivedi was the leader of the Organised Crime Syndicate and whose Organised Crime Syndicate was involved in the continuing unlawful activities of various offences including the offences punishable under ITP Act. The prosecution has also alleged and detailed the cases registered against the accused Shiv Murat Dwivedi regarding his continuing unlawful activities and produced the list of the cases as under:-

a) FIR No. 705/1997, under Section 3/4/5/8 of ITP Act; PS Lajpat Nagar, New Delhi.

b) FIR No. 183/1998, under Section 3/4/5/8 of ITP Act, PS S.N. Puri, New Delhi,

- c) FIR No. 303/1998, under Section 395/412 IPC, PS Badarpur, New Delhi.
- d) FIR No. 167/2003, under Section 2/3 of the Gangster Act, PS Sector 24, NOIDA.
- e) FIR No. 341/2003, re-registered as FIR No. 160/2003, under Section 3/4/5/6/7/8 of ITP Act, PS Sector 24 NOIDA &
- f) FIR No. 47/2010, under Section 3/4/5 & 8 of the ITP Act, PS Saket.

83.1. It is alleged that the allegations in the above SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 170 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:11 +0530 mentioned FIRs / cases were regarding the commission of cognizable offence with imprisonment of three years or more and in respect of which more than one charge sheet had been filed on the date of registration of the FIR no. 54/2010, PS Saket i.e., present case before the competent courts and offences in these cases were committed within preceding period of ten years and the such competent courts had taken the cognizance of the offences committed by the Organised Crime Syndicate led by the accused Shiv Murat Dwivedi.

83.2. It is also alleged that the offences in the above mentioned FIRs were committed with objective of pecuniary benefit / gain for the accused Shiv Murat Dwivedi himself or for the benefit of the other members of his Organised Crime Syndicate.

83.3. It is the allegation against the accused Praveen that he had conspired, attempted, abated and knowingly facilitated the activities of the Organised crime syndicate and other acts preparatory to the Organised Crime Syndicate which were committed by the co-accused Shiv Murat Dwivedi on various occasions and specially in FIR No. 47/2010 PS Saket under Section 4/5/8 of ITP Act.

84. The prosecution was supposed to prove that the accused Shiv Murat Dwivedi and Praveen Kumar were involved in continuing unlawful activities as defined under Section 2

(d) of the MCOC Act, 1999. The prosecution was also supposed to prove the fact that the said continuing unlawful activities were within the preceding period of ten years of the date of the invocation of the MCOC Act, 1999 SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 171 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:17 +0530 and the competent court had taken cognizance of such offences committed by the accused persons within the preceding ten years.

84.1. The prosecution was also supposed to prove the fact that the accused Shiv Murat Dwivedi and Praveen Kumar were involved in the Organised crime as defined under Section 2 (e) of the MCOC Act, 1999.

84.2. The prosecution was also supposed to prove that the accused Shiv Murat Dwivedi and Praveen Kumar were the members of the Organised crime syndicate who were acting either singly or

collectively, as a syndicate or a gang indulged in the activities of the organised crime as defined under Section 2 (f) of the MCOC Act.

84.3. The prosecution was also supposed to prove that the FIR in the present case was registered regarding the commission of Organised Crime with the proper prior approval of the competent authority after consideration as per law as defined under Section 23 (1) (a) of the MCOC Act, 1999.

84.4. The prosecution was also supposed to prove that the Sanction to prosecute the accused persons Shiv Murat Dwivedi and Praveen Kumar were accorded by the competent authority after due consideration as per law as defined under Section 23 (2) of the MCOC Act, 1999.

84.5. The prosecution was also supposed to prove that the statement of the accused persons Shiv Murat Dwivedi and Praveen were recorded after following the due procedure as defined and prescribed under Section 18 of MCOC Act, 1999.

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85. It is an admitted case of the prosecution that the FIR in the present case was registered on 06.03.2010 and as per the mandate of Section 2 (d) of the MCOC Act, the cases registered prior to 06.03.2010 in the preceding ten years i.e., cases registered upto 05.03.2010, were required to be considered for invoking the MCOC Act against the accused persons Shiv Murat Dwivedi and Praveen Kumar.

86. The prosecution had invoked the MCOC Act against the accused persons on the basis of the following FIRs i.e., :-

- a) FIR No. 705/1997, under Section 3/4/5/8 of ITP Act; PS Lajpat Nagar, New Delhi,
- b) FIR No. 183/1998, under Section 3/4/5/8 of ITP Act, PS S.N. Puri, New Delhi,
- c) FIR No. 303/1998, under Section 395/412 IPC, PS Badarpur, New Delhi.
- d) FIR No. 167/2003, under Section 2/3 of the Gangster Act, PS Sector 24, NOIDA.
- e) FIR No. 341/2003, re-registered as FIR No. 160/2003, under Section 3/4/5/6/7/8 of ITP Act, PS Sector 24 NOIDA &
- f) FIR No. 47/2010, under Section 3/4/5 & 8 of the ITP Act, PS Saket.

86.1. Hence, the prosecution reliance for invoking the MCOC Act against the accused persons Shiv Murat Dwivedi and Praveen Kumar on the basis of the FIR No. 705/1997, under Section 3/4/5/8 of ITP Act, PS Lajpat Nagar, New Delhi; FIR No. 183/1998, under Section 3/4/5/8 of ITP Act, PS S.N.

Puri, New Delhi and FIR No. 303/1998, under Section 395/412 IPC, PS Badarpur, New SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 173 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:29 +0530 Delhi, is bad in law as these FIRs were registered prior to 05.03.2000 i.e., much prior to the preceding ten years from the date of invoking MCOC Act, 1999 on 06.03.2010 vide registering the FIR No. 54/2010 PS Saket i.e., the present case.

87. The prosecution has also placed on reliance on the FIR No. 167/2003, under Section 2/3 of the Gangster Act, PS Sector 24, NOIDA and FIR No. 341/2003, re-registered as FIR No. 160/2003, under Section 3/4/5/6/7/8 of ITP Act, PS Sector 24 NOIDA. It is an admitted fact that the MCOC Act, 1999 is not in force in the State of Uttar Pradesh and the similar enactment i.e., the Uttar Pradesh Gangsters and Anti Social Activities Prevention Act, 1986 is in force in the State of Uttar Pradesh having similar provisions as to the MCOC Act, 1999 as notified in Union Territory Delhi. Hence, the reliance of the prosecution for invoking the MCOC Act, 1999 in Delhi against the accused persons Shiv Murat Dwivedi and Praveen Kumar on the basis of the FIR No. 167/2003, under Section 2/3 of the Gangster Act, PS Sector 24, NOIDA, is bad in law and the prosecution was not supposed to invoke the MCOC Act, 1999 while relying upon the FIR registered under the Uttar Pradesh Gangsters and Anti Social Activities Prevention Act, 1986.

87.1. The prosecution has also placed on reliance on the FIR No. 341/2003, re-registered as FIR No. 160/2003, under Section 3/4/5/6/7/8 of ITP Act, PS Sector 24 NOIDA for invoking the MCOC Act, 1999 against the accused persons Shiv Murat Dwivedi and Praveen Kumar, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 174 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:35 +0530 however during the trial, the police has not proved about the date of taking cognizance by the competent court in the FIR No. 160/2003, PS Sector 24, NOIDA under Section 3/4/5/6/7/8 of the ITP Act. Hence, it remained unproved as to whether the competent court had taken cognizance in the preceding ten years as defined under Section 2 (d) of the MCOC Act, 1999 with respect to the FIR No. 160/2003, PS Sector 24 NOIDA.

87.2. The prosecution has also heavily relied upon the FIR No. 47/2010, under Section 3/4/5 & 8 of the ITP Act, PS Saket for invoking the MCOC Act, 1999 against the accused persons Shiv Murat Dwivedi and Praveen Kumar and it is an admitted fact that the competent court had taken the cognizance in the FIR No. 47/2010, PS Saket on 26.04.2010 after filing of charge sheet i.e., after 06.03.2010, the date of invoking the MCOC Act, 1999 with respect to the present FIR No. 54/2010 PS Saket registered under the MCOC Act, 1999. Hence, the invocation of the MCOC Act, 1999 on the basis of the FIR No. 47/2010 PS Saket is also bad in law.

87.3. It is an admitted fact that the accused Shiv Murat Dwivedi and Praveen have already been acquitted in FIR No. 47/2010, PS Saket, under Section 3/4/5/6 of the ITP Act, 1956 vide judgment dated 19.11.2025.

87.4. The prosecution has relied upon the testimony of PW 31 Amulya K. Patnaik who had accorded the sanction Ex.PW 31/A to prosecute the accused persons, however, it came on record that the

witness had not verified about the details of the cases of the previous SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 175 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:41 +0530 involvement of the accused persons and he had not verified about the continuity of the alleged Organised crime syndicate of the accused persons. It also came on record that he had not even verified the exact number of cases in which the accused persons were allegedly involved prior to invoking the MCOC Act, 1999 against them and these facts came on record during the cross examination of PW 31 which discredits the testimony of the witness PW 31 Amulya K. Patnaik.

87.5. The prosecution has heavily relied upon the testimony of the PW 65 Virender Singh, IGP Mizoram (the then additional Commissioner of Police, South East District, New Delhi) in order to prove the confessional statement Ex. PW 55/A of the accused Shiv Murat Dwivedi as recorded under Section 18 of the MCOC Act. As per the version of the witness PW 65, when the accused Shiv Murat was produced before him by the IO, he had asked the accused to depose and thereafter, accused had started narrating and the said narration was dictated to the stenographer which was recorded by the stenographer.

87.6. The examination in chief of the witness PW 65 Virender Singh discloses the fact that the mandatory provisions of Section 18 (3) of the MCOC Act, 1999 i.e., the requirement of explaining the accused Shiv Murat that he was not bound to make the confession or that his statement might be used as evidence against him and the requirement to clarify as to whether the statement was made by the accused was voluntary or involuntary, were not complied with.

SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 176 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:44:47 +0530 87.7. During the cross examination, it came on record that the confessional statement of the accused Shiv Murat was recorded in Hindi and thereafter, translated and typed in English, however, as per the record, the statement was typed in Hindi language. Witness gave vague replies when he was asked that what was told by the accused after going through the statement. It is clear from the statement of the PW 65 that witness had not complied the mandatory requirement of Section 18 (3) of the MCOC Act prior to recording the confessional statement of accused Shiv Murat Dwivedi. Hence, the proceedings regarding the recording of the statement of accused Shiv Murat Dwivedi under Section 18 of the MCOC Act, 1999 is bad in law and legal provisions as prescribed under Section 18 (3) of the MCOC Act, 1999 were not complied with and this discredits the testimony of the witness PW 65.

87.8. Similarly, the prosecution has also relied upon the testimony of the PW 63 Sharad Aggarwal, Additional CP Traffic (the then DCP West, Rajouri Garden, Delhi) regarding the recording of statement of the accused Praveen Ex. PW 63/B under Section 18 of the MCOC Act, 1999. However, during the cross examination, it came on record that the witness gave vague replies about the fact that whether he was enquired about the previous involvement in the cases with the co-accused Shiv Murat Dwivedi.

87.9. The alleged confessional statement of the accused Praveen Kumar was not confirmed when he was produced before the CJM for its affirmation, hence, the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 177 of 186 RAVINDRA KUMAR KUMAR PANDEY PANDEY Date:

2025.12.26 12:44:53 +0530 alleged confessional statement of the accused Praveen Kumar become irrelevant and not admissible in law as per the mandate of the Section 18 (5) (6) of the MCOC Act, 1999.

87.10. It is the contention of the prosecution that accused Shiv Murat Dwivedi and Praveen Kumar were operating the organised crime syndicate and accused Shiv Murat Dwivedi and Praveen Kumar were charged respectively for the offence punishable under Section 3 (1) and under Section 3 (2) of the MCOC Act, 1999. However, it is an admitted fact that in the present case, apart from the investigation with respect to the accused Shiv Murat Dwivedi and Praveen Kumar, no investigation was done by the investigating agency regarding the involvement of any other person including the female accused persons who were charge sheeted in FIR No. 47/2010, PS Saket.

87.11. It is also contention of the prosecution that accused persons Shiv Murat Dwivedi and Praveen were operating the organised crime syndicate for their pecuniary benefit and to gain undue economic benefit, however, the various documents related to their properties, bank account statements and income tax related documents which were produced during the trial failed to prima facie satisfy that both the accused persons had accumulated any benefit or gain from the organised crime syndicate.

87.12. The prosecution has heavily relied upon the alleged telephonic conversation between the accused Shiv Murat Dwivedi and Praveen Kumar prior to the registration of the FIR No. 47/2010, PS Saket, however, SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 178 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:02 +0530 the prosecution has failed to establish the fact that as to whether there was any direct or indirect connection between the accused Shiv Murat Dwivedi and Praveen Kumar with respect to the operation of the alleged organised crime syndicate and no other corroborative evidence has been produced during the trial.

87.13. It is further came on record that no corroborative evidence came on record that the accused Shiv Murat Dwivedi and Praveen were known to each other or were involved in any manner in commission of any organised crime prior to the registration of the FIR No. 47/2010 PS Saket in which the accused persons have already been acquitted by the court.

87.14. The prosecution has relied upon the testimony of PW 4 and PW 5 regarding the ITRs of the accused Praveen and Shiv Murat Dwivedi for the financial year 2007-08 and for the financial year 2004-05 and 2005-

06, however, the record as produced by these witnesses failed to satisfy this court that accused Praveen and Shiv Murat Dwivedi had gathered or accumulated the money through the Organised crime syndicate.

87.15. The prosecution has also relied upon the testimony of PW 6 in order to show the expenses of the accused Shiv Murat Dwivedi with respect to his electricity bill of the house bearing no. 239, Sector -3, R.K. Puram and H.No. 138, Government Quarter, R.K. Puram, however, prosecution has failed to show that the accused Shiv Murat was having any connection with these houses. Similarly, the prosecution has also relied upon the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 179 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:08 +0530 testimony of PW 7 with respect to the insurance policy of vehicle bearing no. DL 3C U 9849, however, prosecution has failed to establish that this vehicle was in any manner connected with both the accused persons.

87.16. The prosecution has also examined witness PW 8 to prove the lavish lifestyle of the accused Shiv Murat Dwivedi, however, the document Ex. PW 8/A was not proved and it was established that the document Ex. PW 8/A was not connected with the accused Shiv Murat Dwivedi in any manner and it appears that the witness PW 8 was the planted witness.

87.17. The prosecution has also relied upon the testimony of PW 17 D.P. Singh, the valuer who had evaluated the value of the assets of the accused Shiv Murat Dwivedi, however, during the cross examination, it came on record that the said valuer was a planted witness and his report Ex. PW 17/A was prepared without any proper verification or visit to the properties which were allegedly evaluated by him. It is also came on record that some of the properties belonging to the native place of the accused Shiv Murat were actually owned by his father as ancestral property and the said fact was proved as came on record during the testimony of the PW 20 Tehsildar of the District Chitrakoot, Uttar Pradesh.

87.18. Similarly, the prosecution has relied upon the testimony of witnesses PW 21, PW 22, PW 24, PW 26, PW 27, PW 28, PW 29, PW 30, PW 32 and PW 33 in support of its case in order to prove the fact about the financial condition of the accused persons, their lavish SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 180 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:14 +0530 lifestyle, the day to day expenses of the accused persons, however, prosecution has failed to establish the fact that the document as produced by these witnesses PW 21, PW 22, PW 24, PW 26, PW 27, PW 28, PW 29, PW 30, PW 32 and PW 33 or their oral testimony were in any manner related with the accused Shiv Murt Dwivedi and Praveen Kumar. The prosecution has failed to bring on record any material incriminating evidence against the accused persons through the testimonies of PW 21, PW 22, PW 24, PW 26, PW 27, PW 28, PW 29, PW 30, PW 32 and PW 87.19. Similarly the prosecution has relied upon the testimony of PW 41 Vijay Kumar i.e., the landlord of the accused

Praveen Kumar, however, in his statement recorded under Section 161 Cr.PC, he had claimed to be the landlord of the accused Shiv Murat Dwivedi and during the cross examination, he admitted that he had not seen the accused Shiv Murat Dwivedi. The prosecution has failed to bring on record any material incriminating evidence against the accused persons through the testimony of PW 41. Similarly, the prosecution has also relied upon the testimony of PW 42 Navjot Singh Ahluwalia i.e., the Manager of Hotel booked by the accused Praveen Kumar, however, prosecution failed to bring on record any incriminating evidence through the testimony of witness PW 42.

87.20. The prosecution has also relied upon the testimony of PW 43 Rajeev Gupta and PW 44 Darshan Lal Sachdeva, however, the prosecution had failed to bring on SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 181 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:21 +0530 record any incriminating evidence against the accused persons. Similarly, the prosecution has also failed to bring on record any incriminating evidence through the witnesses PW 45 Ashok Kumar Gandhi and document i.e., receipt Ex. PW 45/A was not proved as per law during the trial.

87.21. Similarly, the prosecution has relied upon the testimony of PW 46 S.K. Khanna, PW 47 Liyaqat Ali and PW 48 Manoj Methew, however, these witnesses had admitted during their examination that they were not the author of the respective documents Ex. PW 46/A, Ex. PW 47/A and Ex. PW 48/A-1 to Ex. PW 48/A-4 and these documents were not proved against the accused persons as per law.

87.22. It is the contention of the accused Shiv Murat Dwivedi that he was not running any Organised crime syndicate of any nature and the said contention has been corroborated during the trial through the testimony of PW 49 Inspector Dilip Kumar who deposed and admitted that the seizure memos Ex. PW 49/A-1 to Ex. PW 49/A-10, were all pertaining to the religious nature as claimed by the accused Shiv Murat Dwivedi and contrary to the contention of the prosecution.

87.23. The prosecution has also relied upon the testimony of PW 50 Inspector Dharam Singh, however, during his examination and cross examination, he gave vague replies regarding the proceedings of the investigation of the present case, which prima - facie establishes the fact that he was a planted witness and he SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 182 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:27 +0530 never joined the investigation in the present case in any manner.

87.24. It also came on record during the examination of the witness PW 53, the then ACMM South East District, New Delhi that accused Shiv Murat Dwivedi had informed to the then Ld. ACMM when he was produced before him after recording his confessional statement for its affirmation that he was falsely implicated in the present case by the police, which suggests that the confessional statement of the accused Shiv Murat Dwivedi was not voluntary as allegedly claimed by the prosecution as recorded under Section 18 of the MCOC Act, 1999.

87.25. The prosecution has relied upon the certain diaries, registers and notes which were allegedly belonging to the accused persons and which were claimed to be seized during the investigation from the possession of the accused Shiv Murat Dwivedi and Praveen Kumar and as per the prosecution version, these diaries, registers and notes were the details of the financial transaction of the accused persons, details of the clients with respect to the allegation of offence punishable under ITP Act and detail of the other suspects. However, it came on record through the testimony of PW 56 Arvind Kumar, who was deputed by the IO to take the said seized record to the FSL for their scientific examination, that all the Mal Mukadma i.e., the seized articles when handed over to him from the malkhana were in opened condition and were not sealed with any seal cover, meaning thereby, the possibility of the manipulation in the seized articles by the officials of the SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 183 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:33 +0530 investigating agency cannot be ruled and due procedure of the investigation regarding seizure and seal of the case property were not followed by the IO. The seizure of the case property and its proper chain of custody prior to sending it to the FSL, becomes doubtful and the contention of the prosecution regarding the documents seized during the investigation at the instance of the accused persons or their possession is accordingly rejected.

87.26. The prosecution has also relied upon the testimony of the witness PW 59 Israr Babu from Vodafone mobile company regarding the call details of the accused Praveen Kumar from the period 01.02.2010 to 26.02.2010 Ex. PW 59/B, however, it came on record that the witness PW 59 was not the author of the document Ex. PW 59/A neither the said record was generated in his presence and he admitted that the said record was prepared prior to his joining with the said company. Similarly, the certificate Ex. PW 59/C with respect to the said CDR Call under Section 65-B of the Indian Evidence Act has also not been proved. The prosecution has failed to bring on record any incriminating evidence against the accused Praveen Kumar through the testimony of witness PW 59 or through the record Ex. PW 59/A and Ex. PW 59/B. 87.27. The prosecution has also relied upon the testimony of the PW 60 Mangat Ram Katyal in order to prove the tenancy with respect to the premises at H.No. D/93, Krishna Nagar, Safdarjung Enclave, New Delhi, however, the said witness did not produce the document related with the said tenancy with respect to the accused SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 184 of 186 RAVINDRA by RAVINDRA KUMAR KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:39 +0530 Praveen Kumar and no incriminating evidence came on record against the accused Praveen through the testimony of PW 60.

87.28. The prosecution has heavily relied upon the testimony of the IO/ PW 61 ACP Mehar Singh regarding the detailed investigation as carried out by him in the present case. The IO / PW 61 had claimed that he was part of the team which conducted raid in FIR No. 47/2010 PS Saket registered under ITP Act against the accused persons Shiv Murat Dwivedi and Praveen Kumar and other accused persons, however, during the cross examination of the PW 61 Mehar Singh, he gave vague replies regarding the details of the members of the raiding team, informer who had informed to the police regarding the presence of the accused persons and uniform of the members of the raiding team and the sequence of the vehicles at the place of incident. He also not replied properly about the detail of the document like site plan and other documents which were prepared at the spot in his

presence.

87.29. The witness PW 61/ IO also claimed that he went to the native place of the accused Shiv Murat Dwivedi at Chitrakoot in regard to the investigation of the present case, however, the witness PW 61 and the alleged valuer who visited to the native place of the accused Shiv Murat Dwivedi at Chitrakoot gave vague replies about their visit, detail of the verification done by them and details of the persons to whom they met at Chitrakoot. It appears that witness PW 61/ IO himself did not visit to the spot when the accused persons were apprehended in FIR SC 7058/2016 (43/15/2015) STATE Vs. SHIV MURAT DIWEDI ANR (MCOCA) FIR No. 54/2010; PS Saket Page no. 185 of 186 RAVINDRA by RAVINDRA KUMAR PANDEY PANDEY Date: 2025.12.26 12:45:45 +0530 No. 47/2010 PS Saket or he himself did not investigate the case and not conducted any spot investigation.

88. In view of the above discussion, the court is of the considered view that the case of the prosecution against the accused Shiv Murat Dwivedi regarding the charge of offence punishable under Section 3 (1) of the MCOC Act, 1999 and the case of the prosecution against the accused Praveen Kumar regarding the charge of offence punishable under Section 3 (2) of the MCOC Act, 1999 has not been proved. Accordingly, accused Shiv Murat Dwivedi and Praveen Kumar are acquitted from the present case and from the charge of offence punishable under Section 3 (1) of MCOC Act, 1999 and charge of offence under Section 3 (2) of the MCOC Act, 1999.

89. Both the accused persons are directed to furnish bail bond and surety bond for sum of Rs. 10,000/- each in terms of Section 481 of BNSS, 2023.

90. File be consigned to record room after due compliance.

Announced in the open Court,

On 26th December, 2025

RAVINDRA by RAVINDRA
KUMAR KUMAR PANDEY
PANDEY Date: 2025.12.26
12:45:57 +0530

(Ravindra Kumar Pandey)
ASJ:03/South/Saket Courts,
New Delhi

SC 7058/2016 (43/15/2015)

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